

GOODS AND SERVICES TAX ACT 1993
(SECTIONS 11B(4), 11C(5), 12(2), 15(7), 19, 20(4), 21(7) AND
(7A), 21B(1), 23(1), 25(1), 27, 27A, 32(1) AND (2), 33A(1), 33B(1),
35(1), 35A(1), 37(5), 37A(1), 37B(1), 38A(6), 41, 78(5) AND 86(1))

GOODS AND SERVICES TAX
(GENERAL)
REGULATIONS 1993

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[20 December 1993]

PART 1
PRELIMINARY

Citation

1. These Regulations are the Goods and Services Tax (General) Regulations 1993.

Definitions

2.—(1) In these Regulations —

“customs territory” has the meaning given by section 3(1) of the Customs Act 1960;

“non-specified taxable supply” means a taxable supply other than a specified supply;

“prescribed accounting period” means such period as is prescribed in regulation 52 or as is defined in regulation 92 as a prescribed accounting period, as the case may be;

“registered person” means a person registered by the Comptroller under the First Schedule to the Act;

“registered taxable person” means such a person while he, she or it is also a taxable person;

“registration number” means the number allocated by the Comptroller to a person in relation to the registration of that person;

“specified supply” means any of the following:

- (a) a reverse charge supply;

(b) a supply of remote services (as defined in paragraph 2A of the Seventh Schedule to the Act) that is treated —

(i) under paragraph 4(1) of that Schedule as being made by an operator of an electronic marketplace to a customer, instead of by the overseas underlying supplier making the supply through the electronic marketplace of the operator;

(ii) under paragraph 5(3)(b) of that Schedule as being made by an operator of an electronic marketplace to a customer; or

(iii) under paragraph 6(2)(b) of that Schedule as being made by an operator of an electronic marketplace to a registered person;

(c) a supply of distantly taxable goods that is treated —

(i) under paragraph 4(1) of the Seventh Schedule to the Act as being made by an operator of an electronic marketplace to a customer, instead of by the underlying supplier making the supply through the electronic marketplace of the operator; or

(ii) under paragraph 4B of the Seventh Schedule to the Act as being made by a redeliverer to a customer;

“tax fraction” means the fraction calculated in accordance with the following formula:

$$\frac{A}{100 + A}$$

where A is 3 or such other rate of tax as may later be specified in section 16 of the Act;

“transitional date”, in relation to a supply, means —

- (a) where section 92(2) or (5) of the Act applies to the supply, the later of —
 - (i) 1 January 2020; and
 - (ii) the day on which the person making the supply is registered in accordance with the First Schedule to the Act;
- (b) where section 92A(12) of the Act applies to the supply, the later of —
 - (i) 1 January 2023; and
 - (ii) the day on which the person making the supply is registered in accordance with the First Schedule to the Act;
- (c) where section 92A(13) of the Act applies to the supply, the earlier of —
 - (i) the date on which the invoice for the supply is issued; and
 - (ii) the date on which the consideration for the amount of the invoice is received by the supplier; and
- (d) where section 92A(14) of the Act applies to the supply — the date on which the consideration for the amount of the invoice for the supply is received on or after the day on which the person making the supply is registered in accordance with the First Schedule to the Act;

“transitional (reverse charge) date”, in relation to a reverse charge supply, means —

- (a) where section 93(3) of the Act applies to the supply, the later of —
 - (i) 1 January 2020; and

- (ii) the day on which the recipient is registered in accordance with the First Schedule to the Act;
- (b) where section 94(6) of the Act applies to the supply, the later of —
 - (i) 1 January 2023; and
 - (ii) the day on which the recipient is registered in accordance with the First Schedule to the Act;
- (c) where section 94(7) of the Act applies to the supply, the earlier of —
 - (i) the date on which the invoice for the reverse charge supply is issued; and
 - (ii) the date on which the consideration for the amount of the invoice is paid by the recipient; and
- (d) where section 94(8) of the Act applies to the supply — the date on which the consideration for the amount of the invoice is paid on or after the day on which the person receiving the supply is registered in accordance with the First Schedule to the Act.

(2) In the application of the Customs Act 1960, by virtue of section 26 of the Act, to any goods which are not subject to either customs duty or excise duty, such goods are to be construed as being under “customs control” within the meaning of section 3(2) of the Customs Act 1960 —

- (a) as if they are dutiable goods; and
- (b) as if the reference to a licensed warehouse in section 3(2) of the Customs Act 1960 includes a warehouse or other premises licensed under section 37(5)(b) of the Act.

PART 2

REGISTRATION

Group registration

3.—(1) Where 2 or more taxable persons are eligible to be treated as members of a group under regulation 4, the taxable persons may apply in writing to the Comptroller to be treated as members of a group under section 30 of the Act and they must, in that application, nominate a representative member who satisfies regulation 4(4) or (5), as the case may be.

(2) Where the Comptroller has approved 2 or more taxable persons to be treated as members of a group, an application may be made in writing to the Comptroller for —

- (a) a further taxable person eligible to be so treated to be included among the taxable persons so treated;
- (b) a taxable person to be excluded from the taxable persons so treated;
- (c) another member of the group who satisfies regulation 4(4) or (5) (as the case may be) to be substituted as the representative member; or
- (d) the taxable persons to cease to be treated as members of a group.

(3) An application under paragraph (1), (2)(a) or (c) must be made not less than 90 days before the date from which it is to take effect, or such later time as the Comptroller may allow.

(4) The Comptroller may, in the Comptroller's discretion, approve an application made under paragraph (1) or (2) and impose such conditions as the Comptroller may think fit including, where all members of the group are taxable persons registered under paragraph 1B of the First Schedule to the Act, a condition that no claim may be made for any credit for any input tax of the representative member (including any amount treated as such under section 30 of the Act).

(5) The Comptroller may refuse an application made under paragraph (1) or (2) or to register the member nominated by the

taxable persons as a representative member if the Comptroller thinks it necessary for the protection of the revenue.

Eligibility to register as group

4.—(1) Subject to paragraph (2), 2 or more taxable persons are eligible to be treated as members of a group if each of them falls within paragraph (3) and —

- (a) one of them controls each of the others;
- (b) one person (whether a body corporate or an individual) controls all of them; or
- (c) 2 or more individuals carrying on a business in partnership control all of them.

(2) For paragraph (1) to apply, all the taxable persons sought to be treated as members of the group must be —

- (a) taxable persons other than registered (Seventh Schedule — pay only) persons; or
- (b) registered (Seventh Schedule — pay only) persons.

(3) A taxable person falls within this paragraph if the person —

- (a) is resident in Singapore or has an established place of business in Singapore;
- (b) has an annual turnover of \$1 million or more;
- (c) has issued shares which are listed on a securities exchange established in or outside Singapore;
- (d) is a subsidiary of a body corporate that satisfies sub-paragraph (b) or (c); or
- (e) is financed by an entity (as part of its venture capital investment business) that satisfies sub-paragraph (b) or (c).

(4) For a group with members mentioned in paragraph (2)(a), a member of the group is eligible to be a representative member of the group if the member satisfies —

- (a) paragraph (3)(a); and

- (b) in a case where the group comprises one or more taxable persons who do not satisfy paragraph (3)(a), sub-paragraph (b), (c), (d) or (e) of paragraph (3).

(5) For a group with members mentioned in paragraph (2)(b), a member of the group is eligible to be a representative member of the group if the member —

- (a) satisfies paragraph (3)(b), (c), (d) or (e); and
- (b) appoints a section 33(1) agent to act on behalf of the group.

(6) For the purposes of this regulation —

- (a) a body corporate is taken to control another body corporate if the firstmentioned body corporate is that body's holding company;
- (b) an individual or individuals are taken to control a body corporate if he, she or they, were he, she or they a company, would be that body's holding company; and
- (c) whether a body corporate is the holding company or subsidiary of another body corporate is to be construed in accordance with section 5 of the Companies Act 1967.

(7) In this regulation, “section 33(1) agent” has the meaning given by section 33(5)(c) of the Act.

Input tax claim by members of group

5.—(1) The Comptroller may, if the Comptroller thinks it necessary for the protection of the revenue, reduce or disallow credit for any amount of input tax claimed by the members of a group where that amount of input tax would otherwise not have been attributable to taxable supplies if the application to be treated as members of a group under regulation 3 had not been allowed.

(2) Where an approval has been granted or a direction made by the Comptroller under regulation 30 for the use by any member of the group of a method other than that specified in regulation 29, the Comptroller may approve or direct the use of that method or another method under regulation 30 by all the members of the group.

Termination of group registration

6.—(1) The Comptroller may, by notice given to a taxable person, terminate the treatment of that taxable person as a member of a group from such date as may be specified in that notice if the Comptroller is satisfied that —

- (a) the taxable person has at any time ceased to satisfy any of the requirements for eligibility under regulation 4;
- (b) the taxable person has failed to comply with any condition or requirement imposed by the Comptroller under regulation 3(4);
- (c) the taxable person has provided any false, misleading or inaccurate declaration or information in the taxable person's application under regulation 3; or
- (d) it is necessary for the protection of the revenue.

(2) The Comptroller may, by written notice to the members of a group, terminate the registration of the group from such date as may be specified in the notice if the Comptroller is satisfied that —

- (a) the representative member of the group has ceased to satisfy any of the requirements for eligibility to be a representative member under regulation 4(4) or (5), as the case may be;
- (b) not one of the members of the group is eligible to be a representative member;
- (c) any condition imposed by the Comptroller under regulation 3(4) is contravened; or
- (d) it is necessary for the protection of revenue.

Divisional registration

7.—(1) Where the business of a taxable person is carried on in one or more divisions, that taxable person may apply in writing to the Comptroller for any such divisions to be registered in the names of those divisions.

(2) The Comptroller may, in the Comptroller's discretion, approve an application made under paragraph (1) subject to such conditions or requirements as the Comptroller may think fit to impose if the Comptroller is satisfied that —

- (a) it is likely to cause real difficulty for the taxable person to submit a single return in respect of all the divisions but for the separate registration under this regulation;
- (b) each such division maintains an independent system of accounting; and
- (c) each such division is separately identifiable by reference to the nature of the activities carried on by or the location of the division.

Cancellation of registration

8.—(1) The Comptroller may, at any time by written notice to the taxable person, cancel the registration approved under regulation 7 in respect of any or all of the divisions if the Comptroller is satisfied that —

- (a) the taxable person has failed to comply with any condition or requirement imposed by the Comptroller under regulation 7;
- (b) any of the conditions referred to in regulation 7(2) has ceased to apply;
- (c) the taxable person has provided any false, misleading or inaccurate declaration or information in the taxable person's application under regulation 7; or
- (d) it is necessary for the protection of the revenue.

(2) Where the Comptroller cancels the registration in accordance with paragraph (1), it is to have effect from the date of the cancellation or from such later date as may be agreed between the Comptroller and the taxable person.

(3) Subject to paragraphs (4) and (5), the taxable person may apply in writing to the Comptroller for any division separately registered under regulation 7 to cease to be so registered, and the Comptroller

may cancel that separate registration with effect from the date of application or from such later date as may be agreed between the Comptroller and the taxable person.

(4) Subject to paragraph (5), a taxable person registered under regulation 7 must remain so registered for a period of not less than 2 years or such other shorter period as the Comptroller may determine.

(5) The Comptroller may refuse to cancel the registration under regulation 7 where the Comptroller thinks it necessary for the protection of the revenue.

Representation of club, association, society, management corporation or organisation

9. Where anything is required to be done by or under the Act by or on behalf of a club, association, society, management corporation or organisation, the affairs of which are managed by its members or a committee or committees of its members, it is the joint and several responsibility of —

- (a) every member holding office as president, chairperson, treasurer, secretary or any similar office, or in default of any thereof;
- (b) every member holding office as a member of a committee, or in default of any thereof; and
- (c) every member,

except that if it is done by any official, committee member or member referred to in this regulation, that shall be sufficient compliance with any such requirement.

PART 3

TAX INVOICES AND OTHER INVOICES

Obligation to provide tax invoice

10.—(1) Except as otherwise provided in these Regulations, or as the Comptroller may otherwise allow, a registered taxable person

making a taxable supply to a taxable person must provide that taxable person with a tax invoice.

(2) The particulars of the tax chargeable on a supply of goods described in paragraph 6 of the Second Schedule to the Act must be provided —

- (a) where the supply is a sale by auction — by the auctioneer;
- (b) where the supply is a sale otherwise than by auction — by the person selling the goods; or
- (c) where the supply is a supply otherwise than by way of sale — by the person making the supply,

on a document containing the particulars prescribed in regulation 11(1).

(3) Any document issued to the buyer under paragraph (2) must be treated for the purposes of paragraph (1) as a tax invoice provided by the person by whom the goods are deemed to be supplied in accordance with paragraph 6 of the Second Schedule to the Act.

(4) Where a registered taxable person provides a document to himself, herself or itself which purports to be a tax invoice in respect of a supply of goods or services to the registered taxable person by another registered taxable person, that document may, with the approval of the Comptroller, be treated as the tax invoice required to be provided by the supplier under paragraph (1).

(5) The documents specified in this regulation must be provided within 30 days after the time when the supply is treated as taking place under sections 11, 11A, 11B and 12 of the Act or these Regulations, or within such longer period after that time as the Comptroller may allow.

Contents of tax invoice

11.—(1) Subject to regulation 13 and except as the Comptroller may otherwise allow, a registered taxable person providing a tax invoice in accordance with regulation 10 or any other regulations made under the Act, must state thereon the following particulars:

- (a) the words “tax invoice” in a prominent place;

- (b) an identifying number;
- (c) the date of issue of the invoice;
- (d) the name, address and registration number of the supplier;
- (e) the name and address of the person to whom the goods or services are supplied;
- (f) a description sufficient to identify the goods or services supplied and the type of supply;
- (g) for each description, the quantity of the goods or the extent of the services and the amount payable, excluding tax;
- (h) any cash discount offered;
- (i) the total amount payable excluding tax, the rate of tax and the total tax chargeable shown as a separate amount;
- (j) the total amount payable including the total tax chargeable;
- (k) any amount mentioned in sub-paragraphs (i) and (j), if expressed in a currency, other than Singapore currency, must also be expressed in Singapore currency in accordance with paragraph 11 of the Third Schedule to the Act.

(2) Where a taxable supply takes place as described in section 11A(6) of the Act, any consignment or delivery note or similar document or any copy thereof issued by the supplier before the time of supply is not, even though it may contain all the particulars set out in paragraph (1), to be treated as a tax invoice provided it is so endorsed.

(3) Where a registered taxable person provides an invoice containing the particulars prescribed in paragraphs (1) and (2) and specifies thereon any goods or services which are the subject of an exempt or zero-rated supply, the registered taxable person must, unless the Comptroller otherwise determines, distinguish on the invoice between the goods or services which are the subject of an exempt, zero-rated or other supply and state separately the gross total amount payable in respect of each.

(4) Without affecting paragraphs (1), (2) and (3), where section 38A of the Act applies, the tax invoice must also include —

- (a) the registration number of the customer; and
- (b) a statement sufficient to inform the customer of the relevant supply of goods or services for which the customer must account for and pay the tax on.

Change of rate and credit notes

12.—(1) Where there is a change mentioned in paragraph (a), (b), (c) or (d) of the definition of “specified change” in section 39(1) of the Act, and a tax invoice which relates to a supply in respect of which an election is made under section 39B of the Act was issued before the election was made, the person making the supply must, within 14 days after any such change or within such longer period as the Comptroller may allow, provide the person to whom the supply was made with a credit note so headed and containing the following particulars:

- (a) the identifying number and date of issue of the credit note;
- (b) the name, address and registration number of the supplier;
- (c) the name and address of the person to whom the supply is made;
- (d) the identifying number and date of issue of the tax invoice;
- (e) a description sufficient to identify the goods or services supplied;
- (f) the amount being credited in respect of tax.

(2) Where a tax invoice ceases to have effect under section 39D(1) of the Act, the person making the supply must, within 14 days after such change or within such longer period as the Comptroller may allow, provide the person to whom the supply was made with a credit note so headed, and containing —

- (a) the particulars specified in paragraph (1); and
- (b) the amount in respect of which the invoice ceased to have effect under section 39D(1) of the Act.

(3) The Comptroller may waive the requirement of a credit note under paragraph (1) or (2) (as the case may be), subject to any conditions that the Comptroller thinks fit.

Simplified invoices

13.—(1) Except as the Comptroller may otherwise allow and subject to paragraphs (2) to (5), where a registered taxable person provides a tax invoice in accordance with regulation 10 and the amount payable stated in the tax invoice, including tax, does not exceed \$1,000, the tax invoice need contain only the following particulars:

- (a) the name, address and registration number of the supplier;
- (b) an identifying number;
- (c) the date of issue of the invoice;
- (d) a description sufficient to identify the goods or services supplied;
- (e) the total amount payable including the total tax chargeable.

(2) Except as the Comptroller may otherwise allow, where a registered taxable person provides an invoice in accordance with this regulation, the registered taxable person —

- (a) must only include particulars of supplies that are subject to the same rate of tax; and
- (b) must not include particulars of any supply that —
 - (i) is zero-rated; or
 - (ii) is an exempt supply.

(3) Subject to paragraph (2), where, on or after the date a specified change occurs, a registered taxable person provides an invoice in accordance with this regulation in relation to a supply of goods and services, and —

- (a) the consideration for the supply was paid in whole and the supply was performed in whole, before the specified change occurred; or

- (b) the supply spanned the specified change, and the invoice is for the part of the supply for which consideration was paid or that was performed before the specified change occurred,

the registered taxable person must include in the invoice —

- (c) the applicable tax rate that the supply or part of the supply (as the case may be) was subject to before the specified change occurred; or
- (d) the amount of tax chargeable at the tax rate mentioned in sub-paragraph (c).

(4) Where a registered taxable person —

- (a) provides an invoice in accordance with this regulation in relation to a supply of any beverage product affixed with a deposit mark (whether or not together with any other goods or services); and
- (b) collects or intends to collect a BCRS deposit for that beverage product in accordance with section 23Q of the Resource Sustainability Act 2019,

the registered taxable person may (but need not) include the BCRS deposit in the invoice.

(5) For the purposes of paragraph (4), except as the Comptroller may otherwise allow, where a registered taxable person includes the BCRS deposit for a beverage product in an invoice, the registered taxable person must —

- (a) where the invoice contains a description separately identifying any beverage product supplied, or goods or services supplied that include any beverage product — ensure that the amount payable for the beverage product or goods or services (as the case may be) stated in the invoice excludes any BCRS deposit;
- (b) include the following additional particulars in the invoice:
 - (i) a description sufficient to identify any BCRS deposit as such;

- (ii) the amount of any BCRS deposit or deposits payable, shown as a separate amount —
 - (A) for each beverage product supplied;
 - (B) for each class of beverage products supplied;
 - (C) for each description of goods or services supplied that include one or more beverage products; or
 - (D) for all the beverage products supplied, in a single total amount;
 - (iii) a statement to the effect that no tax under the Act is chargeable on any BCRS deposit;
 - (iv) the total amount payable including the total tax chargeable and the total amount of any BCRS deposit or deposits payable for any beverage product supplied; and
- (c) ensure that the total amount payable mentioned in sub-paragraph (b)(iv) does not exceed \$1,000.
- (6) For the purposes of this regulation —
- (a) a supply spans a specified change if the supply is treated as such under section 39(3) of the Act; and
 - (b) a supply is performed in part or is performed in whole if the supply is treated as such under section 39(4) of the Act.
- (7) In this regulation —
- “beverage container return scheme deposit” or “BCRS deposit” means the deposit mentioned in section 23Q(1) of the Resource Sustainability Act 2019;
 - “beverage product” and “deposit mark” have the meanings given by section 23M(1) of the Resource Sustainability Act 2019;
 - “specified change” and “tax rate” have the meanings given by section 39(1) of the Act.

Other invoices

13A.—(1) Except as the Comptroller may otherwise allow, a taxable person making an exempt supply of investment precious metals referred to in paragraph 1A of Part 1 of the Fourth Schedule to the Act to another person must provide the other person, within 30 days after the time when the supply is treated as taking place (or within such longer period after that time as the Comptroller may allow in any particular case) with an invoice containing the following particulars:

- (a) an identifying number;
- (b) the date of issue of the invoice;
- (c) the name, address and registration number of the supplier;
- (d) the name and address of the person to whom the investment precious metals are supplied;
- (e) a description of the investment precious metals supplied, being —
 - (i) in the case of investment precious metals in the form of bars, ingots or wafers —
 - (A) the type of investment precious metal (whether gold, silver or platinum);
 - (B) the weight of each bar, ingot or wafer;
 - (C) the purity of each bar, ingot or wafer;
 - (D) the name of the refiner of each bar, ingot or wafer; and
 - (E) the unique serial number of each bar, ingot or wafer (where available); and
 - (ii) in the case of investment precious metals in the form of coins —
 - (A) the type of investment precious metal (whether gold, silver or platinum);
 - (B) the name of the coin; and
 - (C) the weight of each coin;

(f) the quantity of investment precious metals supplied and the unit price;

(g) the total amount payable.

(2) Except as the Comptroller may otherwise allow, the particulars mentioned in paragraph (1)(e), (f) and (g) must be set out in the form and manner specified in the Second Schedule.

Inclusion of certain details in invoices

13B.—(1) The Comptroller may, for the protection of revenue, direct a taxable person in writing to include statements of one or more of the following particulars in any tax invoice, simplified invoice or invoice that the taxable person issues for a taxable supply of goods made by the taxable person to any person in Singapore:

(a) the model of the goods supplied;

(b) the serial number of the goods supplied;

(c) any other particulars specified by the Comptroller in the direction.

(2) A taxable person to whom the Comptroller has given a direction under paragraph (1) must comply with the direction in the manner and within the time specified in the direction.

(3) In this regulation —

“invoice” means any invoice issued by a taxable person to a person that is not a taxable person, in relation to a supply that the taxable person makes to that person;

“simplified invoice” means the tax invoice mentioned in regulation 13;

“tax invoice” means the tax invoice mentioned in regulations 10 and 11.

General

14.—(1) Regulations 10, 11(1) and (2), 12 and 13 do not apply to —

(a) any zero-rated supply;

- (b) any supply to which regulations made under section 19(14) of the Act apply;
- (c) any supply on which tax is charged although it is not made for consideration; or
- (d) any supply to which regulations in Part 11 (made under section 23 of the Act) apply.

(2) Regulation 13A does not apply to any supply of investment precious metals that is not made for a consideration.

PART 4

TIME OF SUPPLY

Supplies of goods and services excluded from section 11B(3) of Act

15. The following supplies of goods and services are excluded from the application of section 11B(3) of the Act:

- (a) a supply of goods under paragraph 4 of the Second Schedule to the Act consisting of the grant of a licence, tenancy or lease where the whole or part of the consideration for that grant is payable periodically and attributed to separate periods of the term of the licence, tenancy or lease;
- (b) a supply of any form of power (including electricity), gas (excluding gas supplied in cylinders), water, light, heat, refrigeration, air conditioning, ventilation, telephone, telex, telepac and similar telecommunications services;
- (c) a supply of goods under an arrangement whereby the supplier retains the property therein until the goods or part of them are appropriated under the agreement by the buyer and in circumstances where the whole or part of the consideration is determined at that time;
- (d) a supply of goods or services after 1 April 1994 under a contract which provides for the retention of any part of the consideration by one party pending full and satisfactory

performance of the contract, or any part of it, by the other party;

- (e) a supply of services for a period for a consideration the whole or part of which is determined or payable periodically or from time to time;
- (f) a supply of services comprising the right to use a benefit where the whole of the consideration for the supply (being in the nature of royalties or other similar payments) cannot be ascertained at the time the services are performed but only subsequently by a person other than the supplier of the services upon the use of the benefit;
- (g) supplies of goods or services in the course of the construction, alteration, demolition, repair or maintenance of a building, or of any engineering work, under a contract which provides for payments for such supplies to be made periodically or from time to time.

Supplies of distantly taxable goods and services excluded from section 11C(4) of Act

15A. The following supplies of distantly taxable goods and services are excluded from the application of section 11C(4) of the Act:

- (a) a supply of distantly taxable goods and a supply of services under a contract which provides for the retention of any part of the consideration by one party pending full and satisfactory performance of the contract, or any part of it, by the other party;
- (b) a supply of services (including, to avoid doubt, telecommunication services) for a period for a consideration the whole or part of which is determined or payable periodically or from time to time;
- (c) a supply of services comprising the right to use a benefit where the whole of the consideration for the supply (being in the nature of royalties or other similar payments) cannot be ascertained at the time the services are performed but

only subsequently by a person other than the supplier of the services upon the use of the benefit;

- (d) a supply of distantly taxable goods and a supply of services in the course of the construction, alteration, demolition, repair or maintenance of a building, or of any engineering work, under a contract which provides for payments for such supply to be made periodically or from time to time;
- (e) a supply of distantly taxable goods under an arrangement where —
 - (i) the supplier retains the property in the goods until the goods or a part of them are appropriated under the agreement by the buyer; and
 - (ii) the whole or part of the consideration is determined at the time of that appropriation.

Licence, tenancy and lease

16.—(1) Where the grant of a licence, tenancy or lease is a supply of goods under paragraph 4 of the Second Schedule to the Act, and the whole or part of the consideration for that grant is payable periodically and is attributed to separate periods of the term of the licence, tenancy or lease, and the supplier, at or about the beginning of any period not exceeding 3 years, issues a tax invoice containing, in addition to the particulars specified in regulation 11, the following particulars:

- (a) the date on which any part of the consideration is to be become due for payment in the period;
- (b) the amount payable (excluding tax) on each such date;
- (c) the rate of tax in force at the time of the issue of the tax invoice and the amount of tax chargeable in accordance with that rate on each of such payments,

goods are to be treated as separately and successively supplied whenever a payment in respect of the licence, tenancy or lease becomes due or is received, whichever is the earlier.

(2) Where, on or before the date that a payment is due as stated on an invoice issued as described in paragraph (1), there is a change in the tax chargeable on supplies of the description to which the invoice relates, that invoice ceases to have effect as a tax invoice in respect of any such supplies for which payments are due after the change.

17. *[Deleted by S 827/2010]*

18. *[Deleted by S 827/2010]*

19. *[Deleted by S 827/2010]*

Continuous supplies of services

20.—(1) Where services are supplied for a period for a consideration the whole or part of which is determined or payable periodically or from time to time, under an agreement which provides for successive payments, and the supplier at or about the beginning of any period not exceeding 12 months, issues a tax invoice containing, in addition to the particulars specified in regulation 11, the following particulars:

- (a) the dates on which payments under the agreement are to become due in the period;
- (b) the amount payable (excluding tax) on each such date;
- (c) the rate of tax in force at the time of issue of the tax invoice and the amount of tax chargeable in accordance with that rate on each of such payments,

the services are to be treated as separately and successively supplied whenever a payment in respect of them becomes due or is received, whichever is the earlier.

(2) Where, on or before any of the dates that a payment is due as stated on an invoice issued under paragraph (1), there is a change in the tax chargeable on supplies of the description to which the invoice relates, that invoice ceases to have effect as a tax invoice in respect of any such supplies for which payments are due after the change.

21. *[Deleted by S 827/2010]*

22. *[Deleted by S 827/2010]*

General

23. Where under this Part a supply is treated as taking place when an invoice is issued by the supplier or when any payment is received, tax on that supply is chargeable only to the extent covered by the invoice or payment.

PART 4A

PLACE WHERE RECIPIENT OF SEVENTH SCHEDULE SUPPLY OF REMOTE SERVICES BELONGS

Place where recipient of Seventh Schedule supply of remote services belongs

24.—(1) This regulation applies in determining whether a customer receiving a Seventh Schedule supply of remote services belongs in Singapore.

(2) The customer belongs in Singapore if —

- (a) details of the bank account from which the payment for the purchase of the services is made, or details of the customer's payment account or payment card provided for the purchase, support the conclusion that the customer's usual place of residence is in Singapore, or the customer has a business or some other fixed establishment which is most directly concerned with the purchase, in Singapore; and
- (b) either of the following supports the conclusion that the customer's usual place of residence is in Singapore, or the customer has a business or some other fixed establishment which is most directly concerned with the purchase in Singapore:
 - (i) the customer's billing address or home address or, in the case of a customer that is not an individual, the customer's registered address;

- (ii) the mobile country code, IP address or other information identifying the physical location of the device used by the customer to make the purchase.

(3) If the details mentioned in paragraph (2)(a) are not available or do not support the conclusion mentioned in that provision, the customer is taken to belong in Singapore if the matters in both sub-paragraphs (i) and (ii) of paragraph (2)(b) support that conclusion.

(4) The Comptroller may, in any particular case, allow the use of other means to determine if a customer is a person that belongs in Singapore.

PART 5

INPUT TAX AND PARTIAL EXEMPTION

Definitions of this Part and longer periods

25.—(1) In this Part —

“business trust” has the meaning given by section 2 of the Business Trusts Act 2004;

“chauffeured private hire car” means a motor car that —

- (a) does not ply for hire on any road;
- (b) is hired, or made available for hire, under a contract (express or implied) for use as a whole with a driver for the purpose of conveying the hirer, and one or more passengers (if any), in that car; and
- (c) in respect of which a licence is issued under Part 5 of the Road Traffic Act 1961 for its use as a chauffeured private hire car;

“chauffeur service” means —

- (a) the carriage of one or more passengers; or
- (b) the collection, conveyance and delivery, for reward, of any cargo not incidental to the carriage of any passenger in a chauffeured private hire car, and any

goods, article, food or baggage which is unaccompanied by any passenger travelling in the chauffeured private hire car must be treated as cargo, but only if such collection, conveyance and delivery is approved by the Registrar, as defined under section 2(1) of the Road Traffic Act 1961, pursuant to rules made under that Act;

“club subscription fee” means any joining fee, subscription fee, membership fee, transfer fee or other consideration charged by any club, association, society or organisation established principally for recreational or sporting purposes or by the transferor of the membership or such club, association, society or organisation, as the case may be;

“COVID-19” means the infectious disease known as Coronavirus Disease 2019;

“debt security” and “equity security” have the meanings given by paragraph 1 of Part 3 of the Fourth Schedule to the Act;

“exempt input tax” means input tax, or a proportion of input tax, which is attributable to exempt supplies in accordance with the method used under regulation 29 or approved or directed to be used under regulation 30, as the case may be;

“family benefits” means any benefits (including hospitality of any kind) provided by the taxable person for the benefit of any person who is the wife, husband, child or relative of any person employed by the taxable person for the purposes of any business carried on or to be carried on by the taxable person;

“medical and accident insurance premium” means any payment or contribution towards any of the following insurance contracts:

- (a) a contract for the provision of insurance for indemnifying the taxable person against the cost of medical treatment to any person;

(b) a contract for the provision of insurance against the cost of medical treatment in which the insured is any person employed by the taxable person;

(c) a contract for the provision of insurance against any personal accident in which the insured is any person employed by the taxable person,

but does not include any insurance contract against any liability which the taxable person may incur to any person employed by the taxable person —

(d) under the provisions of the Work Injury Compensation Act (Cap. 354, 2009 Revised Edition) as in force before 1 September 2020 or the Work Injury Compensation Act 2019 where —

(i) such insurance is obligatory under either of the Acts; or

(ii) the payment of compensation is obligatory under either of the Acts; or

(e) under any collective agreement within the meaning of the Industrial Relations Act 1960;

“medical expenses” means any of the following medical expenses incurred in connection with the provision of medical treatment to any person employed by a taxable person:

(a) expenses incurred in or in connection with the provision of maternity health care, natal care, and preventive and therapeutic treatment;

(b) expenses incurred in or in connection with the provision of any medical facility by the taxable person,

but does not include any of the following:

(c) expenses incurred under the provisions of the Work Injury Compensation Act (Cap. 354, 2009 Revised Edition) as in force before 1 September 2020 or the Work Injury Compensation Act 2019 to any

workman employed by the taxable person where such expenses are obligatory under either of the Acts or any collective agreement within the meaning of the Industrial Relations Act 1960;

- (d) expenses incurred in or in connection with the provision of medical treatment to any person employed by the taxable person, or the provision of any medical facility or medical practitioner, where —
 - (i) the person undergoes the medical treatment, or the medical facility or medical practitioner is provided, pursuant to or in connection with any written law concerning the medical treatment or the provision of the medical facility or medical practitioner, as the case may be; and
 - (ii) the Comptroller is satisfied that the medical treatment is required, or the medical facility or medical practitioner is provided, on account of the nature of the person's work or work environment;
- (e) expenses incurred in or in connection with the provision of medical treatment to any person employed by the taxable person, where —
 - (i) the medical treatment relates to COVID-19;
 - (ii) the person undergoes such medical treatment pursuant to or in connection with any written advisory (including any industry circular) issued by, or posted on a website of, the Government or a public authority; and
 - (iii) the Comptroller is satisfied that such medical treatment is required on account of the nature of the person's work or work environment;

“medical facility” means any premises set aside for use as a facility at which any medical treatment is available or may be provided;

“medical treatment” includes all forms of treatment for, and procedures for diagnosing or preventing, any physical or mental ailment, infirmity or defect;

“motor car” means a motor car which is constructed or adapted for the carriage of not more than 7 passengers exclusive of the driver and the weight of which unladen does not exceed 3,000 kilograms but does not include —

- (a) a motor car registered before 1 April 1998 as a business service passenger vehicle for the purposes of the Road Traffic Act 1961;
- (b) a taxi;
- (c) a motor car registered as a private car (school transport);
- (d) an unused motor car which has not been previously registered under the Road Traffic Act 1961 supplied or imported for the purpose of being let on hire or sold;
- (e) a motor car supplied to a financial institution for the purposes of making a supply of that motor car by the financial institution under a hire-purchase contract;
- (f) a motor car supplied to or imported by a taxable person for the purposes of being let on hire or sold by that taxable person who is a dealer of motor cars;
- (g) a used motor car supplied or imported for the purpose of being let on hire; and
- (h) a motor car used for instructional purposes for reward and registered under paragraph 9(1) of the Second Schedule to the Road Traffic (Motor Vehicles, Registration and Licensing) Rules (R 5) by a person who holds a driving school licence issued under the Road Traffic Act 1961;

“public authority” means a body established or constituted by or under a public Act to perform or discharge a public function;

“real estate investment trust” has the meaning given by section 43(10) of the Income Tax Act 1947;

“registration period”, in relation to a taxable person, means the period commencing on the taxable person’s effective date of registration determined in accordance with the First Schedule to the Act and ending on the day before the commencement of the taxable person’s first tax year;

“relative” means brother, sister, ancestor or linear descendant;

“special purpose vehicle” means —

- (a) in relation to a real estate investment trust — a trust that is established solely in order for its trustee to hold, directly or indirectly, any immovable property or immovable property-related asset in which the real estate investment trust invests or proposes to invest; or
- (b) in relation to a business trust — a trust that is established solely in order for its trustee to hold, directly or indirectly, any property (or part of the property) in respect of which the business trust is established;

“tax year”, in relation to a taxable person, means —

- (a) the first period of 12 calendar months commencing on 1 April, May or June, according to the prescribed accounting periods allocated to the taxable person, next following the taxable person’s effective date of registration determined in accordance with the First Schedule to the Act; or
- (b) any subsequent period of 12 calendar months commencing on the day following the end of the taxable person’s first, or any subsequent, tax year,

except that the Comptroller may approve or direct that a tax year be a period of other than 12 calendar months or that it commences on a date other than that determined in accordance with sub-paragraph (a) or (b);

“unit” has the meaning given by paragraph 1 of Part 3 of the Fourth Schedule to the Act.

(2) Any reference to goods or services is to be construed as including a reference to anything which is supplied by way of a supply of goods or a supply of services, respectively.

(3) For the purposes of the definitions of “family benefits”, “medical and accident insurance premium” and “medical expenses” in paragraph (1) —

- (a) directors and officers of a company;
- (b) persons engaged in the management of a company; and
- (c) the directors, officers or employees of a related corporation as defined in section 4 of the Companies Act 1967,

are to be construed as persons employed by the company.

(4) Paragraphs (5), (6), (7) and (8) are to be used for determining the longer period applicable to taxable persons under the Act.

(5) A taxable person who incurs exempt input tax during any tax year is to have applied to the taxable person a longer period which corresponds with that tax year unless the taxable person did not incur exempt input tax during the taxable person’s immediately preceding tax year or registration period, in which case the taxable person’s longer period —

- (a) begins on the first day of the first prescribed accounting period in which the taxable person incurs exempt input tax; and
- (b) ends on the last day of that tax year, except where the taxable person only incurs exempt input tax in the last prescribed accounting period of the taxable person’s tax year, in which case no longer period is to be applied to the taxable person in respect of that tax year.

(6) A taxable person who incurs exempt input tax during the taxable person’s registration period is to have applied to the taxable person a longer period which begins on the first day on which the taxable person incurs exempt input tax and ends on the day before the commencement of the taxable person’s first tax year.

(7) In the case of a taxable person ceasing to be taxable during a longer period applicable to the taxable person, that longer period is to end on the day when the taxable person ceases to be taxable.

(8) The Comptroller may approve in the case of a taxable person who incurs exempt input tax, or a class of such persons, that a longer period is to apply which need not correspond with a tax year.

Disallowance of input tax

26. Input tax incurred by a taxable person in respect of any of the following:

- (a) club subscription fee;
- (b) medical and accident insurance premium;
- (c) medical expenses;
- (d) family benefits;
- (e) any transaction involving betting, sweepstakes, lotteries, fruit machines or games of chance,

is excluded from any credit under sections 19 and 20 of the Act.

Disallowance of input tax relating to motor car

27.—(1) Subject to paragraphs (2) to (8), input tax incurred by a taxable person on any of the following is excluded from any credit under sections 19 and 20 of the Act:

- (a) the supply or importation of a motor car;
- (b) the supply of goods or services to, or importation of goods by, the taxable person directly in connection with a motor car.

(2) Where —

- (a) input tax is incurred by a taxable person on a supply or importation of a motor car;
- (b) the motor car is used or to be used by a connected person of the taxable person;

- (c) the provision of the use of the motor car by the taxable person to the connected person is not ancillary to any other supply made by the taxable person to the connected person; and
- (d) the connected person has reimbursed the taxable person for a part or the whole of the sum of —
 - (i) the value of the supply or importation of the motor car; and
 - (ii) the input tax incurred by the taxable person in respect of that supply or importation,

paragraph (1)(a) does not apply to the amount of input tax that is reimbursed by the connected person.

(3) Paragraph (1)(a) does not apply to any input tax incurred by a taxable person on a supply or importation of a chauffeured private hire car, if —

- (a) the taxable person uses or intends to use the chauffeured private hire car to provide any chauffeur service in the course of a business of providing any chauffeur service carried on by the taxable person; and
- (b) where the taxable person is an individual — the taxable person also satisfies all the following conditions:
 - (i) the taxable person is a sole proprietor of a sole proprietorship that is registered under the Business Names Registration Act 2014 to carry on a business of providing any chauffeur service;
 - (ii) the taxable person maintains a fleet of at least 3 chauffeured private hire cars;
 - (iii) where —
 - (A) the taxable person personally provides any chauffeur service using any of the chauffeured private hire cars mentioned in sub-paragraph (ii) — the taxable person employs at least 2 other individuals to

provide any chauffeur service using any of those chauffeured private hire cars; or

- (B) the taxable person does not personally provide any chauffeur service using any of the chauffeured private hire cars mentioned in sub-paragraph (ii) — the individual employs at least 3 other individuals to provide any chauffeur service using any of those chauffeured private hire cars.

(4) Paragraph (1)(b) does not apply to any supply of goods or services to, or importation of goods by, an insurer directly in connection with a motor car of a person who contracted with the insurer for the insurance cover on that motor car, where the insurance cover commences on or after 1 January 2007.

(5) Where —

- (a) an amount of input tax is incurred by a taxable person on a supply of goods or services to, or importation of goods by, the taxable person directly in connection with a motor car;
- (b) the goods or services that are supplied or imported are used by a connected person of the taxable person;
- (c) the provision of the use of the goods or services that are supplied to, or imported by, the taxable person to the connected person is not ancillary to any other supply made by the taxable person to the connected person; and
- (d) the connected person has reimbursed the taxable person for a part or the whole of the sum of —
 - (i) the value of the supply of the goods or services or importation of goods; and
 - (ii) the input tax incurred on the value of that supply or importation,

paragraph (1)(b) does not apply to the amount of input tax that is reimbursed by the connected person.

(6) Paragraph (1)(b) does not apply to any input tax incurred by a taxable person on a supply of goods or services to, or importation of

goods by, the taxable person directly in connection with a chauffeured private hire car, if the taxable person uses or intends to use the chauffeured private hire car to provide any chauffeur service in the course of a business of providing any chauffeur service carried on by the taxable person.

(7) Paragraph (1)(b) does not apply to any input tax incurred by a taxable person (*X*) on a supply of any chauffeur service that is provided to *X* by another taxable person (*Y*) using a chauffeured private hire car, if *Y* carries on a business of providing any chauffeur service.

(8) In this regulation, a person (*A*) is a connected person of another person (*B*) if *A* is determined to be connected to *B* in accordance with paragraph 3, read with paragraph 4, of the Third Schedule to the Act.

De minimis rule

28. Where in any prescribed accounting period or in any longer period, the total value of all exempt supplies made by a taxable person does not exceed both —

- (a) the average of \$40,000 per month; and
- (b) an amount equal to 5% of the total value of all non-specified taxable supplies and exempt supplies made in that period,

then all exempt input tax in that period is to be treated as attributable to taxable supplies.

Attribution of input tax to taxable supplies

29.—(1) Subject to regulation 30, the amount of input tax which a taxable person is entitled to deduct provisionally is that amount which is attributable to taxable supplies in accordance with this regulation.

(2) In respect of each prescribed accounting period —

- (a) goods imported by and goods or services supplied to the taxable person in the period must be identified;
- (b) there must be attributed to taxable supplies the whole of the input tax on such of those goods or services as are used or

to be used by the taxable person exclusively in making non-specified taxable supplies;

- (c) no part of the input tax on such of those goods or services as are used or to be used by the taxable person exclusively in making exempt supplies, or in carrying on any activity other than the making of non-specified taxable supplies, is to be attributed to taxable supplies; and
- (d)
 - (i) subject to sub-paragraph (ii), there must be attributed to taxable supplies such proportion of the input tax on such of those goods or services as are used or to be used by the taxable person in making both non-specified taxable supplies and exempt supplies as bears the same ratio to the total of such input tax as the value of non-specified taxable supplies made by the taxable person bears to the value of all supplies (other than specified supplies) made by the taxable person in the period; and
 - (ii) where input tax is incurred on goods or services in the development of land and construction of a building as is used or to be used by the taxable person in making both taxable and exempt supplies, there must be attributed to taxable supplies such proportion of the input tax as bears the same ratio determined in accordance with the formula:

$$\frac{(A \times B)}{(A \times B) + (C \times D)}$$

where A is the floor area of the part of that building under development or construction for which the competent authority under the Planning Act 1998 has granted provisional or written planning permission for a purpose other than a residential purpose;

B is the fixed rate for the time being specified in Part 1 of the Second Schedule to the Land Betterment Charge (Table of Rates and Valuation Method) Regulations 2022 corresponding to the appropriate geographical sector of

the building and the use group within which such purpose falls;

C is the floor area of the part of that building under development or construction for which the competent authority under the Planning Act 1998 has granted provisional or written planning permission for residential purposes;

D is the rate for use group B1 or B2 for the time being specified in Part 1 of the Second Schedule to the Land Betterment Charge (Table of Rates and Valuation Method) Regulations 2022, corresponding to the purpose of the building under development or construction.

(3) In calculating the proportion under paragraph (2)(d), there must be excluded any sum receivable by the taxable person in respect of any exempt supply referred to in paragraph 1 of Part 1 of the Fourth Schedule to the Act that is made by the taxable person, where such supply is incidental to one or more of the taxable person's business activities.

(4) In calculating the proportion under paragraph (2)(d), there must be excluded from the taxable supplies made by the taxable person mentioned in that provision, any prescribed supply or relevant supply of goods or services that the taxable person is required under section 38 or 38A of the Act to account for and pay tax on as customer.

(5) The ratio calculated for the purpose of paragraph (2)(d) must be expressed as a percentage and, if that percentage is not a whole number, it must be rounded off to the nearest whole number.

(6) In this regulation, "appropriate geographical sector" and "floor area" have the meanings given by the Land Betterment Charge (Table of Rates and Valuation Method) Regulations 2022.

(7) Where the development of land or construction of building involves more than one use group specified in the First Schedule to the Land Betterment Charge (Table of Rates and Valuation Method)

Regulations 2022, the Comptroller may determine the method for the application of the formula mentioned in paragraph (2)(d)(ii) to the appropriate use group.

Use of other methods

30.—(1) The Comptroller may approve or direct the use by a taxable person of a method other than that specified in regulation 29.

(2) The Comptroller may in special circumstances approve or direct the use by a taxable person of a method, other than that specified in regulation 29, which may treat supplies made by that taxable person to another taxable person for the purpose of any business carried on by the last mentioned taxable person as taxable supplies; but the Comptroller may if the Comptroller thinks it necessary for the protection of the revenue refuse to allow the use of such method.

(3) A taxable person using a method as approved or directed by the Comptroller under paragraph (1) or (2) must continue to use that method unless the Comptroller approves or directs the termination of its use.

(4) Any approval or direction under paragraph (1) or (2) takes effect from the date upon which the Comptroller gives such approval or direction or from such date as the Comptroller may specify.

Attribution of input tax to foreign and bonded warehouse supplies

31.—(1) Input tax incurred by a taxable person in any prescribed accounting period on importations by or supplies to the taxable person which are used or to be used by the taxable person in whole or in part in making —

- (a) supplies outside Singapore which would be taxable supplies if made in Singapore;
- (b) supplies referred to in paragraph 1(b) or (g) of Part 1 of the Fourth Schedule to the Act outside Singapore; or
- (c) supplies which are to be disregarded under section 37 of the Act for the purposes of the Act and which would otherwise be taxable supplies,

may be attributed to taxable supplies to the extent that the importations or supplies are separately identified as so used or to be used.

(2) Every taxable person must keep such documents in such form as the Comptroller may require for the purposes of supporting any attribution of input tax to taxable supplies under this regulation.

(3) Nothing in this regulation is to be construed as treating the supplies mentioned in paragraph (1)(a), (b) or (c) as taxable supplies for the purposes of these Regulations.

Attribution of input tax on self-supplies

32. Where under or by virtue of any provision of the Act a person makes a supply to himself, herself or itself, the input tax on that supply is not allowable as attributable to that supply.

Treatment of input tax attributable to exempt supplies as being attributable to taxable supplies

33. Subject to regulations 34, 35 and 46A, any exempt input tax attributable to supplies of any of the following descriptions must be treated as attributable to taxable supplies:

- (a) the deposit of money;
- (b) the exchange of currency (whether effected by the exchange of currency, bank notes or coin, by crediting or debiting accounts, or otherwise) other than the supply of a note or a coin as a collector's item, investment article or item of numismatic interest;
- (c) the issue, allotment or transfer of ownership of a debt security by the person who makes the first issue of such security;
- (d) the issue, allotment or transfer of ownership of an equity security by the person who makes the first issue of such security;
- (e) the provision by a taxable person of any loan, advance or credit to the taxable person's employee;

- (f) the assignment of a trade receivable;
- (g) the issue of a unit under any unit trust or business trust;
- (h) the hedging of any interest rate risk that arises or is likely to arise from —
 - (i) the making of any supply specified in paragraph (a) or (c); or
 - (ii) any loan obtained by a taxable person in the making of any supply specified in section 20(2) of the Act;
- (i) the hedging of any currency risk that arises or is likely to arise from —
 - (i) the making of any supply specified in paragraph (a), (c), (d) or (g) or section 20(2) of the Act; or
 - (ii) any loan obtained by a taxable person in the making of any supply specified in section 20(2) of the Act;
- (j) the hedging of any utility price risk, freight price risk or commodity price risk that arises or is likely to arise from the making of any supply specified in section 20(2) of the Act;
- (k) the receipt of interest on a bond by a bondholder, arising from the provision of credit by the bondholder to the issuer of the bond (whether or not the bond was originally issued to the bondholder);
- (l) the receipt of interest in respect of the provision of credit for any trade receivable;
- (m) the issue or transfer of ownership of Islamic debt securities under an Islamic debt securities arrangement;
- (n) the provision of financing under an Islamic debt securities arrangement for which the provider of the financing derives an effective return.

Non-applicability to certain businesses

34. Regulation 33 does not apply where the supply is made by the taxable person in the course of carrying on a business of, or a business similar to, any of the following:

- (a) a bank required to be licensed under the Banking Act 1970;
- (b) a merchant bank that holds a merchant bank licence, or is treated as having been granted a merchant bank licence, under the Banking Act 1970;
- (c) a financial institution required to be approved under section 28 of the Monetary Authority of Singapore Act 1970 as in force immediately before 28 April 2023 or under section 4 of the Financial Services and Markets Act 2022;
- (d) a company or society required to be registered under the Insurance Act 1966 for the carrying on of a life insurance business, a general or life reinsurance business, or the business of a reinsurance broker;
- (e) a finance company required to be licensed under the Finance Companies Act 1967;
- (f) a moneylender required to be licensed under the Moneylenders Act 2008 or a currency trader;
- (g) a person required to be licensed under the Payment Services Act 2019 to carry on a business of providing either or both of the following payment services:
 - (i) cross-border money transfer service;
 - (ii) money-changing service;
- (h) a pawnbroker as defined under the Pawnbrokers Act 2015;
- (i) a debt factor;
- (j) a credit card, charge card or other payment card company;
- (k) a unit trust, not being a real estate investment trust (or its special purpose vehicle) or a business trust (or its special purpose vehicle);

(l) a trader of digital payment tokens.

Non-applicability where other exempt supplies are made

35. Regulation 33 does not apply where the total value of all exempt supplies (excluding supplies of the descriptions specified in that regulation) made by the taxable person during any prescribed accounting period, or any longer period applicable to the taxable person, exceeds 5% of the total value of all non-specified taxable supplies and exempt supplies made by the taxable person during that period.

Adjustment of attribution

36.—(1) Where a taxable person to whom a longer period is applicable has provisionally attributed an amount of input tax to taxable supplies in accordance with a method, and where all the taxable person's exempt input tax in that longer period cannot be treated as attributable to taxable supplies under regulation 28 and except as the Comptroller may dispense with the following requirements to adjust, the taxable person must —

- (a) determine for the longer period the amount of input tax which is attributable to taxable supplies (other than specified supplies) according to the method used in the prescribed accounting periods;
- (b) ascertain whether there has been, overall, an over-deduction or an under-deduction of input tax, having regard to the determination mentioned in sub-paragraph (a) and to the sum of the amounts of input tax (if any) which were deducted in the returns for the prescribed accounting periods; and
- (c) include any such amount of over-deduction or under-deduction in a return for the first prescribed accounting period next following the longer period, except where the Comptroller allows another return to be used for this purpose.

(2) Where a taxable person to whom a longer period is applicable has provisionally attributed an amount of input tax to taxable supplies

in accordance with a method, and where all the taxable person's exempt input tax in that longer period can be treated as attributable to taxable supplies under regulation 28, the taxable person must —

- (a) calculate the difference between the total amount of the taxable person's input tax for that longer period and the sum of the amounts of input tax deducted in the returns for the prescribed accounting periods; and
- (b) include any such amount of under-deduction in a return for the first prescribed accounting period next following the longer period, except where the Comptroller allows another return to be used for this purpose.

Adjustment of input tax deducted

37.—(1) This regulation applies where a taxable person has deducted an amount of input tax which has been attributed to taxable supplies because the taxable person intended to use the goods or services in making either —

- (a) non-specified taxable supplies; or

(b) both non-specified taxable supplies and exempt supplies, and during the relevant period and before that intention is fulfilled, the taxable person uses or forms an intention to use the goods or services concerned —

- (c) in making exempt supplies or both non-specified taxable supplies and exempt supplies, instead of non-specified taxable supplies only;
- (d) in making exempt supplies, instead of both non-specified taxable supplies and exempt supplies; or
- (e) in continuing to make both non-specified taxable supplies and exempt supplies, but reducing the proportion of non-specified taxable supplies to exempt supplies.

(2) Except as the Comptroller otherwise allows, where this regulation applies, the taxable person must on the return for the prescribed accounting period in which the use occurs or the intention is formed (as the case may be) account of an amount equal to the input

tax which has ceased to be attributable to taxable supplies, in accordance with the method which the taxable person was required to use when the input tax was first attributed, and the taxable person must repay the said amount to the Comptroller.

(3) For the purposes of this regulation, any question as to the nature of any supply must be determined in accordance with the provisions of the Act and any regulations or orders made under the Act in force at the time when the input tax was first attributed.

(4) Subject to paragraph (5), paragraph (2) does not apply where the input tax deducted in respect of a supply of land made to a taxable person has ceased to be attributable to a taxable supply of land which the taxable person intended to make, because the taxable person uses or forms an intention to use the land for making —

(a) both taxable supplies, and exempt supplies referred to in paragraph 2(c) of Part 1 of the Fourth Schedule to the Act;
or

(b) such exempt supplies.

(5) Where any land is supplied to a taxable person with any building thereon which is used or to be used for making exempt supplies, the taxable person must, for the purposes of paragraph (2), repay to the Comptroller input tax in respect of only the building in accordance with such method as the Comptroller may determine.

(6) In this regulation, “relevant period” means —

(a) where the prescribed accounting period during which the attribution of input tax referred to in paragraph (1) was determined ends before 1 January 2007 — a period of 6 years commencing on the first day of that prescribed accounting period; or

(b) where the prescribed accounting period during which the attribution of input tax referred to in paragraph (1) was determined ends on or after 1 January 2007 — a period of 5 years commencing on the first day of that prescribed accounting period.

Adjustment of input tax deemed deducted

38.—(1) This regulation applies to a transferee mentioned in section 34A of the Act where the assets transferred to the transferee are to be used in carrying on the same kind of business as that carried on by the transferor of the assets in making either —

(a) non-specified taxable supplies; or

(b) both non-specified taxable supplies and exempt supplies, and during the relevant period, the transferee uses or forms an intention to use the assets —

(c) in making exempt supplies or both non-specified taxable supplies and exempt supplies, instead of non-specified taxable supplies only;

(d) in making exempt supplies, instead of both non-specified taxable supplies and exempt supplies; or

(e) in continuing to make both non-specified taxable supplies and exempt supplies, but reducing the proportion of non-specified taxable supplies to exempt supplies.

(2) Except as the Comptroller otherwise allows, where this regulation applies, the transferee must on the return for the prescribed accounting period in which the use occurs or the intention is formed (as the case may be) account of an amount of the input tax deemed to have been deducted in respect of the supplies which have ceased or are intended to cease to be non-specified taxable supplies, in accordance with such method as the Comptroller may determine, and the transferee must repay the said amount to the Comptroller.

(3) For the purposes of this regulation, any question as to the nature of any supply must be determined in accordance with the provisions of the Act and any regulations or orders made under the Act in force at the time the input tax was deemed to have been deducted.

(4) Subject to paragraph (5), paragraph (2) does not apply where the input tax was deemed to have been deducted in respect of land supplied to the transferee which is no longer to be used to make a

taxable supply of land, because the transferee uses or forms an intention to use the land for making —

- (a) both taxable supplies, and exempt supplies referred to in paragraph 2(c) of Part 1 of the Fourth Schedule to the Act;
or
- (b) such exempt supplies.

(5) Where any land is supplied to the transferee with any building thereon which is used or to be used for making exempt supplies, the transferee must, for the purposes of paragraph (2), repay to the Comptroller input tax deemed to have been deducted in respect of only the building in accordance with such method as the Comptroller may determine.

(6) In this regulation, “relevant period” means —

- (a) where the prescribed accounting period during which the supply referred to in paragraph (1) was made ends before 1 January 2007 — a period of 6 years commencing on the day the supply was made; or
- (b) where the prescribed accounting period during which the supply referred to in paragraph (1) was made ends on or after 1 January 2007 — a period of 5 years commencing on the day the supply was made.

Adjustment of input tax incurred

39.—(1) This regulation applies where a taxable person has incurred an amount of input tax which has not been attributed to taxable supplies because the taxable person intended to use the goods or services in making either —

- (a) exempt supplies; or
- (b) both non-specified taxable supplies and exempt supplies,
and during the relevant period and before that intention is fulfilled, the taxable person uses or forms an intention to use the goods or services concerned —

- (c) in making non-specified taxable supplies or both non-specified taxable supplies and exempt supplies, instead of exempt supplies only;
- (d) in making non-specified taxable supplies, instead of both non-specified taxable supplies and exempt supplies; or
- (e) in continuing to make both non-specified taxable supplies and exempt supplies, but increasing the proportion of non-specified taxable supplies to exempt supplies.

(2) Where this regulation applies, the Comptroller must, on receipt of an application made by the taxable person in such form and manner and containing such particulars as the Comptroller may direct, pay to the taxable person an amount equal to the input tax which has become attributable to taxable supplies in accordance with the method the taxable person was required to use when the input tax was first attributed.

(3) For the purposes of this regulation, any question as to the nature of any supply must be determined in accordance with the provisions of the Act and any regulations or orders made under the Act in force at the time when the input tax was first attributed.

(4) In this regulation, “relevant period” means —

- (a) where the prescribed accounting period during which the attribution of input tax referred to in paragraph (1) was determined ends before 1 January 2007 — a period of 6 years commencing on the first day of that prescribed accounting period; or
- (b) where the prescribed accounting period during which the attribution of input tax referred to in paragraph (1) was determined ends on or after 1 January 2007 — a period of 5 years commencing on the first day of that prescribed accounting period.

Exceptional claims for tax relief

40.—(1) Subject to paragraphs (2), (3), (4), (7), (8) and (10), on a claim made in accordance with paragraph (9), the Comptroller may authorise a taxable person to treat as if it were input tax —

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- (a) tax on the supply of goods or services to the taxable person before the date with effect from which the taxable person was, or was required to be registered, or paid by the taxable person on imported goods before that date, for the purpose of a business which either was carried on or was to be carried on by the taxable person at the time of such supply or payment; and
- (b) in the case of a body corporate, tax on the supply or importation of goods acquired for it before its incorporation, or on the supply of services before that time for its benefit or in connection with its incorporation, provided that the person (*X*) to whom the supply was made or who paid tax on the importation —
- (i) became a member, officer or employee of the body and was reimbursed, or has received an undertaking to be reimbursed by the body for the whole amount of the price paid for the goods or services;
 - (ii) was not at the time of supply or importation a taxable person; and
 - (iii) acquired the goods or services for the purpose of a business to be carried on by the body and has not used them for any purpose other than such business.
- (2) Subject to paragraphs (3) and (6), where, 6 months or less before the registration date of the taxable person mentioned in paragraph (1) —
- (a) a supply of goods mentioned in paragraph (1)(a) was made to the taxable person or a supply of goods mentioned in paragraph (1)(b) was made to *X* (as the case may be) (called in this regulation the relevant person); or
 - (b) tax was paid by the relevant person on imported goods mentioned in paragraph (1)(a) or (b),
- then the tax on the supply or the tax paid on the imported goods (as the case may be) must not be treated as input tax under paragraph (1) to the extent that, before the registration date —

(c) the relevant person made a supply of the goods to any other person as follows:

(i) a supply (not being one in sub-paragraph (iii)) by way of the transfer or disposal of the whole property in any of the goods (whether by gift, sale or otherwise);

(ii) a supply (not being one in sub-paragraph (iii)) by way of the transfer of possession of any of the goods under —

(A) an agreement for the sale of the goods; or

(B) an agreement that expressly contemplates that property in the goods will pass at some time in the future that is determined by or ascertainable from the agreement, but in any case not later than when the goods are fully paid for;

(iii) where the supply to the relevant person was a grant, an assignment or a surrender of any interest in any land (other than the grant of a tenancy or lease) — a grant, an assignment or a surrender of any part of the interest in the land (other than the grant of a tenancy or lease); or

(d) except as the Comptroller may otherwise allow, the goods were consumed or used by the relevant person.

(3) Where —

(a) the goods supplied or imported by the relevant person under paragraph (2) comprised utilities; or

(b) the supply of goods to the relevant person under paragraph (2) was a grant of a tenancy or lease, or a licence to occupy any land,

then the tax on the supply or the tax paid on the import (as the case may be) must not be treated as input tax under paragraph (1) to the extent that, before the registration date —

(c) the relevant person used the goods to make a supply of goods or services to any other person;

- (d) the goods formed any part of the overheads of the relevant person, and the consideration for the goods was paid by a person other than the relevant person (whether directly to the person who supplied the goods to the relevant person or indirectly through the relevant person); or
- (e) without affecting the application of sub-paragraphs (c) and (d) to this case, where the supply to the relevant person was a grant of a tenancy or lease, or a licence to occupy any land — the premises to which the grant or licence relates was not used as premises from or at which the relevant person carried on the business to be carried on by the taxable person.

(4) Subject to paragraphs (5) and (6), where, more than 6 months before the registration date of the taxable person mentioned in paragraph (1) —

- (a) a supply of goods mentioned in paragraph (1)(a) or (b) was made to the relevant person; or
- (b) tax was paid by the relevant person on imported goods mentioned in that provision,

then the tax on the supply or the tax paid on the imported goods (as the case may be) must not be treated as input tax under paragraph (1) —

- (c) to the extent that, before the registration date, the relevant person made a supply of those goods to any other person;
- (d) where the supply to the relevant person was a grant of a tenancy or lease, or a licence to occupy any land — in respect of the period of the grant or licence ending immediately before the registration date; or
- (e) to the extent that, before the registration date, the goods were consumed or used by the relevant person.

(5) However, the Comptroller may allow tax in relation to any part of the period in paragraph (4)(d), or any of the goods consumed or used as described in paragraph (4)(e), to be treated as input tax under paragraph (1).

(6) For the purposes of paragraphs (2) and (4), where, before the registration date, the goods supplied to or imported by the relevant person were —

- (a) incorporated with or affixed to other goods; or
- (b) used to make other goods,

then the references to the goods that were supplied by the relevant person to any other person are references to such other goods.

(7) Where, 6 months or less before the registration date of the taxable person mentioned in paragraph (1), services mentioned in paragraph (1)(a) or (b) were supplied to the relevant person, the tax on the supply must not be treated as input tax under paragraph (1) to the extent that, before the registration date —

- (a) in a case where the services supplied to the relevant person form any part of the overheads of the relevant person — the consideration for the supply was paid by a person other than the relevant person (whether directly to the person who supplied the services to the relevant person or indirectly through the relevant person); and
- (b) in any other case — the relevant person used the services to make a supply of goods or services to any other person.

(8) Where, more than 6 months before the registration date of the taxable person mentioned in paragraph (1), services mentioned in paragraph (1)(a) or (b) were supplied to the relevant person, the tax on the supply must not be treated as input tax under paragraph (1).

(9) A claim under paragraph (1) must, except as the Comptroller may otherwise allow, be made on the first return the taxable person furnishes under regulation 52 and, as the Comptroller may require, be supported by invoices and other evidence.

(10) A taxable person making a claim under paragraph (1) must compile and preserve for such period as the Comptroller may require —

- (a) in respect of goods — a stock account showing separately quantities purchased, quantities used in the making of other

goods, date of purchase and date and manner of subsequent disposals of both such quantities; and

- (b) in respect of services — a list showing their description, date of purchase and date of use, if any.

(11) If a person who has been, but is no longer, a taxable person makes a claim in such manner and supported by such evidence as the Comptroller may require, the Comptroller may pay to that person the amount of any tax on the supply of services to that person after the date with effect from which he, she or it ceased to be registered or ceased to be required to register and which was attributable to any non-specified taxable supply made by that person in the course or furtherance of any business carried on by that person when he, she or it was or was required to be registered.

- (12) In this regulation —

“grant of a tenancy or lease” means the grant of a tenancy or lease where the whole or part of the consideration for that grant is payable periodically and attributed to separate periods of the term of the tenancy or lease;

“registration date”, in relation to a taxable person, means the date with effect from which the person is a registered person;

“utilities” means any form of power (including electricity), gas, water, light, heat, refrigeration, air conditioning or ventilation.

Input tax for land to be used for making exempt supplies

- 41.—**(1) Where any land, being —

(a) vacant land; or

(b) land on which any building is to be demolished,

is supplied to a taxable person, and it appears to the Comptroller that —

- (c) the land is to be developed (including by the construction of any building thereon); and

- (d) some part or the whole of the land so developed is to be used in the making of exempt supplies,

the Comptroller may allow to be attributable to taxable supplies such part of the input tax incurred by the taxable person in respect of the supply to the taxable person of the land as bears the same proportion to the whole of that input tax as the value of the area of the developed land to be used in the making of exempt supplies bears to the value of the total area of the developed land.

(2) Where any land is supplied to a taxable person with any building thereon which is used or to be used for making exempt supplies, the Comptroller may allow the input tax in respect of only the supply of land excluding the building to be attributable to taxable supplies in accordance with such method as the Comptroller may determine.

(3) Every taxable person must keep such documents in such form as the Comptroller may require for the purposes of supporting any attribution of input tax to taxable supplies under this regulation.

(4) In this regulation, “exempt supplies” means the exempt supplies referred to in paragraph 2 of Part 1 of the Fourth Schedule to the Act (read with paragraph 3(3) of Part 3 of that Schedule).

Input tax deemed incurred in relation to insurance cash payments

41A.—(1) This regulation applies where the period of insurance cover under a contract of insurance commences on or after 1 January 2007.

(2) Subject to paragraph (3), where the premium payable under the contract of insurance is subject to the tax rate in force under section 16 of the Act, the insurer is deemed to have incurred input tax on any cash payment made by the insurer upon the occurrence of an insured event and which is obligatory under that contract of insurance (called in this regulation deemed input tax), except in such situation as the Minister may decide otherwise for the protection of revenue.

(3) Paragraph (2) only applies where the contract of insurance is taken out by a person who, at the time the insurance cover commences under that contract —

-
- (a) is not registered under the First Schedule to the Act, or is a taxable (Seventh Schedule) person other than a registered (Seventh Schedule — full) person;
 - (b) is a sole proprietor who is registered under the First Schedule to the Act and who purchased the insurance cover other than in the course or furtherance of the sole proprietor's business;
 - (c) where the contract is for medical and accident insurance, is registered under the First Schedule to the Act and is disallowed under regulation 26 from claiming any credit under sections 19 and 20 of the Act on any input tax incurred on the premium paid on that contract; or
 - (d) where the contract is for motor car insurance, is registered under the First Schedule to the Act and is disallowed under regulation 27 from claiming any credit under sections 19 and 20 of the Act on any input tax incurred on the premium paid on that contract.
- (4) Where an insurer incurs deemed input tax under paragraph (2) —
- (a) the cash payment made by the insurer to which the deemed input tax relates is not to be treated as consideration for any supply made to the insurer;
 - (b) the amount of deemed input tax is to be an amount equal to the relevant tax fraction of the cash payment; and
 - (c) the deemed input tax is to be treated as having been incurred by the insurer in the prescribed accounting period in which the cash payment was made by the insurer.
- (5) Except as the Comptroller may otherwise allow, an insurer making a claim for the deduction of deemed input tax must keep a record of that claim consisting of information showing that —
- (a) the period of insurance cover under the contract of insurance commenced on or after 1 January 2007;
 - (b) the premium payable under the contract of insurance was subject to the tax rate in force under section 16 of the Act;

- (c) the cash payment was made by the insurer upon the occurrence of an insured event;
 - (d) the payment was obligatory under the contract of insurance; and
 - (e) the person who entered into the contract for insurance with the insurer was a person specified in paragraph (3).
- (6) If an insurer recovers from any person (other than the insurer's re-insurer under a re-insurance contract) the cash payment mentioned in paragraph (2) or any part of such cash payment —
- (a) the deemed input tax on the cash payment must be reduced by an amount equal to the relevant tax fraction of the sum recovered in the prescribed accounting period in which the sum was recovered; and
 - (b) where the insurer has claimed and deducted the deemed input tax, the insurer must account and repay to the Comptroller the amount of the adjustment in the prescribed accounting period mentioned in sub-paragraph (a).
- (7) In this regulation, "relevant tax fraction" means the fraction calculated in accordance with the following formula:

$$\frac{X}{100 + X}$$

where X is the rate of tax applicable to the insurance premium for the period of insurance cover giving rise to the cash payment.

PART 6

REMISSION AND DEFERRED PAYMENT

Remission for goods lost, damaged or destroyed

42.—(1) If any goods are by unavoidable accident lost, damaged or destroyed or are lost through theft or through evaporation at any time before removal from customs control, the Comptroller may remit the whole or any part of the tax payable thereon.

(2) After removal of any goods from customs control, no abatement of tax charged on the importation of such goods is to be allowed on account of loss or damage, or on account of any claim that the weight, measure, volume or value as determined by the proper officer of customs for the purpose of ascertaining the tax on such goods, or any other factor affecting the goods, is incorrect, unless written notice of the claim has been given to the Comptroller by the claimant at or before the time of the removal.

(3) In this regulation, “customs control” has the meaning given by section 3(2) of the Customs Act 1960.

Repayment of tax to persons in business overseas

42A.—(1) Where a taxable person (called in this regulation the importer) imports goods belonging to another person (called in this regulation the owner), the importer may make a claim to the Comptroller on behalf of the owner for the repayment of the tax paid on the importation of the goods if the following conditions are satisfied:

- (a) the owner is a person mentioned in paragraph (2);
- (b) the goods are imported only for any purpose specified in paragraph (3);
- (c) the importer satisfies paragraph (4).

(2) For the purposes of paragraph (1)(a), the owner must be a person —

- (a) who is carrying on a business in a country other than Singapore and does not belong in Singapore;
- (b) who is not a taxable person or is a registered (Seventh Schedule — pay only) person; and
- (c) who, if the owner had been a taxable person in Singapore and had imported the goods himself, herself or itself, would have incurred the tax on the importation of the goods as the owner’s input tax.

(3) For the purposes of paragraph (1)(b), the goods must be imported only for any of the following purposes:

- (a) being used as a tool or as machinery for the purpose of applying to goods or carrying out on goods a process where, following the process, the goods are supplied by the importer to the owner;
 - (b) in relation to goods that are parts or components, being installed or fitted onto a ship or an aircraft;
 - (c) storage in or transit through Singapore;
 - (d) forming the subject of any exhibition or convention;
 - (e) applying to goods or carrying out on goods any process;
 - (f) in relation to goods which are leased from the owner, being used in Singapore.
- (4) For the purpose of paragraph (1)(c), the importer must satisfy the following:
 - (a) the importer receives possession of the goods upon their importation;
 - (b) the importer —
 - (i) carries out any purpose specified in paragraph (3) in relation to the imported goods, and, after the purpose has been carried out, to the satisfaction of the Comptroller —
 - (A) in the case of any purpose mentioned in paragraph (3)(a), (c), (d) and (f) — exports the goods;
 - (B) in the case of the purpose mentioned in paragraph (3)(b) — installs or fits the goods onto a ship or an aircraft; and
 - (C) in the case of the purpose mentioned in paragraph (3)(e) — exports the goods to or on which the process has been applied or carried out; or
 - (ii) where, in order to carry out any purpose specified in paragraph (3) in relation to the goods, the goods are

required to be delivered to a third person, does the following to the satisfaction of the Comptroller:

- (A) delivers the goods to the third person;
- (B) after the purpose has been carried out, receives the goods (including, in the case of the purpose mentioned in paragraph (3)(e), the goods to or on which the process has been applied or carried out) back from the third person and —
 - (BA) in the case of any purpose mentioned in paragraph (3)(a), (c), (d) and (f) — exports the goods;
 - (BB) in the case of the purpose mentioned in paragraph (3)(b) — installs or fits the goods onto a ship or an aircraft; and
 - (BC) in the case of the purpose mentioned in paragraph (3)(e) — exports the goods to or on which the process has been applied or carried out;
- (c) for the purpose of paragraph (b), the importer ensures that the export, or the installation or fitting onto a ship or an aircraft (as the case may be) of the goods is carried out before —
 - (i) the expiry of 3 years (or such other period as may be determined by the Comptroller in any particular case) from and including the date the goods were first imported into Singapore under paragraph (1); or
 - (ii) the date the importer ceases to be a taxable person, whichever is the earlier;
- (d) the importer retains control over the imported goods (including, in the case of the purpose mentioned in paragraph (3)(e), the goods to or on which the process has been applied or carried out) at all times during the period when the goods are in Singapore;

- (e) the importer does not obtain re-imbursement of any tax paid by the importer in relation to the importation of the goods.

(5) Any importer making a claim for a repayment of tax under paragraph (1) must do so by including such amount of tax as input tax in the importer's return for the prescribed accounting period during which the goods were imported.

(6) Subject to paragraph (7), where an importer who has been repaid the tax —

- (a) made the importer's claim for the repayment using any false, misleading or inaccurate information; or

(b) fails to satisfy the conditions specified in paragraph (4),
the importer must —

- (c) pay to the Comptroller without demand the amount of tax repaid under paragraph (1); and

- (d) include the amount of tax in sub-paragraph (c) as output tax in the importer's return.

(7) The Comptroller may, in any case at the Comptroller's discretion, waive the application of paragraph (6) if the importer is able to satisfy the Comptroller —

- (a) that the importer disposed of the imported goods —

- (i) due to obsolescence or spoilage of the goods; or
 - (ii) on the instructions of the owner;

- (b) that the imported goods were lost or destroyed through fire, flood or theft;

- (c) that the importer supplied the imported goods (including, in the case of the purpose mentioned in paragraph (3)(e), the goods to or on which the process has been applied or carried out) on the instructions of the owner and the importer accounts for tax on the value of the supply pursuant to section 33(2) of the Act; or

- (d) that the importer supplied the imported goods at an exhibition or a convention and the importer accounts for tax on the value of the supply pursuant to section 33(2) of the Act.

(8) For the purpose of this regulation, a person must be treated as belonging in Singapore if —

- (a) the person has in Singapore a business establishment or some other fixed establishment and no such establishment elsewhere;
- (b) the person has no such establishment in any country but the person's usual place of residence is in Singapore; or
- (c) the person has such establishments both in Singapore and elsewhere and the person's establishment which is most directly concerned with the supply is in Singapore.

(9) For the purposes of paragraph (8) —

- (a) a person carrying on a business through a branch or an agency in any country must be treated as having a business establishment there; and
- (b) “usual place of residence”, in relation to a body corporate, means the place where it is incorporated or otherwise legally constituted.

(10) In this regulation —

“aircraft” and “ship” have the meanings given by section 21(4) of the Act;

“process”, in relation to goods, includes (but is not limited to) subjecting the goods to any treatment.

Claim for input tax on import of processed goods

42B.—(1) Subject to compliance with all conditions specified in paragraph (2) in the circumstances described in section 33B(1) of the Act, a taxable person may claim the tax paid or payable by the taxable person on the import of the goods back into Singapore as the taxable person's input tax under section 19 of the Act as if the whole of the input tax were allowable under section 20 of the Act.

(2) The conditions for the purposes of paragraph (1) are as follows:

- (a) the taxable person imports the goods back into Singapore within 6 months after the goods were removed from Singapore, or such longer period as the Comptroller may allow in any particular case;
- (b) the taxable person retains control over the goods from the time the taxable person's customer consigns the goods to the taxable person to the time the taxable person delivers the goods (after the goods are imported back into Singapore) to the taxable person's customer or to any other person in accordance with the instructions of the taxable person's customer;
- (c) the taxable person does not obtain reimbursement of the tax paid by the taxable person on the importation of the goods;
- (d) no process that is not part of the supply made by the taxable person to the taxable person's customer is applied to or carried out on the goods (including any process by which any additional goods are added to the goods);
- (e) the supply made by the taxable person to the taxable person's customer takes place before the taxable person ceases to be a taxable person;
- (f) the taxable person complies with regulation 61(1) and (2) in claiming the tax paid or payable on the importation of the goods as the taxable person's input tax;
- (g) the taxable person complies with all conditions or restrictions imposed by the Comptroller for the protection of revenue.

(3) Where the taxable person fails to satisfy any condition (including any condition subsequent) specified in paragraph (2), the taxable person must —

- (a) pay to the Comptroller without demand the amount of tax allowed to the taxable person under paragraph (1); and

- (b) include the amount mentioned in sub-paragraph (a) as output tax in the taxable person's return filed for the prescribed accounting period in which the taxable person fails to satisfy the condition.

Petroleum products removed from customs control

43.—(1) Subject to paragraph (2), where petroleum products under customs control are goods mentioned in section 37(1), (2)(a) or (3)(a) of the Act, the Comptroller may permit them to be removed from any specified warehouse into the customs territory without payment of tax subject to the following conditions:

- (a) the petroleum products are removed by a taxable person for the purpose of a business carried on by the taxable person;
- (b) the petroleum products are for the principal trade, profession or vocation of the taxable person;
- (c) such other conditions as the Comptroller may think fit to impose.

(2) The licensee of the specified warehouse from which the petroleum products are to be removed from customs control must verify that the taxable person removing the petroleum products satisfies the conditions under paragraph (1)(a) and (b) before allowing the removal.

(3) In this regulation, "specified warehouse" means any of the following:

- (a) a warehouse or other place licensed pursuant to regulations made under section 37(5)(b) of the Act;
- (b) a licensed warehouse as defined in section 3(1) of the Customs Act 1960 (including a place of manufacture licensed under section 63(1) of that Act).

Goods removed from bonded warehouse by persons approved under Major Exporter Scheme or Third Party Logistics Company Scheme

44.—(1) Without affecting regulation 100(3), a person who holds a licence for a bonded warehouse under regulation 94 (called in this

regulation the warehouse licensee) may allow goods to be removed from a bonded warehouse referred to in Part 14 without payment of tax if —

- (a) the person removing the goods is a person who has been granted approval under regulation 45 or 45A; and
- (b) the person is entitled to take possession of the goods.

(2) Despite regulation 100(4), where there is any deficiency in quantity that is indicated or ought to be indicated in the record of stock or inventory maintained in the bonded warehouse, the warehouse licensee is not liable for tax chargeable on so much of the goods as the warehouse licensee is able to show were removed by a person whom the warehouse licensee had verified to be a person mentioned in paragraph (1)(a) and (b).

(3) A verification referred to in paragraph (2) must be carried out in such manner as the Comptroller may require.

Major exporter scheme

45.—(1) A taxable person who is eligible under paragraph (4) may make an application to the Comptroller for goods outside Singapore which —

- (a) enter Singapore under customs control; and
- (b) are removed from customs control into the customs territory by the taxable person (and accordingly imported by the taxable person) in the course or furtherance of any business carried on by the taxable person,

not being goods which are subject to a duty (whether customs duty or excise duty or both), to be so removed without payment of the tax chargeable on the importation.

(2) The reference in paragraph (1) to goods that are imported by the taxable person in the course or furtherance of any business carried on by the taxable person includes goods which are consigned to the taxable person as recipient in order for the taxable person to make supplies (other than supplies referred to in section 22 of the Act) using or in relation to those goods, if the conditions mentioned in regulation 42A(1)(a), (b) and (c) are satisfied, with —

(a) the reference to the owner in that regulation read as a reference to the person who consigned the goods to the taxable person; and

(b) the reference to the importer in that regulation read as a reference to the taxable person.

(3) The reference in paragraph (1) to goods that are imported by a taxable person in the course or furtherance of any business carried on by the taxable person includes goods in respect of which that taxable person would be entitled to claim the tax paid or payable on the importation of the goods as input tax under regulation 42B.

(4) A taxable person is eligible to make an application under paragraph (1) if the taxable person satisfies the Comptroller that —

(a) the amount or proportion of goods exported or to be exported by the taxable person or the value of supplies of international services made or to be made by the taxable person within the meaning of section 21(3) of the Act satisfies such requirement as the Comptroller may determine;

(b) the taxable person's accounting and internal control systems are able to meet such accounting and auditing standards as the Comptroller may require;

(c) the taxable person has faithfully observed and complied with all duties and obligations relating to the taxable person's liability to pay customs and excise duties, income tax, property tax and goods and services tax; and

(d) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of the revenue.

(5) A taxable person must not provide the Comptroller with any false, misleading or inaccurate declaration or information in the taxable person's application under paragraph (1).

(6) The Comptroller may, on an application made under paragraph (1), approve the application on such conditions as the Comptroller may, in the Comptroller's discretion, impose and may

require the applicant to furnish security in such form and amount and to make arrangements for the payment of tax as the Comptroller may determine.

(7) The applicant must comply with all conditions imposed by the Comptroller under paragraph (6).

(8) The Comptroller may, at any time, by written notice, vary or revoke any approval granted under this regulation if the Comptroller is satisfied that the taxable person —

- (a) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (6);
- (b) has at any time ceased to satisfy any of the requirements for eligibility under paragraph (4); or
- (c) has provided any false, misleading or inaccurate declaration or information in the taxable person's application under paragraph (1).

(9) A taxable person to whom approval has been granted under this regulation must not use the approval, and must take all steps to ensure that no other person uses the approval (whether on behalf of the taxable person or otherwise), except for the purposes for which the approval was granted.

(10) A taxable person to whom approval has been granted under this regulation must immediately notify the Comptroller of any change in particulars furnished, the security given, or the arrangements for the payment of tax.

(11) Subject to paragraph (8), an approval granted under paragraph (6) has effect for a period of 3 years beginning on the date on which the approval is to take effect and the Comptroller may, in the Comptroller's discretion, extend the period to which the approval relates.

(12) Unless the Comptroller otherwise allows or directs, even though no tax is payable, a taxable person to whom approval has been granted under this regulation in relation to paragraph (1) must account for the tax chargeable on the taxable person's importation of goods.

(13) Where the taxable person approved by the Comptroller —

- (a) fails to comply with any condition or requirement imposed by the Comptroller under paragraph (6); or
- (b) in relation to the goods mentioned in paragraph (3), fails to satisfy any condition specified in regulation 42B(2)(a) to (e) and (g),

the taxable person must, unless otherwise allowed by the Comptroller —

- (c) pay to the Comptroller without demand the amount of tax chargeable on the importation to which the failure to comply relates; and
- (d) include the amount of tax mentioned in sub-paragraph (c) as output tax in the taxable person's return.

Approved Third Party Logistics Company Scheme

45A.—(1) A taxable person who is eligible under paragraph (4) may make an application to the Comptroller for goods outside Singapore which —

- (a) enter Singapore under customs control; and
- (b) are removed from customs control into the customs territory by the taxable person (and accordingly imported by the taxable person) in the course or furtherance of any business carried on by the taxable person,

not being goods which are subject to a duty (whether customs duty or excise duty or both), to do any of the following:

- (c) remove those goods without payment of the tax chargeable on the importation;
- (d) remove those goods and supply them to a specified person, without payment of the tax chargeable on the importation and on the supply.

(2) The reference in paragraph (1) to goods that are imported by the taxable person in the course or furtherance of any business carried on by the taxable person includes goods which are consigned to the

taxable person as recipient in order for the taxable person to make supplies (other than supplies referred to in section 22 of the Act) using or in relation to those goods, if the conditions mentioned in regulation 42A(1)(a), (b) and (c) are satisfied, with —

- (a) the reference to the owner in that regulation read as a reference to the person who consigned the goods to the taxable person; and
 - (b) the reference to the importer in that regulation read as a reference to the taxable person.
- (3) Every application under paragraph (1) must —
- (a) be made on such form as the Comptroller may determine; and
 - (b) give a full and true account of the particulars or information for which the provision is made in the form.
- (4) A taxable person is eligible to make an application under paragraph (1) if the taxable person satisfies the Comptroller that —
- (a) the amount or proportion of goods exported by the taxable person and the value of supplies of international services made by the taxable person within the meaning of section 21(3) of the Act satisfy such requirements as the Comptroller may determine;
 - (b) the taxable person's business is substantially with a specified person;
 - (c) the taxable person's accounting and internal control systems are able to meet such accounting standards as the Comptroller may require; and
 - (d) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of the revenue.
- (5) A taxable person must not provide the Comptroller with any false, misleading or inaccurate declaration or information in the taxable person's application under paragraph (1).

(6) The Comptroller may, on an application made under paragraph (1), approve the application on such conditions or requirements as the Comptroller may, in the Comptroller's discretion, impose.

(7) The applicant must comply with all conditions and requirements imposed by the Comptroller under paragraph (6).

(8) The Comptroller may, in granting approval under paragraph (6), require the applicant to furnish security in such form and amount and to make arrangements for the payment of tax as the Comptroller may determine.

(9) Subject to paragraph (16), an approval granted under paragraph (6) has effect for a period of 3 years beginning on the date on which the approval is to take effect and the Comptroller may, in the Comptroller's discretion, vary the period to which the approval relates.

(10) A taxable person to whom approval has been granted under this regulation must not use the approval, and must take all steps to ensure that no other person uses the approval (whether on behalf of the taxable person or otherwise), except for the purposes for which the approval was granted.

(11) A taxable person to whom approval has been granted under this regulation must immediately notify the Comptroller of any change in particulars furnished, the security given, or the arrangements for the payment of tax.

(12) Unless the Comptroller otherwise allows or directs, even though no tax is payable —

- (a) a taxable person to whom approval has been granted under this regulation in relation to paragraph (1)(c) or (d) must account for the tax chargeable on the taxable person's importation of goods; and
- (b) a taxable person to whom approval has been granted under this regulation in relation to paragraph (1)(d) must account for the tax chargeable on the taxable person's supply of the goods to the specified person.

(13) Unless the Comptroller otherwise allows or directs, a specified person who receives goods under paragraph (1)(d) must account for tax as if the specified person had himself, herself or itself imported the goods in the course or furtherance of the specified person's business, together with the tax chargeable on the supply of those goods by the specified person to some other person.

(14) For the purposes of paragraphs (12)(b) and (13), the supply of goods under paragraph (1)(d) is treated as taking place at the earliest of the following times:

- (a) whenever a payment in respect of the supply is made;
- (b) whenever the goods are made available to or received by the specified person;
- (c) whenever the specified person receives an invoice relating to the supply.

(15) For the purposes of this regulation, the enforcement of any obligation to account for tax applies to any person who is required under paragraph (12) or (13) to account for tax.

(16) The Comptroller may, at any time, by written notice, vary or revoke any approval granted under this regulation if the Comptroller is satisfied that the taxable person —

- (a) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (6) or (8);
- (b) has at any time ceased to satisfy any of the requirements for eligibility under paragraph (4); or
- (c) has provided any false, misleading or inaccurate declaration or information in the taxable person's application under paragraph (3).

(17) Unless the Comptroller otherwise allows, where the taxable person approved by the Comptroller fails to comply with any condition or requirement imposed by the Comptroller under paragraph (6) or (8), the taxable person must —

- (a) pay to the Comptroller without demand the amount of tax chargeable on the importation or the supply (as the case may be) to which the failure to comply relates; and

- (b) include the amount of tax mentioned in sub-paragraph (a) as output tax in the taxable person's return.
- (18) In this regulation, "specified person" means —
 - (a) a taxable person approved under this regulation or regulation 45;
 - (b) a taxable person approved under regulation 45C; or
 - (c) an approved contract manufacturer as defined in regulation 46.

Approved Marine Fuel Trader Scheme

45B.—(1) Subject to this regulation, a supply of specified goods by any taxable person to another taxable person who is an approved person may be made without payment of the tax chargeable on the supply.

(2) Any taxable person who wishes to be an approved person for the purpose of paragraph (1) may make an application to the Comptroller for such approval if the taxable person is eligible to do so under paragraph (4).

(3) Every application under paragraph (2) must —

- (a) be made on such form as the Comptroller may determine; and
- (b) give a full and true account of the particulars or information for which the provision is made in the form.

(4) A taxable person is eligible to make an application under paragraph (2) if the taxable person satisfies the Comptroller that —

- (a) the taxable person makes substantial supplies of specified goods in the course or furtherance of the taxable person's business and satisfies such requirements as the Comptroller may determine;
- (b) the taxable person's accounting and internal control systems are able to meet such accounting standards as the Comptroller may require;

- (c) the taxable person has faithfully observed and complied with all duties and obligations relating to the taxable person's liability to pay customs and excise duties, income tax, property tax and goods and services tax; and
- (d) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of the revenue.

(5) The Comptroller may, on an application made under paragraph (2), approve the application on such conditions or requirements as the Comptroller may, in the Comptroller's discretion, impose.

(6) The Comptroller may, in granting approval under paragraph (5), require the applicant to furnish security in such form and amount and to make arrangements for the payment of taxes as the Comptroller may determine.

(7) Subject to paragraph (11), an approval granted under paragraph (5) has effect for a period of 3 years beginning on the date on which the approval is to take effect and the Comptroller may, in the Comptroller's discretion, vary or extend the period to which the approval relates.

(8) An approved person must immediately notify the Comptroller of any change in particulars furnished, the security given, or the arrangements for the payment of taxes.

(9) Unless the Comptroller otherwise allows or directs, even though no tax is payable, a taxable person making a supply of specified goods to an approved person must declare the value of the supply of the specified goods in the taxable person's return furnished under regulation 52 for the period during which the supply was made.

(10) For the purposes of paragraph (9) and except as the Comptroller may otherwise allow, the taxable person making a supply of specified goods to an approved person must issue and provide a tax invoice in accordance with these Regulations and with such annotation as the Comptroller may require.

(11) The Comptroller may, at any time, by written notice, vary or revoke any approval granted under this regulation if the Comptroller is satisfied that the approved person —

- (a) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (5);
- (b) has at any time ceased to satisfy any of the requirements for eligibility under paragraph (4); or
- (c) has provided any false, misleading or inaccurate declaration or information in the approved person's application under paragraph (3).

(12) Where any approved person —

- (a) no longer satisfies any of the requirements for eligibility under paragraph (4); or
- (b) fails to comply with any condition or requirement imposed by the Comptroller under paragraph (5),

the approved person must —

- (c) pay to the Comptroller without demand the amount of tax on the value of the supply to which the failure to comply relates; and
- (d) include the amount of tax on the value of the supply which the approved person is required to pay under sub-paragraph (c) as output tax in the approved person's return.

(13) In this regulation —

“approved person” means a taxable person whose application to be an approved person has been granted by the Comptroller under paragraph (5);

“specified goods” means marine fuel oil for use by any ocean-going vessel in its engine.

Approved import tax suspension scheme

45C.—(1) A taxable person may apply to the Comptroller to be an approved person under this regulation, and the Comptroller may

approve such application if the taxable person satisfies the Comptroller that —

- (a) the taxable person is in the aerospace industry;
- (b) the taxable person makes substantial supplies in the course or furtherance of the taxable person's business and satisfies such requirements as the Comptroller may determine;
- (c) the taxable person's accounting and internal control systems are able to meet such accounting standards as the Comptroller may require; and
- (d) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of revenue.

(2) Subject to paragraph (5) —

- (a) goods outside Singapore (other than qualifying aircraft parts) which —

- (i) enter Singapore under customs control; and
 - (ii) are removed from customs control into the customs territory by an approved person (and accordingly imported by the approved person) in the course or furtherance of any business carried on by the approved person,

not being goods which are subject to a duty (whether customs duty or excise duty or both), may be so removed without payment of the tax chargeable on the importation; and

- (b) qualifying aircraft parts which —

- (i) enter customs control; and
 - (ii) are removed from customs control into the customs territory by an approved person (and accordingly imported by the approved person) in the course or furtherance of any business carried on by the approved person,

not being goods which are subject to a duty (whether customs duty or excise duty or both), may be so removed without payment of the tax chargeable on the importation.

(3) The reference in paragraph (2)(a) to goods that are imported by the approved person in the course or furtherance of any business carried on by the approved person includes goods which are consigned to the approved person as recipient in order for the approved person to make supplies (other than supplies referred to in section 22 of the Act) using or in relation to those goods, if the conditions mentioned in regulation 42A(1)(a), (b) and (c) are satisfied, with —

- (a) the reference to the owner in that regulation read as a reference to the person who consigned the goods to the taxable person; and
- (b) the reference to the importer in that regulation read as a reference to the approved person.

(4) The reference in paragraph (2)(b) to qualifying aircraft parts that are imported by the approved person in the course or furtherance of any business carried on by the approved person includes qualifying aircraft parts which are consigned to the approved person as recipient in order for the approved person to make supplies (other than supplies referred to in section 22 of the Act) using or in relation to those goods.

(5) Paragraph (2) does not apply if, at the time of the importation in question, the approved person does not satisfy the requirement set out in paragraph (1)(a).

(6) Every application made under paragraph (1) must —

- (a) be made in such form as the Comptroller may determine; and
- (b) give a full and true account of the particulars or information furnished.

(7) The Comptroller may approve an application made under paragraph (1) on such conditions or with such requirements as the Comptroller may, in the Comptroller's discretion, impose.

(8) The Comptroller may, in granting approval under paragraph (1), require the approved person to —

- (a) furnish security in such form and amount; and
- (b) make arrangements for the payment of tax,

as the Comptroller may determine.

(9) An approval granted under paragraph (1) has effect for such period as the Comptroller may determine.

(10) Unless the Comptroller otherwise allows or directs, even though no tax is payable, an approved person must account for the importation of goods in the approved person's return made under the Act for the period in which the importation occurred.

(11) An approved person must immediately notify the Comptroller of any change in particulars furnished, the security given, or the arrangements for the payment of tax.

(12) The Comptroller may, at any time, by written notice, vary or revoke any approval granted under this regulation if the Comptroller is satisfied that the approved person —

- (a) has at any time ceased to satisfy any of the requirements for eligibility under paragraph (1);
- (b) has provided any false, misleading or inaccurate declaration or information in the approved person's application under paragraph (1);
- (c) has failed to account for or pay tax on any importation by the approved person on the basis that the importation fell within paragraph (2) when the importation did not fall within that paragraph; or
- (d) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (7).

(13) Unless the Comptroller otherwise allows, where the approved person fails to account for or pay tax on any importation by the approved person on the basis that the importation falls within paragraph (2) when —

- (a) the importation does not fall within paragraph (2); or

- (b) paragraph (2) does not, by virtue of paragraph (5), apply to the importation,

the approved person must —

- (c) pay to the Comptroller without demand an amount equal to the tax which would, but for this regulation, have been chargeable on the importation (as the case may be) to which the failure to comply relates; and
- (d) include the amount of tax as output tax in the approved person's return.

(14) In this regulation —

“approved person” means a taxable person whose application to be an approved person has been granted by the Comptroller under paragraph (1);

“qualifying aircraft parts” has the meaning given by section 21(4)(a) of the Act.

Import Goods and Services Tax Deferment Scheme

45D.—(1) A taxable person who is eligible under paragraph (4) may make an application to the Comptroller —

- (a) for goods outside Singapore which —

- (i) enter Singapore under customs control; and
- (ii) are removed from customs control into the customs territory by the taxable person (and accordingly imported by the taxable person) in the course or furtherance of any business carried on by the taxable person,

to be so removed even though the tax chargeable on the importation has yet to be paid; and

- (b) for the taxable person to account for the tax chargeable on the importation of the goods in the return of the taxable person relating to the prescribed accounting period in which the removal of the goods took place, and pay the same to the Comptroller.

(2) The reference in paragraph (1)(a) to goods that are imported by the taxable person in the course or furtherance of any business carried on by the taxable person includes goods which are consigned to the taxable person as recipient in order for the taxable person to make supplies (other than supplies referred to in section 22 of the Act) using or in relation to those goods, if the conditions mentioned in regulation 42A(1)(a), (b) and (c) are satisfied, with —

- (a) the reference to the owner in that regulation read as a reference to the person who consigned the goods to the taxable person; and
- (b) the reference to the importer in that regulation read as a reference to the taxable person.

(3) The reference in paragraph (1) to goods that are imported by a taxable person in the course or furtherance of any business carried on by the taxable person includes goods in respect of which that taxable person would be entitled to claim the tax paid or payable on the importation of the goods as input tax under regulation 42B.

(4) A taxable person is eligible to make an application under paragraph (1) if the taxable person satisfies the Comptroller that —

- (a) the taxable person's accounting and internal control systems are able to meet such accounting and auditing standards as the Comptroller may require;
- (b) the taxable person has faithfully observed and complied with all duties and obligations relating to the taxable person's liability to pay customs and excise duties, income tax, property tax and goods and services tax;
- (c) the taxable person has been allowed or directed by the Comptroller to furnish returns in respect of periods of one month under regulation 52(3)(a)(i); and
- (d) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of revenue.

(5) Every application made under paragraph (1) —

- (a) must be made in such form and manner as the Comptroller may determine; and
- (b) must not include any false, misleading or inaccurate declaration or information.

(6) The Comptroller may, on an application made under paragraph (1), approve the application on such conditions or with such requirements as the Comptroller may, in the Comptroller's discretion, impose.

(7) The taxable person must comply with all conditions and requirements imposed by the Comptroller under paragraph (6).

(8) The Comptroller may require the taxable person to furnish security in such form and amount and to make arrangements for the payment of tax as the Comptroller may determine.

(9) An approval granted under paragraph (6) has effect for such period as the Comptroller may determine.

(10) The Comptroller may, at any time, by written notice, vary or revoke any approval granted under this regulation if the Comptroller is satisfied that the taxable person —

- (a) has provided any false, misleading or inaccurate declaration or information in the taxable person's application under paragraph (1);
- (b) has at any time ceased to satisfy any of the requirements for eligibility under paragraph (4); or
- (c) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (6).

(11) In a prescribed accounting period, a taxable person to whom approval has been granted under this regulation must —

- (a) account for tax on the taxable person's importation of goods removed in the prescribed accounting period; and
- (b) pay the tax, except that, where the amount of the tax exceeds such amount of credit or excess owing to the taxable person by the Comptroller under section 19(5) of

the Act, the taxable person must pay to the Comptroller the difference between the 2 amounts.

(12) A taxable person to whom approval has been granted under this regulation must not use the approval, and must take all steps to ensure that no other person uses the approval (whether on behalf of the taxable person or otherwise), except for the purposes for which the approval was granted.

(13) A taxable person to whom approval has been granted under this regulation must immediately notify the Comptroller of any change relating to particulars or information furnished in respect of the taxable person's application made under paragraph (1).

(14) Unless the Comptroller otherwise allows, where a taxable person to whom approval has been granted under this regulation —

- (a) ceases to satisfy any of the requirements for eligibility under paragraph (4);
- (b) in relation to the goods referred to in paragraph (3), fails to satisfy any condition specified in regulation 42B(2)(a) to (e) and (g) in relation to those goods;
- (c) fails to comply with any condition or requirement imposed by the Comptroller under paragraph (6); or
- (d) fails to account for the tax chargeable on the importation of the goods in accordance with paragraph (11),

the taxable person must immediately, and without demand, pay to the Comptroller the tax chargeable that is not accounted for.

Approved contract manufacturer and trader scheme

46.—(1) A taxable person may apply to the Comptroller to be an approved contract manufacturer, and the Comptroller may approve such application if the taxable person satisfies the Comptroller that —

- (a) the taxable person is in an industry approved by the Comptroller to apply to or carry out on goods any process under a contract with and directly benefitting an overseas person;

(b) the total value of the supplies made by the taxable person comprising the processing of those goods under a contract with and directly benefitting an overseas person —

(i) is not less than such amount as the Comptroller may determine; or

(ii) is not less than such proportion of the annual turnover of the taxable person as the Comptroller may determine;

(c) the total amount or proportion of specified goods which are —

(i) exported by the taxable person; or

(ii) delivered by the taxable person to an approved person,

is not less than such amount or proportion as the Comptroller may determine;

(d) the taxable person's accounting and internal control systems meet such accounting standards as the Comptroller may require; and

(e) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of revenue.

(2) Subject to paragraph (5), where a taxable person is an approved contract manufacturer —

(a) goods from outside Singapore which —

(i) enter Singapore under customs control; and

(ii) are removed from customs control into the customs territory by the taxable person (and accordingly imported by the taxable person) in the course or furtherance of any business carried on by the taxable person,

not being goods which are subject to a duty (whether customs duty or excise duty or both), may be removed

without payment of the tax chargeable on the importation of the goods; and

- (b) the supplies that the taxable person makes, which comprise any process being applied to or carried out on goods under a contract with and directly benefitting an overseas person, must be disregarded for the purposes of the Act if the Comptroller is satisfied that, after the process has been applied to or carried out on the goods —

- (i) the taxable person —

- (A) delivers the goods to an approved person or to a customer of the overseas person; or

- (B) exports the goods; or

- (ii) where the goods are of an unsatisfactory standard or quality or are in excess of the amount required, the taxable person or any other person destroys or disposes of the goods.

(3) The reference in paragraph (2)(a) to goods that are imported by the taxable person in the course or furtherance of any business carried on by the taxable person includes goods which are consigned to the taxable person as recipient —

- (a) in order for the taxable person to make supplies (other than supplies referred to in section 22 of the Act) using or in relation to those goods, if the conditions of regulation 42A(1)(a), (b) and (c) are satisfied, with —

- (i) the reference to owner in that regulation read as a reference to the person who consigned the goods to the taxable person; and

- (ii) the reference to importer in that regulation read as a reference to the taxable person; and

- (b) for the purposes of applying to or carrying out on goods any process under a contract with and directly benefitting an overseas person and, after application or carrying out of the process, the goods are, to the satisfaction of the Comptroller —

- (i) exported by the taxable person;
- (ii) delivered by the taxable person to an approved person or to a customer of the overseas person; or
- (iii) where the goods are of an unsatisfactory standard or quality or are in excess of the amount required, destroyed or disposed of by the taxable person or any other person.

(4) The reference in paragraph (2)(a) to goods that are imported by a taxable person in the course or furtherance of any business carried on by the taxable person includes goods in respect of which that taxable person would be entitled to claim the tax paid or payable on the importation of the goods as input tax under regulation 42B.

(5) Paragraph (2) does not apply if, at the time of the importation or supply in question, the taxable person does not satisfy the requirement set out in paragraph (1)(a).

(6) Where —

- (a) goods are supplied to an overseas person in Singapore and delivered to an approved contract manufacturer for the purposes of applying to or carrying out on the goods any process under a contract with and directly benefitting an overseas person; and
- (b) after the process has been applied to or carried out on the goods —
 - (i) the approved contract manufacturer delivers the goods to an approved person or to a customer of the overseas person;
 - (ii) the approved contract manufacturer exports the goods; or
 - (iii) the approved contract manufacturer or any other person destroys or disposes of the goods, where the goods are of an unsatisfactory standard or quality or are in excess of the amount required,

to the satisfaction of the Comptroller, then the goods are treated as having been supplied to the approved contract manufacturer in the

course or furtherance of the approved contract manufacturer's business.

(7) Where paragraph (6) applies, the approved contract manufacturer is also entitled to claim under section 19 of the Act a deduction of input tax on the deemed supply referred to in paragraph (6) as if the whole of the input tax were allowable under section 20 of the Act, if —

- (a) the approved contract manufacturer pays the tax on the deemed supply of goods; or
- (b) the overseas person pays the tax on the supply of goods to the overseas person in Singapore, and the approved contract manufacturer makes a refund to the overseas person of the amount of the tax.

(8) A taxable person may apply to the Comptroller to be an approved logistics company, and the Comptroller may approve such application if the taxable person satisfies the Comptroller that —

- (a) the taxable person is appointed as an agent of an overseas person for the purpose of distributing specified goods;
- (b) the taxable person receives specified goods from an approved contract manufacturer which the taxable person subsequently —
 - (i) delivers on behalf of the overseas person to another approved contract manufacturer or a customer of the overseas person; or
 - (ii) exports;
- (c) the total amount or proportion of the specified goods received by the taxable person and which is exported by the taxable person is not less than such amount or proportion as the Comptroller may determine;
- (d) the taxable person's accounting and internal control systems meet such accounting standards as the Comptroller may require; and

- (e) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of revenue.
- (9) Every application made under paragraph (1) or (8) must —
 - (a) be made in such form as the Comptroller may determine; and
 - (b) give a full and true account of the particulars or information furnished.
- (10) The Comptroller may approve an application made under paragraph (1) or (8) on such conditions or with such requirements as the Comptroller may, in the Comptroller's discretion, impose.
- (11) The Comptroller may, in granting approval under paragraph (1) or (8), require the taxable person to —
 - (a) furnish security in such form and amount; and
 - (b) make arrangements for the payment of tax,as the Comptroller may determine.
- (12) An approval granted under paragraph (1) or (8) has effect for such period as the Comptroller may determine.
- (13) An approved person must immediately notify the Comptroller of any change in particulars furnished, the security given, or the arrangements for the payment of tax.
- (14) Unless the Comptroller otherwise allows or directs, even though no tax is payable, an approved contract manufacturer must account for the importation of goods in the approved contract manufacturer's return made under the Act for the period in which the importation occurred.
- (15) Where an approved contract manufacturer receives specified goods from an approved person, the approved contract manufacturer must account for and pay the tax as if the approved contract manufacturer had himself, herself or itself supplied the goods in the course or furtherance of the approved contract manufacturer's business.

(16) Where an approved logistics company receives specified goods from an approved contract manufacturer, the approved logistics company must account for and pay the tax as if the approved logistics company had himself, herself or itself supplied the goods in the course or furtherance of the approved logistics company's business.

(17) For the purposes of paragraphs (15) and (16) —

- (a) the supply of the specified goods must be regarded as taking place whenever the approved contract manufacturer or approved logistics company (as the case may be) receives the goods; and
- (b) the value of the goods is —
 - (i) where known, the market value of the goods; or
 - (ii) where the market value of the goods is not known, a value determined by the Comptroller.

(18) Unless the Comptroller otherwise allows, where a process has been applied to or carried out on goods by an approved contract manufacturer under a contract with and directly benefitting an overseas person, and —

- (a) the approved contract manufacturer delivers the goods on behalf of the overseas person to a customer of the overseas person;
- (b) an approved logistics company (having received the goods from the approved contract manufacturer) delivers the goods on behalf of the overseas person to a customer of the overseas person; and
- (c) where the goods are of an unsatisfactory standard or quality or are in excess of the amount required, the goods are destroyed or disposed of by the approved person or any other person, and consideration is received by the approved person or the overseas person upon the destruction or disposal,

then the approved person must account for and pay the tax on the supply of goods in substitution for the overseas person.

(19) For the purpose of paragraph (18), the time of supply of the specified goods must be treated as taking place at the earliest of the following times:

- (a) whenever the goods are delivered to the customer of the overseas person;
- (b) whenever the approved person receives payment in respect of the supply;
- (c) whenever the approved person issues an invoice relating to the supply;
- (d) in the case of goods that are of an unsatisfactory standard or quality or are in excess of the amount required, whenever the approved person or overseas person receives the consideration upon the destruction or disposal of the goods.

(20) For the purposes of this regulation, the enforcement of any obligation to account for and pay tax applies to any taxable person who is required under this regulation to account for and pay any tax as if that were a tax on a supply made by the taxable person.

(21) The Comptroller may, at any time, by written notice, vary or revoke the approval of an approved person granted under this regulation if the Comptroller is satisfied that —

- (a) the approved person has ceased to satisfy any of the requirements under paragraph (1) or (8), as the case may be;
- (b) the approved person has provided any false, misleading or inaccurate declaration or information in the approved person's application under paragraph (1) or (8), as the case may be;
- (c) the approved person has failed to account for or pay tax on any importation or supply by the approved person on the basis that the importation or supply fell within paragraph (2), when the importation or supply did not fall within that paragraph;

- (d) the approved person has made an incorrect claim for deduction of input tax in contravention of paragraph (6), or has failed to comply with paragraph (15), (16) or (18), as the case may be; or
- (e) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (10).

(22) Unless the Comptroller otherwise allows, where —

- (a) an approved contract manufacturer fails to account for or pay tax on any importation or supply by the approved contract manufacturer on the basis that the importation or supply falls within paragraph (2), when —
 - (i) the importation or supply does not fall within paragraph (2); or
 - (ii) paragraph (2) does not, by virtue of paragraph (5), apply to the importation or supply;
- (b) in relation to the goods referred to in paragraph (4), an approved contract manufacturer fails to satisfy any condition specified in regulation 42B(2)(a) to (e) and (g); or
- (c) an approved person fails to account for or pay tax on the supply of specified goods to the customer of an overseas person under paragraph (18),

then —

- (d) the approved contract manufacturer or approved person in the circumstances referred to in sub-paragraph (a)(i) or (c), as the case may be; and
- (e) unless the Comptroller otherwise allows, the approved contract manufacturer in the circumstances referred to in sub-paragraph (a)(ii),

must —

- (f) repay the Comptroller without demand the amount of tax chargeable on the importation or the supply (as the case may be) to which the failure relates; and

- (g) include the amount of tax mentioned in sub-paragraph (a) or sub-paragraph (c) or sub-paragraphs (a) and (c) (as the case may be) as output tax in the approved contract manufacturer's or the approved person's return.

(23) Where specified goods are not exported, an approved person who receives the goods from another approved person must deliver the goods only to a person who is —

- (a) an approved person or a customer of the overseas person; or
- (b) where the goods are of an unsatisfactory standard or quality or are in excess of the amount required, a person for the intended destruction or disposal of such goods.

(24) Where an approved person contravenes paragraph (23), the approved person must pay to the Comptroller an amount equal to the tax that would have been payable as if the approved person had himself, herself or itself made a supply of the goods in the course or furtherance of the approved person's business and for this purpose, the value of the goods is taken to be —

- (a) where known, the market value of the goods; or
- (b) where the market value of the goods is not known, a value determined by the Comptroller.

(25) An approved person mentioned in paragraph (24) must include the amount the approved person is required to pay under that paragraph as output tax in the approved person's return.

(26) In this regulation —

“approved contract manufacturer” means —

- (a) a taxable person whose application to be an approved contract manufacturer has been granted by the Comptroller under paragraph (1); and
- (b) any taxable person approved under regulation 46 in force immediately before 1 January 2010;

“approved logistics company” means a taxable person whose application to be an approved logistics company has been granted by the Comptroller under paragraph (8);

“approved person” means an approved contract manufacturer or an approved logistics company, as the case may be;

“customer”, in relation to an overseas person, means a person to whom the overseas person supplies specified goods;

“overseas person” means a person who belongs in a country other than Singapore who is not registered under the Act or is a registered (Seventh Schedule — pay only) person;

“process”, in relation to goods, includes (but is not limited to) subjecting the goods to any treatment;

“specified goods” means goods to or on which a process has been applied or carried out.

Approved refiner and consolidator scheme

46A.—(1) A taxable person may apply to the Comptroller to be an approved refiner, and the Comptroller may approve such application if the taxable person satisfies the Comptroller —

(a) that the taxable person is a refiner who —

- (i) in the case of gold or silver, is in the “Good Delivery” list of the London Bullion Market Association;
- (ii) in the case of platinum, is in the “Good Delivery” list of the London Platinum and Palladium Market;
- (iii) in the case of gold, silver or platinum —
 - (A) intends to be on the “Good Delivery” list of the London Bullion Market Association or the London Platinum and Palladium Market, as the case may be; and
 - (B) is endorsed by the Enterprise Singapore Board established by section 3 of the Enterprise Singapore Board Act 2018 at the time of the taxable person’s application; or

- (iv) is in the business of minting coins that are investment precious metals;
 - (b) that the taxable person —
 - (i) in the case of a refiner mentioned in sub-paragraph (a)(i), (ii) or (iii), makes or intends to make —
 - (A) substantial supplies of investment precious metals directly following the refinement of goods into such metals;
 - (B) substantial supplies comprising the refining of goods into investment precious metals; or
 - (C) substantial supplies comprising the supplies mentioned in sub-paragraphs (A) and (B),
in the course or furtherance of the taxable person's business, and satisfies such requirements as the Comptroller may determine; or
 - (ii) in the case of a refiner mentioned in sub-paragraph (a)(iv), satisfies such requirements as the Comptroller may determine;
 - (c) that the taxable person's accounting, inventory and internal control systems meet such accounting standards as the Comptroller may require; and
 - (d) that the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of revenue.
- (2) A taxable person may apply to the Comptroller to be an approved consolidator, and the Comptroller may approve such application if the taxable person satisfies the Comptroller —
- (a) that the taxable person —
 - (i) directly supplies goods to a refiner who is on the “Good Delivery” list of the London Bullion Market Association or the London Platinum and Palladium Market (as the case may be) or is endorsed by the

Enterprise Singapore Board, for the purpose of the refiner refining the goods into investment precious metals; or

(ii) directly delivers goods to a refiner who is on the “Good Delivery” list of the London Bullion Market Association or the London Platinum and Palladium Market (as the case may be) or is endorsed by the Enterprise Singapore Board, under an arrangement with the refiner to refine the goods for the taxable person into investment precious metals;

(b) that the taxable person’s accounting, inventory and internal control systems meet such accounting standards as the Comptroller may require; and

(c) that the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of revenue.

(3) Every application under paragraph (1) or (2) must —

(a) be made in such form as the Comptroller may determine; and

(b) give a full and true account of the particulars or information furnished.

(4) The Comptroller may approve an application made under paragraph (1) or (2) on such conditions or with such requirements as the Comptroller may, in the Comptroller’s discretion, impose.

(5) The Comptroller may, in granting approval under paragraph (1) or (2), require the taxable person to furnish security in such form and amount, and make arrangements for the payment of tax, as the Comptroller may determine.

(6) An approval granted under paragraph (1) or (2) has effect for such period as the Comptroller may determine.

(7) An approved person must —

(a) notify the Comptroller of any change in the particulars or information furnished, the security given, or the

arrangements for the payment of tax, immediately upon the change; and

- (b) notify the Comptroller if the approved person fails to satisfy any requirement specified in paragraph (1) or (2) (as the case may be) within a period of 30 days commencing on the day after the day of the approved person's failure to satisfy.

(8) Subject to paragraph (11), where a taxable person is an approved refiner and (unless the Comptroller otherwise allows) the taxable person satisfies the requirements specified in paragraph (1) —

- (a) goods from outside Singapore, not being goods which are subject to a duty (whether customs duty or excise duty or both), which —
 - (i) enter Singapore under customs control; and
 - (ii) are removed from customs control into the customs territory by the taxable person (and accordingly imported by the taxable person),

in the course or furtherance of any business carried on by the taxable person, or consigned to the taxable person by an overseas person for the purpose of refining them into investment precious metals or precious metals, may be removed without payment of the tax chargeable on the importation of such goods; and

- (b) goods may be supplied in the course or furtherance of any business carried on by the taxable person to another approved person without payment of the tax chargeable on the supply.

(9) The reference in paragraph (8)(a) to goods that are imported by the taxable person in the course or furtherance of any business carried on by the taxable person includes goods which are consigned to the taxable person as recipient in order for the taxable person to make supplies using or in relation to those goods, if the conditions mentioned in regulation 42A(1)(a), (b) and (c) are satisfied, with —

(a) the reference to the owner in that regulation read as a reference to the person who consigned the goods to the taxable person; and

(b) the reference to the importer in that regulation read as a reference to the taxable person.

(10) The reference in paragraph (8)(a) to goods that are imported by a taxable person in the course or furtherance of any business carried on by the taxable person includes goods in respect of which that taxable person would be entitled to claim the tax paid or payable on the importation of the goods as input tax under regulation 42B.

(11) A supply of goods referred to in paragraph (8)(b) does not include a supply that is treated as a supply of such goods pursuant to paragraph 2 of the Second Schedule to the Act (on which latter supply tax continues to be payable).

(12) Where a taxable person is an approved consolidator and (unless the Comptroller otherwise allows) the taxable person satisfies the requirements specified in paragraph (2) —

(a) goods from outside Singapore belonging to the taxable person or consigned to the taxable person by an overseas person, not being goods which are subject to a duty (whether customs duty or excise duty or both), which —

(i) enter Singapore under customs control; and

(ii) are removed from customs control into the customs territory by the taxable person (and accordingly imported by the taxable person),

and are to be directly supplied or delivered to a refiner for the purpose of refining them into investment precious metals or precious metals, may be removed without payment of the tax chargeable on the importation of such goods; and

(b) goods may be directly supplied to an approved refiner without payment of the tax chargeable on the supply.

(13) Where —

- (a) goods are consigned by an overseas person to an approved person for refining by an approved refiner into any investment precious metal (including where the approved person is also the approved refiner);
- (b) the approved person imports the goods under paragraph (8)(a) or (12)(a); and
- (c) the approved person delivers the investment precious metal obtained through the refining to another person pursuant to a supply of the investment precious metal by the overseas person to the other person,

the approved person must account for the supply of the investment precious metal as if it were the approved person's supply made in the course or furtherance of the approved person's business, in such form and manner as the Comptroller may determine.

(14) Unless the Comptroller otherwise allows, where —

- (a) goods are consigned by an overseas person to an approved person for refining by an approved refiner (including where the approved person is also the approved refiner);
- (b) the approved person imports the goods under paragraph (8)(a) or (12)(a);
- (c) goods other than investment precious metals arise as a result of or remain after the process of refining the goods (including precious metals, by-products, and any residue or scrap); and
- (d) the approved person delivers such other goods to another person pursuant to instructions of the overseas person, whether or not consideration is received by the approved person or the overseas person in connection with the delivery,

the approved person must account for tax in substitution for the overseas person as if the approved person had himself, herself or itself supplied such other goods in the course or furtherance of the approved person's business, and, where no consideration is received,

as if there had been a supply of such other goods, in such form and manner as the Comptroller may determine.

(15) For the purposes of paragraphs (13) and (14), the time of supply is the time when the earliest of the following events occurs:

- (a) when the approved person receives payment in respect of the supply;
- (b) when the goods are delivered to the other person;
- (c) when the approved person issues an invoice relating to the supply.

(16) For the purpose of paragraph (14), where no consideration is received, the value of the supply of such other goods is the open market value of the goods at the time the supply is treated as taking place.

(17) An approved refiner mentioned in paragraph (1) who (unless the Comptroller otherwise allows) satisfies the requirements specified in that paragraph is entitled to claim, in respect of each prescribed accounting period, a deduction of all the approved refiner's input tax under section 19 of the Act as if the whole of such input tax were allowable under section 20 of the Act as being attributable to supplies referred to in section 20(2)(ab) of the Act.

(18) Subject to paragraph (19), an approved consolidator mentioned in paragraph (2) who (unless the Comptroller otherwise allows) satisfies the requirements specified in that paragraph is entitled to claim, in respect of each prescribed accounting period, the following input tax under section 19 of the Act:

- (a) the whole of the approved consolidator's input tax on goods or services used or to be used by the approved consolidator exclusively in making non-specified taxable supplies, as being attributable to those taxable supplies;
- (b) the whole of the approved consolidator's input tax on goods or services used or to be used by the approved consolidator exclusively in making supplies of investment precious metals directly following the refining of the goods into investment precious metals, as being attributable to

those supplies, whether any such supply of investment precious metals is made or to be made by the approved consolidator in or outside Singapore;

(c) in relation to input tax on goods or services used or to be used by the approved consolidator in making —

(i) both exempt supplies mentioned in regulation 33 and non-specified taxable supplies; or

(ii) exclusively exempt supplies mentioned in regulation 33,

the amount of such input tax, as being attributable to non-specified taxable supplies and supplies mentioned in section 20(2)(ab) of the Act, calculated in accordance with the formula $\frac{A+B+C}{D+C}$, where —

(iii) A is the value of those non-specified taxable supplies made by the approved consolidator in the prescribed accounting period;

(iv) B is the value of the supplies of investment precious metals directly following the refining of the goods into investment precious metals, made by the approved consolidator in Singapore in the prescribed accounting period;

(v) C is the value of the supplies of investment precious metals directly following the refining of the goods into investment precious metals, made by the approved consolidator outside Singapore in the prescribed accounting period; and

(vi) D is the value of all supplies (other than specified supplies) made by the approved consolidator in Singapore in the prescribed accounting period.

(19) The Comptroller may approve or direct the use by an approved consolidator mentioned in paragraph (18) of a method other than that specified in that paragraph, and where the Comptroller has given such an approval or made such a direction —

- (a) the approval or direction takes effect from the date upon which the Comptroller gives such approval or direction or from such date as the Comptroller may specify in the approval or direction; and
- (b) the approved consolidator must use the method approved or directed by the Comptroller.

(20) Unless the Comptroller otherwise allows or directs, even though no tax is payable, an approved person importing goods or making a supply of goods to another approved person under paragraph (8) or (12) must account for the import or the supply (as the case may be) in the approved person's return made under the Act for the period during which the importation occurred or the supply was made.

(21) For the purposes of paragraphs (8)(b) and (12)(b) and except as the Comptroller may otherwise allow, the approved person making a supply of goods to another approved person must issue and provide a tax invoice in accordance with these Regulations and with such annotation as the Comptroller may require.

(22) The Comptroller may, at any time, by written notice, vary or revoke an approval granted under this regulation in any case if the Comptroller is satisfied that the approved person —

- (a) has provided any false, misleading or inaccurate declaration or information in the approved person's application for approval under paragraph (1) or (2);
- (b) has failed to account for or pay tax on any importation by the approved person on the basis that the importation fell within paragraph (8)(a) or (12)(a) when the importation did not fall within that paragraph;
- (c) has failed to account for or pay tax on any supply by the approved person on the basis that the supply fell within paragraph (8)(b) or (12)(b) when the supply did not fall within that paragraph;
- (d) has ceased to satisfy any of the requirements specified in paragraph (1) or (2); or

- (e) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (4).

(23) A taxable person to whom approval has been granted under this regulation must not use the approval, and must take all steps to ensure that no other person uses the approval (whether on behalf of the taxable person or otherwise), except for the purposes for which the approval was granted.

(24) Unless the Comptroller otherwise allows or directs, where an approved person —

- (a) has failed to pay tax on any importation by the approved person on the basis that the importation fell within paragraph (8)(a) or (12)(a) when the importation did not fall within that paragraph;
- (b) in relation to the goods referred to in paragraph (10), has failed to satisfy any condition specified in regulation 42B(2)(a) to (e) and (g);
- (c) has failed to account for or pay tax on any supply by the approved person on the basis that the supply fell within paragraph (8)(b) or (12)(b) when the supply did not fall within that paragraph; or
- (d) has claimed any input tax which the approved person was not entitled to claim under paragraph (17), (18) or (19),

the approved person must —

- (e) in the case of sub-paragraph (a) —
 - (i) pay to the Comptroller without demand the tax chargeable on the importation (except to the extent that the tax would, apart from this regulation, otherwise be claimable as input tax under the Act); and
 - (ii) include the amount of tax payable as output tax in the approved person's return for the prescribed accounting period in which the importation took place;

- (f) in the case of sub-paragraph (c), correct the error in accordance with regulation 66; and
- (g) in the case of sub-paragraph (d), correct the error in accordance with regulation 66 (except to the extent that the tax would, apart from this regulation, otherwise be claimable as input tax under the Act).

(25) Despite paragraph (24), unless the Comptroller otherwise allows, where an approved person has, without paying the tax chargeable, made a supply of goods to another approved person (called in this paragraph the approved customer) under paragraph (8)(b) or (12)(b) and the approved customer, at the time of supply, failed to satisfy any of the requirements specified in paragraph (1) or (2) (even though the approved customer continues to be approved under the scheme), the approved customer —

- (a) must pay to the Comptroller without demand an amount equal to the tax which would, but for this regulation, have been payable on the supply made by the approved person (except to the extent that the tax would, apart from this regulation, otherwise be claimable as input tax under the Act by the approved customer); and
- (b) must include the amount payable which the approved customer is required to pay under sub-paragraph (a) as output tax in the approved customer's return filed for the prescribed accounting period in which the supply was made.

(26) In this regulation, “overseas person” has the meaning given by regulation 46.

PART 6A
CREDIT IN RESPECT OF TAX FOR
REGISTERED (SEVENTH SCHEDULE —
PAY ONLY) PERSONS

Definitions of this Part

46B. In this Part —

“claimant” means the registered (Seventh Schedule — pay only) person that makes a claim under regulation 46D;

“reduction in tax”, in relation to a relevant supply, means the amount by which tax on the relevant supply is reduced as a result of the reduction in value of the relevant supply mentioned in regulation 46C(1)(a);

“relevant supply” means a taxable supply mentioned in regulation 46C(1)(a);

“return” means a return which the claimant is required to make in accordance with regulation 52.

Application of this Part

46C.—(1) This Part applies where —

- (a) in any prescribed accounting period (called in this Part the subject accounting period), a reduction is made in the value of any taxable supply of a registered (Seventh Schedule — pay only) person (whether the taxable supply took place in the subject accounting period or any earlier prescribed accounting period), including a reduction resulting from the person issuing a credit note in the subject accounting period in respect of the supply; and
- (b) the registered (Seventh Schedule — pay only) person has reimbursed the customer (whether by way of payment made or set-off effected against any moneys owed by the customer to the registered (Seventh Schedule — pay only) person) for the reduction in tax for the relevant supply,

but not where the reduction in tax and reimbursement is in relation to any tax on the relevant supply overpaid or erroneously paid by the

registered (Seventh Schedule — pay only) person to the Comptroller as a result of the value originally ascribed by the registered (Seventh Schedule — pay only) person to the relevant supply.

(2) For the purposes of paragraph (1)(a), any record or document issued by the registered (Seventh Schedule — pay only) person to the customer showing that credit has been granted in whole or in part by the registered (Seventh Schedule — pay only) person on any taxable supply to the customer, is a credit note.

Entitlement of registered (Seventh Schedule — pay only) person to credit

46D.—(1) The registered (Seventh Schedule — pay only) person is entitled, upon making a claim to the Comptroller in the period in paragraph (2), to credit for the amount of the reduction in tax in respect of the relevant supply.

(2) The claim must be made —

- (a) where the supply took place, or (where section 92 or 92A of the Act applies to the supply) the transitional date for the supply occurred, in the subject accounting period — not more than 5 years from and including the day immediately after the last day of the subject accounting period; or
- (b) where the supply took place, or (where section 92 or 92A of the Act applies to the supply) the transitional date for the supply occurred, in an earlier prescribed accounting period — not more than 5 years from and including the day immediately after the last day of that earlier prescribed accounting period,

or such longer period as the Comptroller may allow.

(3) Subject to paragraph (5), the amount of the credit must be used —

- (a) to reduce the output tax due from the claimant for the subject accounting period; and
- (b) where there is any balance of the credit after the reduction in sub-paragraph (a), to reduce any output tax due or which becomes due from the claimant for any other prescribed

accounting period (whether before or after the subject accounting period), until no amount of the credit remains.

(4) Where any amount of the credit is used to reduce any output tax due from the claimant for any prescribed accounting period under paragraph (3), then —

- (a) the amount of that output tax is reduced by the amount of the reduction; and
- (b) the amount of the reduction is, to the extent of that amount, deemed to have been refunded to the claimant by the Comptroller.

(5) Instead of requiring any amount of the credit to be used to reduce any output tax due from the claimant in accordance with paragraph (3), the Comptroller may —

- (a) refund the claimant that amount of the credit; and
- (b) deduct from the refund any expenses that the Comptroller may incur in making the refund.

Making claim to Comptroller

46E.—(1) Except as the Comptroller may otherwise allow, the claimant must make the claim under regulation 46D to the Comptroller by including the amount of the credit in the appropriate box on the claimant's return.

(2) If at the time the claimant becomes entitled to make the claim, the claimant is no longer required to make returns to the Comptroller, the claimant must make the claim in such form and manner as the Comptroller may determine.

Evidence required to support claim

46F. Except as the Comptroller may otherwise allow, the claimant, before making the claim, must hold in respect of the relevant supply —

- (a) a copy of any invoice or equivalent document which shows the date, nature and customer of the relevant supply, and the consideration for the relevant supply;

- (b) records or any other documents showing that the claimant has accounted for and paid the tax on the relevant supply;
- (c) records or any other documents showing that the value of the supply or the tax paid on the basis of that value, has been reduced in whole or in part;
- (d) records or any other documents showing the reasons for issuing the credit note; and
- (e) records or any other documents showing that the claimant has reimbursed the customer the amount of the reduction in tax.

Records to be kept

46G.—(1) The claimant must keep a record of the claim.

(2) Except as the Comptroller may otherwise allow, the record mentioned in paragraph (1) must consist of the following:

- (a) information on —
 - (i) the amount of tax chargeable before the reduction in value of the relevant supply;
 - (ii) the prescribed accounting period in which the tax chargeable on the relevant supply was accounted for and paid to the Comptroller;
 - (iii) the date and number of any invoice or equivalent document issued in relation to the relevant supply;
 - (iv) the reasons for the issue of the credit note for the relevant supply;
 - (v) the amount of the reduction of the value of the relevant supply;
 - (vi) the amount of the credit claimed for the relevant supply;
 - (vii) the amount reimbursed by the claimant in connection with the reduction in tax; and
 - (viii) the prescribed accounting period in respect of which the claim was made;

- (b) the records and documents under regulation 46F.

Preservation of documents and records and duty to produce

46H.—(1) Except as the Comptroller may otherwise allow, the claimant must preserve the documents, invoices and records which the claimant holds or keeps in accordance with regulations 46F and 46G for a period of not less than 3 years from the date of the making of the claim.

(2) Upon demand made by an authorised person, the claimant must produce or cause to be produced any document, invoice or record so demanded for inspection by the authorised person and permit the authorised person to remove it at a reasonable time and for a reasonable period.

(3) Nothing in this regulation derogates from any requirement under the Act to preserve any document, invoice or record for a period exceeding 3 years.

Repayment of credit

46I.—(1) Except as the Comptroller may otherwise allow, where —

- (a) the claimant fails to comply with the requirements of regulation 46F, 46G or 46H in relation to the claim;
- (b) the Comptroller is not satisfied that the reduction in the value of the relevant supply is correct; or
- (c) the claimant did not reimburse the customer the amount of the reduction in tax,

the claimant must repay to the Comptroller the amount of the reduction or refund or both (as the case may be) obtained under regulation 46D under the claim, and the Comptroller is not required to make any further reduction or refund under the claim.

(2) Except as the Comptroller may otherwise allow, the claimant must repay the amount by including that amount in the appropriate box on the claimant's return for a prescribed accounting period designated by the Comptroller for that purpose.

(3) If at the time the claimant is required to repay the amount the claimant is no longer required to make returns to the Comptroller, the claimant must repay the amount to the Comptroller in such form and manner as the Comptroller may determine.

PART 6B

CREDIT FOR REIMBURSEMENT OF TAX CHARGED UNDER SECTION 8(1A) OF ACT

Definitions of this Part

46J. In this Part —

“claimant” means the taxable person that makes a claim under regulation 46L;

“relevant supply” means a supply of goods mentioned in regulation 46K(a);

“return” means a return which a claimant is required to make in accordance with regulation 52.

Application of this Part

46K. This Part applies where —

- (a) in any prescribed accounting period (called in this Part the subject accounting period), a taxable person has reimbursed its customer (whether by way of payment made or set-off effected against any moneys owed by the customer to the taxable person) for the whole or any part of an amount received by the taxable person from the customer as tax charged under section 8(1A) of the Act for a supply of goods (involving an importation of the goods), where that supply was subjected to tax under section 8(1A) of the Act and that importation to tax under section 8(4) of the Act; and
- (b) the customer has provided the taxable person with the documentation allowed under paragraph 4E(2)(b) of the Seventh Schedule to the Act,

but not where the reimbursement is in relation to any tax on that supply that was overpaid or erroneously paid by the taxable person to the Comptroller.

Entitlement of taxable person to credit

46L.—(1) The taxable person is entitled, upon making a claim to the Comptroller in the period in paragraph (2), to credit for the amount of the reimbursement mentioned in regulation 46K(a).

(2) The claim must be made —

- (a) where the supply took place, or (where section 92 or 92A of the Act applies to the supply) the transitional date for the supply occurred, in the subject accounting period — not more than 5 years from and including the day immediately after the last day of the subject accounting period; or
- (b) where the supply took place, or (where section 92 or 92A of the Act applies to the supply) the transitional date for the supply occurred, in an earlier prescribed accounting period — not more than 5 years from and including the day immediately after the last day of that earlier prescribed accounting period,

or such longer period as the Comptroller may allow.

(3) Subject to paragraph (5), where the claimant is a registered (Seventh Schedule — pay only) person, the amount of the credit must be used —

- (a) to reduce the output tax due from the claimant for the subject accounting period; and
- (b) where there is any balance of the credit after the reduction in sub-paragraph (a), to reduce any output tax due or which becomes due from the claimant for any other prescribed accounting period (whether before or after the subject accounting period), until no amount of the credit remains.

(4) Where any amount of the credit is used to reduce any output tax due from the claimant for any prescribed accounting period under paragraph (3), then —

- (a) the amount of that output tax is reduced by the amount of the reduction; and
 - (b) the amount of the reduction is, to the extent of that amount, deemed to have been refunded to the claimant by the Comptroller.
- (5) Instead of requiring any amount of the credit to be used to reduce any output tax due from the claimant in accordance with paragraph (3), the Comptroller may —
- (a) refund the claimant that amount of the credit; and
 - (b) deduct from the refund any expenses that the Comptroller may incur in making the refund.
- (6) Where the claimant is not a registered (Seventh Schedule — pay only) person, the Comptroller must refund the claimant the amount of the credit (after deducting from the refund any expenses that the Comptroller may incur in making the refund).

Making claim to Comptroller

46M.—(1) Except as the Comptroller may otherwise allow, the claimant must make the claim under regulation 46L to the Comptroller by including the amount of the credit in the appropriate box on the claimant's return.

(2) If at the time the claimant becomes entitled to make the claim, the claimant is no longer required to make returns to the Comptroller, the claimant must make the claim in such form and manner as the Comptroller may determine.

Evidence required to support claim

46N. Except as the Comptroller may otherwise allow, the claimant, before making the claim, must hold in respect of the relevant supply —

- (a) a copy of any invoice or equivalent document which shows the date, nature and customer of the relevant supply, and the consideration for the relevant supply;

- (b) records or any other documents showing that the claimant has accounted for and paid the tax on the relevant supply;
- (c) the documentation allowed under paragraph 4E(2)(b) of the Seventh Schedule to the Act provided by the customer;
- (d) records or any other documents showing that the reimbursement mentioned in regulation 46K(a) has been made to the customer; and
- (e) records or any other documents showing the reasons for making the reimbursement.

Records to be kept

46O.—(1) The claimant must keep a record of the claim.

(2) Except as the Comptroller may otherwise allow, the record mentioned in paragraph (1) must consist of the following:

- (a) information on —
 - (i) the amount of tax chargeable on the relevant supply before the reimbursement mentioned in regulation 46K(a);
 - (ii) the prescribed accounting period in which the tax chargeable on the relevant supply was accounted for and paid to the Comptroller;
 - (iii) the date and number of any invoice or equivalent document issued in relation to the relevant supply;
 - (iv) the reasons for the reimbursement;
 - (v) the amount of the reimbursement;
 - (vi) the amount of the credit claimed for the relevant supply; and
 - (vii) the prescribed accounting period in respect of which the claim was made;
- (b) the records and documents under regulation 46N.

Preservation of documents and records and duty to produce

46P.—(1) Except as the Comptroller may otherwise allow, the claimant must preserve the documents, invoices and records which the claimant holds or keeps in accordance with regulations 46N and 46O for a period of not less than 3 years from the date of the making of the claim.

(2) Upon demand made by an authorised person, the claimant must produce or cause to be produced any document, invoice or record so demanded for inspection by the authorised person and permit the authorised person to remove it at a reasonable time and for a reasonable period.

(3) Nothing in this regulation derogates from any requirement under the Act to preserve any document, invoice or record for a period exceeding 3 years.

Repayment of credit

46Q.—(1) Except as the Comptroller may otherwise allow, where —

- (a) the claimant fails to comply with the requirements of regulation 46N, 46O or 46P in relation to the claim; or
- (b) the claimant did not reimburse the customer the amount of the credit claimed for the relevant supply,

the claimant must repay to the Comptroller the amount of the reduction or refund or both (as the case may be) obtained under regulation 46L under the claim, and the Comptroller is not required to make any further reduction or refund under the claim.

(2) Except as the Comptroller may otherwise allow, the claimant must repay the amount by including that amount in the appropriate box on the claimant's return for a prescribed accounting period designated by the Comptroller for that purpose.

(3) If at the time the claimant is required to repay the amount the claimant is no longer required to make returns to the Comptroller, the claimant must repay the amount to the Comptroller in such form and manner as the Comptroller may determine.

PART 7
TOURIST REFUND SCHEME

Division 1 — General

Definitions of this Part

47. In this Part —

“airport” means the Changi International Airport or Seletar Airport, as the case may be;

“application form” means the application form mentioned in regulation 50(3);

“approved central refund agency” means an approved central refund agency mentioned in regulation 50E(1);

“approved central refund counter operator” means an approved central refund counter operator mentioned in regulation 50F(1);

“approved independent retailer” means an approved independent retailer mentioned in regulation 50E(1);

“beverage container return scheme deposit” or “BCRS deposit” has the meaning given by regulation 13(7);

“cruise terminal” means —

(a) the Marina Bay Cruise Centre Singapore; or

[S 485/2026 wef 15/07/2026]

(b) the International Passenger Terminal at Singapore Cruise Centre (HarbourFront),

[S 485/2026 wef 15/07/2026]

(c) *[Deleted by S 485/2026 wef 15/07/2026]*

as the case may be;

[S 485/2026 wef 07/07/2026]

“date of approval”, in relation to an application by a tourist for a refund under the scheme, means the date on which the tourist obtains an approval for his or her refund under the scheme;

“electronic system” means the electronic system designated by the Comptroller under regulation 50(1)(a);

“goods” means the goods in respect of which an application has been or is to be made by a tourist for a refund under the scheme;

“proper officer of customs” means any officer of customs acting in the fulfilment of his or her duties under the Act, whether such duties are assigned to him or her specially, generally, expressly or by implication;

“scheme” means the tourist refund scheme referred to in regulation 48;

“tourist” means an individual mentioned in regulation 49.

Tourist refund scheme

48.—(1) A tourist refund scheme is established under this Part for —

(a) the refund by a taxable person that —

(i) is made to a tourist who departs from Singapore from an airport, or a cruise terminal on an international voyage; and

(ii) is of an amount equivalent to the tax chargeable on a supply of goods to the tourist by —

(A) the taxable person; or

(B) another taxable person with whom the firstmentioned taxable person is affiliated; and

(b) the refund by the Comptroller to the taxable person who made the refund to the tourist, of the amount refunded to the tourist under sub-paragraph (a).

(2) To avoid doubt, this regulation does not apply where the taxable person making the refund to the tourist is acting in the capacity of an approved central refund counter operator.

(3) In this regulation, “international voyage” means —

- (a) a voyage of a ship which, as generally advertised or marketed by or on behalf of the cruise line providing the voyage, does not terminate in Singapore; and
- (b) where, in the course of a voyage mentioned in sub-paragraph (a), the ship returns to Singapore on one or more occasions, the portion of the voyage starting from the ship’s last departure from Singapore on that voyage,

and, to avoid doubt, a voyage that is generally advertised or marketed by or on behalf of the cruise line providing the voyage as being one on a ship that terminates in Singapore is not a voyage on a ship that does not terminate in Singapore by virtue of the tourist disembarking at another country outside Singapore and not returning to Singapore on the ship.

Division 2 — Refund to tourist

Meaning of tourist

49.—(1) For the purposes of this Part, an individual is a tourist for the purposes of the scheme, in relation to any goods purchased by the individual, if the individual —

- (a) is 16 years of age or above on the date of the purchase;
- (b) is not a citizen or a permanent resident of Singapore;
- (c) is not a member of the crew of an aircraft on which the individual is departing Singapore; and
- (d) is not a specified person —
 - (i) at any time within the period of 3 months immediately before the date of the purchase;
 - (ii) on the date of the purchase; and
 - (iii) on the date the individual completes the application for a refund under regulation 50(1)(f).

(2) In paragraph (1), “specified person” means any of the following individuals:

- (a) an individual who has in force —
 - (i) any work pass specified in regulation 2(1) of the Employment of Foreign Manpower (Work Passes) Regulations 2012;
 - (ii) a dependant's pass specified in regulation 11 of the Immigration Regulations (Rg 1);
 - (iii) a visit pass specified in regulation 12(1)(a) or (c) of the Immigration Regulations for the purpose of long-term stay in Singapore; or
 - (iv) a student's pass specified in regulation 14 of the Immigration Regulations;
- (b) an individual who is any of the following who is exempt from section 6(1) of the Immigration Act 1959 and resident in Singapore:
 - (i) an individual recognised by the Government as a diplomat, consular officer, an administration, technical or service staff or other staff appointed to or employed in any foreign Embassy, High Commission or Consulate in Singapore;
 - (ii) an individual recognised by the Government as a staff appointed to or employed in an International Organisation, Representative Office or Trade Office;
 - (iii) a spouse or dependent child of any individual mentioned in sub-paragraph (i) or (ii).

Conditions for refund to tourist

50.—(1) Subject to paragraph (3), a tourist is entitled to a refund under the scheme if and only if the following conditions are satisfied:

- (a) the tourist purchases the goods and makes, at the time of the tourist's purchase, an application for a refund of the tax through the taxable person from whom the tourist purchased the goods, by means of an electronic system designated by the Comptroller for the purposes of the scheme; and the taxable person provides the tourist with

- evidence (in any form) of the application having been so made;
- (b) the application is supported by one or more invoices or receipts showing the amount (including the amount of tax) paid by the tourist for the goods;
 - (c) unless otherwise allowed by the Comptroller, each invoice or receipt in support of the application is for an amount (including the amount of tax, but excluding the amount of any BCRS deposit, where applicable) of not less than \$100;
 - (d) the goods are purchased no earlier than 2 months before the goods are brought out of Singapore by the tourist to another country;
 - (e) the goods are brought to the airport or cruise terminal by the tourist —
 - (i) as the tourist's accompanied luggage or hand luggage, which is to be brought out of Singapore by the tourist to another country —
 - (A) on the same aircraft or ship as that on which the tourist is travelling; and
 - (B) within 12 hours after the time of approval of the application; or
 - (ii) as the tourist's unaccompanied luggage, provided that —
 - (A) the tourist has insufficient accompanied luggage or hand luggage allowance; and
 - (B) such luggage is checked in at the unaccompanied luggage counter of the airport or cruise terminal within 12 hours before the announced time of departure of the tourist's flight or voyage;
 - (f) the tourist completes his or her application for his or her refund —

- (i) using the evidence of his or her application mentioned in sub-paragraph (a) at the electronic system at the airport or cruise terminal, and providing such additional information as may be required by the electronic system; or
 - (ii) if the tourist is unable for any reason to complete his or her application at that electronic system, with the proper officer of customs at the Goods and Services Tax Refund Inspection Counter at the airport or cruise terminal, furnishing to the proper officer of customs —
 - (A) the goods, the supporting invoices or receipts and evidence of the tourist's application mentioned in sub-paragraph (a), as may be required by the proper officer of customs; and
 - (B) such information and documents as may be required by the proper officer of customs for the purpose of ascertaining whether the tourist will depart from Singapore within 12 hours after the time of approval of the application;
 - (g) the tourist obtains approval for his or her refund through the electronic system or from the proper officer of customs, as the case may be —
 - (i) where the goods are to be brought out of Singapore by the tourist as his or her accompanied luggage or hand luggage, before such luggage is checked in or brought into the aircraft or ship, as the case may be; and
 - (ii) where the goods are to be brought out of Singapore by the tourist as his or her unaccompanied luggage, before such luggage is checked in.
- (2) A tourist departing from a cruise terminal on a ship is entitled to a refund under the scheme if and only if the following additional conditions are also satisfied:
- (a) the tourist purchases the goods before 1 July 2017;

- (b) the tourist makes an application for a refund of the tax through the taxable person under paragraph (1)(a) before 1 July 2017;
- (c) the tourist declares that Singapore is his or her country of embarkation to which the tourist will not return via the same voyage on the same ship, with his or her cruise itinerary as documentary proof thereof;
- (d) the tourist obtains approval for the refund and departs from Singapore from the cruise terminal, before 1 September 2017;
- (e) the tourist does not return to Singapore within 48 hours after his or her departure.

(3) A tourist remains entitled to a refund under the scheme if the tourist applies for the refund using an application form provided to him or her by the taxable person from whom the tourist purchased the goods in any of the following circumstances:

- (a) the application form was provided to the tourist by the taxable person before 19 August 2012;
- (b) the application form was provided to the tourist on or after 19 August 2012 by the taxable person who, at the time of providing that application form, was approved by the Comptroller for the purpose of this paragraph;
- (c) the Comptroller so allows,

and all the conditions in paragraph (1)(b) to (g) are satisfied; and, for the purposes of paragraph (1)(f)(ii) —

- (d) such a tourist is deemed to have been unable to complete his or her application for his or her refund through the electronic system; and
- (e) the application form of the tourist is the evidence of his or her application mentioned in paragraph (1)(a).

(4) A person must not seek or obtain an approval for a refund under the scheme unless the person is a tourist and is entitled to the refund in accordance with this regulation.

(5) A person must not procure another person to seek or obtain an approval for a refund under the scheme if the other person is not entitled to the refund in accordance with this regulation.

(6) A taxable person must not, on or after 19 August 2012, provide a tourist with an application form for the purpose of enabling the tourist to seek a refund under the scheme unless the taxable person is approved by the Comptroller for this purpose under paragraph (3)(b) and the taxable person's approval has not lapsed or been revoked.

(7) A person must not advertise or otherwise hold himself, herself or itself out as being approved by the Comptroller under paragraph (3)(b) if the person has not been so approved or if the person's approval has lapsed or been revoked.

(8) A taxable person must not, on or after 1 July 2017 —

- (a) permit a tourist to make an application for a refund of tax under paragraph (1)(a) through the taxable person;
- (b) provide a tourist with an application form for the purpose of enabling the tourist to seek a refund under the scheme; or
- (c) in any other way assist or enable a tourist to make an application for a refund under the scheme,

if the taxable person knows or has reason to believe that the tourist intends to depart from Singapore from a cruise terminal on a ship.

Obligations of tourist upon approval of refund

50A.—(1) Where an application of a tourist for a refund under the scheme has been approved, the tourist —

- (a) must depart from Singapore within 12 hours after the time of approval of the application;
- (b) pending his or her departure from Singapore, must not —
 - (i) part with possession of the goods to any other person; or
 - (ii) bring the goods out of the Changi International Airport Departure Check-in Hall, the Seletar Airport

Passenger Terminal or the cruise terminal, as the case may be;

- (c) where the application of the tourist was made through the electronic system, must claim the refund from the approved central refund counter operator within 2 months beginning on the date of approval of the application; and
- (d) where the application of the tourist was not made through the electronic system, must send the application form to the taxable person who has made or is to make the refund to the tourist, within 2 months after the date of approval of the application.

(2) A person who knows or has reason to believe that a tourist has obtained approval for a refund under the scheme must not —

- (a) directly or indirectly, receive the goods from the tourist; or
- (b) bring the goods out of the Changi International Airport Departure Check-in Hall, the Seletar Airport Passenger Terminal or the cruise terminal, as the case may be.

(3) Paragraphs (1)(b) and (2) do not apply in the following cases:

- (a) where a ticketing or luggage officer or other employee —
 - (i) who is authorised by the Civil Aviation Authority of Singapore or the airline or air terminal operator; or
 - (ii) who is authorised by the Maritime and Port Authority of Singapore or the cruise line or cruise terminal operator,

receives luggage containing the goods for checking in or handles the luggage for the purpose of loading it into the aircraft or ship, as the case may be;

- (b) where the tourist carries the goods in his or her hand luggage for boarding on the aircraft or ship;
- (c) where the tourist passes the goods to another person whose assistance is reasonably necessary in order to —

- (i) store the goods for the tourist prior to his or her departure from Singapore; or
- (ii) carry the goods for the tourist prior to his or her departure from Singapore.

Revocation of approval and recovery of refund made as tax due

50B.—(1) Where the Comptroller or any proper officer of customs ascertains that a tourist or a person who has held himself or herself out to be a tourist —

- (a) does not satisfy any of the conditions under regulation 50(1) or (2), or both, as the case may be;
- (b) has failed to comply with regulation 50A(1); or
- (c) is not a tourist within the meaning of regulation 49,

the Comptroller may revoke any approval for a refund under the scheme (whether granted before, on or after 1 January 2014 to the tourist or person).

(2) Where —

- (a) an approval for a refund under the scheme is revoked under paragraph (1) after the refund has been made to the tourist or person by a taxable person; and
- (b) the Comptroller has made a refund to the taxable person because of the refund mentioned in sub-paragraph (a),

the tourist or person must, upon notification by the Comptroller of the revocation, whether by way of service of a written notice or otherwise, immediately repay to the Comptroller the amount of the refund mentioned in sub-paragraph (a).

(3) To avoid doubt, sections 78, 79 and 82 of the Act apply to the recovery of the amount of the refund mentioned in paragraph (2).

Division 3 — Refund to taxable person

Conditions for refund to taxable person, etc.

50C.—(1) A taxable person who has made a refund to a tourist is entitled to a refund under the scheme if and only if the following conditions are satisfied:

- (a) the taxable person makes a refund to the tourist (including through an approved central refund counter operator) within 3 months after the date the application of the tourist for the refund is approved;
- (b) where the approval for the application of the tourist was obtained through the electronic system, the taxable person who has made the refund was an approved central refund agency or an approved independent retailer at the time of purchase of the goods by the tourist;
- (c) where the approval for the application of the tourist was obtained by the tourist furnishing an application form on or after 19 August 2012 to the proper officer of customs at the Goods and Services Tax Refund Inspection Counter at the airport or cruise terminal —
 - (i) the application form was provided to the tourist by the taxable person from whom the tourist purchased the goods; and
 - (ii) in the case of a purchase made on or after 19 August 2012, the taxable person was, at the time the taxable person provided the form, approved under regulation 50(3)(b);
- (d) the taxable person who has made the refund is able to produce such documents as the Comptroller may require for the purpose of supporting the taxable person's claim for the refund.

(2) The Comptroller may, in the Comptroller's discretion, waive the condition mentioned in paragraph (1)(c)(ii), without affecting the application of regulation 50(6) and (7) (read with regulation 108).

(3) A taxable person who is entitled to a refund under paragraph (1) may claim the refund by including the correct amount of the refund in the appropriate box on the taxable person's return.

(4) If, at the time the taxable person becomes entitled under paragraph (1) to a refund, the taxable person is no longer required to make returns to the Comptroller, the taxable person must make a claim to the Comptroller in such form and manner as the Comptroller may determine.

(5) Where the taxable person fails to comply with any requirement of the scheme or of this Part (including any condition imposed on the taxable person under or pursuant to the scheme or this Part), the taxable person must repay to the Comptroller the amount of the refund obtained by the claim to which the failure to comply relates; and the taxable person must repay the amount immediately by including that amount in the appropriate box on the taxable person's return.

(6) If, at the time the taxable person is required to repay any amount under paragraph (5), the taxable person is no longer required to make returns to the Comptroller, the taxable person must repay such amount to the Comptroller within one month after the taxable person receives the payment of the refund to the taxable person mentioned in paragraph (1) and in such form and manner as the Comptroller may determine.

*Division 4 — Approvals and appointments of persons
in relation to electronic approvals of refunds to tourists*

**Prohibition against representations as being approved
independent retailer, etc.**

50D. A person must not advertise or otherwise hold himself, herself or itself out to be an approved independent retailer or as being affiliated with an approved central refund agency if the person has not been so approved or is not so affiliated, as the case may be.

Approved central refund agencies and approved independent retailers

50E.—(1) A taxable person who is eligible under paragraph (2) may make an application to the Comptroller to be an approved central refund agency or an approved independent retailer for the following purposes:

- (a) to transmit applications made by tourists for refunds under the scheme using the electronic system;
- (b) to make such refunds to tourists through an approved central refund counter operator.

(2) A taxable person is eligible to make an application under paragraph (1) if the taxable person satisfies the Comptroller that —

- (a) the taxable person's accounting and internal control systems are able to meet such accounting and auditing standards as the Comptroller may require;
- (b) the taxable person has faithfully observed and complied with all duties and obligations relating to the taxable person's liability to pay customs and excise duties, income tax, property tax and goods and services tax;
- (c) the taxable person has, in the 12 months immediately prior to the date of the taxable person's application, processed not less than such number of tourist refund claims per month on average as the Comptroller may specify;
- (d) the taxable person has the necessary system in place to enable applications made by tourists for refunds under the scheme to be made and submitted through the electronic system;
- (e) the operator of the electronic system is able and willing to grant the taxable person access to the electronic system for the purpose of submitting such applications by tourists; and
- (f) an approved central refund counter operator is able and willing to process and make refunds to tourists on the taxable person's behalf.

(3) Every application under paragraph (1) must —

- (a) be made in such form or manner as the Comptroller may determine; and
- (b) give a full and true account of the particulars or information furnished.

(4) The Comptroller may, on an application made under paragraph (1), approve the application on such conditions as the Comptroller may, in the Comptroller's discretion, impose.

(5) The Comptroller may require the applicant to furnish security in such form and amount as the Comptroller may determine.

(6) Subject to paragraph (7), an approval granted under paragraph (4) has effect for such period as the Comptroller may determine.

(7) The Comptroller may, in relation to any approved central refund agency or approved independent retailer, at any time, by written notice —

- (a) suspend or revoke the approval of the approved central refund agency or approved independent retailer (as the case may be) if the Comptroller is satisfied that the approved central refund agency or approved independent retailer, as the case may be —
 - (i) has ceased to satisfy any of the conditions for eligibility under paragraph (2);
 - (ii) has failed to comply with any condition imposed by the Comptroller under paragraph (4) or has failed to comply with paragraph (5); or
 - (iii) has provided any false, misleading or inaccurate declaration or information in the approved central refund agency's or approved independent retailer's application under paragraph (1); or
- (b) remove, vary or add to the conditions referred to in paragraph (4).

(8) An approved central refund agency or an approved independent retailer (as the case may be) must immediately notify the Comptroller of any change relating to particulars or information furnished in respect of the approved central refund agency's or approved independent retailer's application made under paragraph (1).

Approved central refund counter operators

50F.—(1) The Comptroller may appoint any person to be an approved central refund counter operator for such period and subject to such conditions as the Comptroller may determine for the purpose of processing and making refunds to tourists under the scheme on behalf of approved central refund agencies and approved independent retailers.

(2) The approved central refund counter operator must not require any approved central refund agency or approved independent retailer to pay any fee or other consideration to it for any services provided by the former to the latter unless the amount of such fee or other consideration has been approved by the Comptroller.

(3) The approved central refund counter operator may only terminate its appointment by giving the Comptroller one-year's notice in writing; except that where the remaining period of its approval is less than one year, the period of the notice is to be that remaining period.

(4) The Comptroller may, at any time, by written notice —

- (a) suspend or revoke the appointment of an approved central refund counter operator if the Comptroller is satisfied that the approved central refund counter operator has ceased to comply with any condition imposed by the Comptroller under paragraph (1) or fails to comply with paragraph (2); or
- (b) remove, vary or add to the conditions referred to in paragraph (1).

Division 5 — [Deleted by S 1034/2022]

51. *[Deleted by S 1034/2022]*

PART 8

RETURNS, PAYMENTS AND NOTICES

Furnishing of returns

52.—(1) Except as the Comptroller may otherwise allow or direct in any particular case, where a person is registered or was or is required to be registered, the person must furnish to the Comptroller a return in accordance with this regulation.

(2) Subject to paragraphs (3), (4), (7) and (9), the person mentioned in paragraph (1) must furnish a return in respect of every period of a quarter.

(3) Despite paragraph (2), where the Comptroller considers it necessary in the circumstances of any particular case to vary the length of any period or the date on which any period begins or ends, the Comptroller may allow or direct any person to furnish returns in respect of any of the following periods, whether or not the period so varied has ended:

(a) every period of the whole of —

(i) a single calendar month;

(ii) 3 consecutive calendar months (not constituting a quarter); or

(iii) 6 consecutive calendar months;

(b) every such other period as the Comptroller may determine.

(4) Despite paragraphs (2) and (3), the following apply to the first return and the last return of a person mentioned in paragraph (1):

(a) where the effective date of the person does not coincide with the first day of a standard period, a special period or an exceptional period applicable to the person on the effective date, the first return of the person must be furnished in respect of a period that —

(i) begins on the effective date; and

- (ii) ends on the last day of the standard period, special period or exceptional period in which the effective date occurs;
- (b) where the cancellation date of the person does not coincide with the last day of a standard period, a special period or an exceptional period applicable to the person on the first day of the standard period, special period or exceptional period, the last return of the person must be furnished in respect of a period that —
 - (i) begins on the first day of the standard period, special period or exceptional period in which the day immediately before the cancellation date occurs; and
 - (ii) ends on the day immediately before the cancellation date.

(5) Where a return to be furnished by a person mentioned in paragraph (1) is in respect of —

- (a) the whole of a standard period or a special period applicable to the person; or
- (b) a period mentioned in paragraph (4)(a) that ends on the last day of the standard period or special period applicable to the person,

the return must be furnished by the person no later than the last day of the month immediately following the end of the period in respect of which the return is to be furnished or by such other later time as the Comptroller may allow.

(6) Where a return to be furnished by a person mentioned in paragraph (1) is in respect of a period other than that referred to in paragraph (5)(a) and (b), the return must be furnished by the person no later than the following or such other later time as the Comptroller may allow:

- (a) the day in the month immediately following the month in which the period in respect of which the return is to be furnished ends, that corresponds numerically to the last day of the period;

- (b) where there is no such corresponding day, the last day of the month immediately following the month in which the period ends.

(7) Where a customer is required under section 38A of the Act to account for and pay tax chargeable on a relevant supply of goods or services as if the customer were the supplier, then, despite the relevant supply taking place in a period under paragraph (2), (3) or (4) (for a first return) applicable to the customer, the customer may account for the tax chargeable on the relevant supply in a return for a period that —

- (a) is subsequent to the period in which the relevant supply takes place; and
- (b) is a period not later than the earlier of the following periods:
 - (i) the period which includes the last day of a period of 3 months after the day on which the relevant supply takes place;
 - (ii) the period for which a claim for input tax in relation to the relevant supply may be made under regulation 61 by the customer.

(8) Paragraph (7) does not apply to a customer that is granted an approval under regulation 68.

(9) Where —

- (a) a customer is required under section 38A of the Act to account for and pay tax chargeable on a relevant supply of goods or services as if the customer were the supplier; and
- (b) the relevant supply of goods or services takes place —
 - (i) when the customer is an approved customer under paragraph (10); and
 - (ii) in a prescribed accounting period or a longer period mentioned in section 20(4)(b) of the Act for which the customer is entitled to claim the full amount of input tax credit under sections 19 and 20 of the Act,

then, the customer need not account for the tax on the relevant supply (and must not claim for input tax relating to the relevant supply) in any return.

(10) For the purpose of paragraph (9), the Comptroller may approve a customer as an approved customer if —

- (a) the customer is entitled to claim the full amount of input tax credit under sections 19 and 20 of the Act for a prescribed accounting period or a longer period mentioned in section 20(4)(b) of the Act;
- (b) the customer does not, in the course of the business of the customer, supply the goods or services that are the subject of the relevant supply of goods or services in question;
- (c) the customer's accounting and internal control systems are able to meet such accounting and auditing standards as the Comptroller may require; and
- (d) the customer has, to the satisfaction of the Comptroller, been complying with the duties and obligations of the customer under the Act in relation to the tax liability of the customer.

(11) The Comptroller may grant an approval under paragraph (10) subject to such conditions as the Comptroller thinks necessary for the protection of revenue.

(12) A return under this regulation must be furnished to the Comptroller in the form determined by the Comptroller.

(13) In this regulation —

- “cancellation date”, in relation to a person mentioned in paragraph (1), means the date on which the person ceases to be registered under the Act;
- “effective date”, in relation to a person mentioned in paragraph (1), means the date determined in accordance with section 91(1) or (2) of, or the First Schedule to, the Act upon which the person was or should have been registered;
- “exceptional period” means a period referred to in paragraph (3)(b);

“special period” means a period referred to in paragraph (3)(a);

“standard period” means a period referred to in paragraph (2).

Submission of returns through electronic service

53.—(1) Every taxable person who is first registered under the Act on or after 1 January 2007 must make and submit through the electronic service every specified return which the taxable person is required to furnish.

(2) Every taxable person (not being a taxable person mentioned in paragraph (1)) who, during all of the taxable person’s prescribed accounting periods ending in the calendar year 2005 collectively, makes supplies in Singapore which have a total value of more than \$5 million must, with effect from 1 January 2007, make and submit through the electronic service every specified return which the taxable person is required to furnish.

(3) Every taxable person (not being a taxable person mentioned in paragraph (1)) who, during all of the taxable person’s prescribed accounting periods ending in the calendar year 2005 collectively, makes supplies in Singapore which have a total value of not less than \$2 million but not more than \$5 million must, with effect from 1 April 2007, make and submit through the electronic service every specified return which the taxable person is required to furnish.

(4) Every taxable person (not being a taxable person mentioned in paragraph (1)) who, during all of the taxable person’s prescribed accounting periods ending in the calendar year 2006 collectively —

- (a) makes supplies in Singapore which have a total value of more than \$1 million must, with effect from 1 November 2007;
- (b) makes supplies in Singapore which have a total value of more than \$500,000 but not more than \$1 million must, with effect from 1 February 2008;
- (c) makes supplies in Singapore which have a total value of more than \$100,000 but not more than \$500,000 must, with effect from 1 May 2008; or

- (d) makes supplies in Singapore which have a total value of not more than \$100,000 must, with effect from 1 August 2008,

make and submit through the electronic service every specified return which the taxable person is required to furnish.

(5) Despite paragraphs (1), (2), (3) and (4), the Comptroller may allow any taxable person to make and submit any specified return otherwise than through the electronic service in such exceptional circumstances as the Comptroller thinks fit.

(6) In this regulation, “specified return” means any return referred to in regulation 52.

54. [*Deleted by S 728/2004*]

Power to direct production of documents

55.—(1) The Comptroller may, by written notice, direct a taxable person to produce to the Comptroller any return or other document furnished under this Part or a copy thereof.

(2) Any person who is directed to produce any return or other document under this regulation must comply with the direction in such manner and within such time as the Comptroller may specify in the notice directing the production.

Preservation of returns

56. A taxable person must keep a record of every return which is furnished by the taxable person himself, herself or itself or by a filer on the taxable person’s behalf by way of the electronic service or otherwise to the Comptroller.

Power to direct keeping and preserving of records in electronic form

57. The Comptroller may direct a taxable person in writing to maintain in electronic form an inventory record containing the model and serial numbers of any goods purchased or sold by the taxable person.

Statement for sale in satisfaction of debt

58. Where goods are deemed to be supplied by a taxable person by virtue of paragraph 6 of the Second Schedule to the Act or where goods supplied under a hire-purchase agreement are repossessed and sold in or towards satisfaction of a debt, the auctioneer on a sale by auction or, where the sale is otherwise than by auction, the person selling the goods, must, whether or not registered under the Act, within 21 days after the sale —

- (a) furnish to the Comptroller a statement showing —
 - (i) his, her or its name and address and, if registered, his, her or its registration number;
 - (ii) the name, address and registration number of the person whose goods were sold;
 - (iii) the date of the sale;
 - (iv) the description and quantity of goods sold at each rate of tax; and
 - (v) the amount for which they were sold and the amount of tax charged;
- (b) pay the amount of tax due; and
- (c) send to the person whose goods are sold a copy of the statement mentioned in paragraph (a),

and the auctioneer or person selling the goods (as the case may be) and the person whose goods were sold must exclude from any return furnished under these Regulations the tax chargeable on that supply of those goods.

Statement for supply (other than by way of sale) in satisfaction of debt

58A. Where a person has by virtue of paragraph 6 of the Second Schedule to the Act made a supply (other than a supply by way of sale) using the goods of a taxable person in satisfaction of a debt owed by the taxable person, that person must, whether or not registered under the Act, within 21 days after the end of the

prescribed accounting period of the taxable person in which the supply is made —

- (a) furnish to the Comptroller a statement showing —
 - (i) the person's name and address and, if registered, the person's registration number;
 - (ii) the name, address and registration number of the taxable person;
 - (iii) the relevant prescribed accounting period of the taxable person; and
 - (iv) a description of the supply, the value of the supply, and the rate and amount of tax chargeable on the supply;
- (b) pay the amount of tax due when the person furnishes the statement mentioned in paragraph (a) to the Comptroller; and
- (c) send to the taxable person a copy of the statement mentioned in paragraph (a),

and the person making the supply, and the taxable person whose goods are being used in the making of the supply, must exclude from any return furnished under these Regulations the tax chargeable on the supply.

Tax to be accounted for on returns and payment of tax

59.—(1) Except as the Comptroller may otherwise allow or direct, any person required to furnish a return of tax in accordance with these Regulations must pay to the Comptroller such amount of tax as is payable by the person in respect of the period to which the return relates not later than the last day on which the person is required by these Regulations to make that return.

(2) Except as the Comptroller may otherwise allow or direct, any person assessed to tax under section 45 or 48 of the Act must, despite any objection or appeal against the assessment, pay the tax assessed to the Comptroller within such time as the Comptroller may specify in the notice of assessment.

(3) Where any amount of tax charged is required to be shown on any invoice, receipt, credit note, debit note or any other document, and that amount consists of any number of dollars and cents together with any fraction or part of a cent, that fraction or part of that cent —

- (a) if less than half of that cent, may be disregarded for the purposes of the Act; or
- (b) if in excess of half or equal to half of that cent, is to be deemed for the purposes of the Act to be an amount equal to one cent unless the Comptroller otherwise determines.

Estimation of output tax

60. The Comptroller may allow a person to estimate the whole or any part of the person's output tax for any period in cases where the Comptroller is satisfied that the person is not able to account for the exact amount of output tax chargeable in that period, provided that any such estimated amount is to be adjusted and exactly accounted for as tax chargeable in the next period thereafter or in such later period as the Comptroller may allow.

Claim for input tax

61.—(1) Subject to paragraph (2) and except as the Comptroller may otherwise allow or direct either generally or specially, a person claiming deduction of input tax under section 19(2) of the Act must do so on the return furnished by the person for the prescribed accounting period in which the tax became chargeable.

(2) Subject to paragraph (3) at the time of claiming deduction of input tax in accordance with paragraph (1), a person must, if the claim is in respect of —

- (a) a supply from another taxable person, hold the document which is required to be provided under regulation 10; or
- (b) an importation of goods, hold a document showing the claimant as importer, consignee or owner and showing the amount of tax charged on the goods and authenticated or issued by the authorised officer.

(3) Where the Comptroller so directs, either generally or in relation to particular cases or classes of cases, a claimant must hold, instead of or in addition to the document or invoice (as the case may require) specified in paragraph (2)(a) or (b), such other documentary evidence of the charge to tax as the Comptroller may direct.

Failure to comply with notices or submit returns

62.—(1) Any person who fails or neglects without reasonable excuse to comply with any notice issued by the Comptroller or to submit any return shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$5,000 and in default of payment to imprisonment not exceeding 6 months.

(2) No person shall be liable to prosecution for an offence under paragraph (1) in respect of failure or neglect to comply with any notice issued by the Comptroller unless the notice has been served on him personally or by registered post.

Time for payment of refund

63.—(1) Subject to section 19(8) of the Act and paragraphs (2), (3) and (4), when the Comptroller is required to make any amount of payment under section 19(5) of the Act, the Comptroller must make such payment by the later of the following:

(a) the last day of a period equivalent to the prescribed accounting period, that commences on the day immediately after the day on which the return to which the payment relates is received by the Comptroller;

(b) the specified day.

(2) Subject to paragraph (4), where the Comptroller makes a reasonable request for information relating to the payment claimed before the Comptroller is required to make the payment under paragraph (1) or this paragraph (as the case may be), the Comptroller must make the payment by the later of the following:

(a) the last day of the 3-month period, that commences on the day immediately after the day on which the Comptroller receives all the information so requested;

(b) the specified day.

(3) Subject to paragraph (4), where section 19(7) of the Act applies, the Comptroller must —

(a) where the taxable person failed to submit returns — make the payment by the later of the following:

(i) the last day of the 3-month period that commences on the day immediately after the day on which the taxable person submits the returns;

(ii) the specified day;

(b) where the taxable person failed to comply with a reasonable request by the Comptroller for information — make the payment by the later of the following:

(i) the last day of the 3-month period that commences on the day immediately after the day on which the Comptroller receives all the information so requested;

(ii) the specified day; or

(c) where the taxable person has failed to pay any tax or penalty for any period as required by the Act — make the payment of any amount remaining after deducting such tax or penalty by the later of the following:

(i) the last day of the 3-month period that commences on the day immediately after the day of the deduction;

(ii) the specified day.

(4) Where, before the expiry of the period within which the Comptroller is required to make the payment as required by paragraph (1), (2) or (3) (as the case may be), the Comptroller reasonably suspects (whether or not as a result of information given pursuant to any request) that the payment relates to credit for any input tax on any supply made to the taxable person which was part of an arrangement comprising 2 or more supplies (whether or not the supplies are in the same chain of supply or in different chains of supply), the effect of which is that one or more persons evade or avoid

paying any amount of tax, or is able to seek to obtain any credit for or refund of tax which the person or persons would not otherwise be able to obtain, then —

- (a) the Comptroller must, as soon as practicable after forming that suspicion, notify the taxable person of the Comptroller's suspicion; and
- (b) if the Comptroller is satisfied that there is no such arrangement, the Comptroller must —
 - (i) as soon as practicable after becoming so satisfied, notify the taxable person of that fact; and
 - (ii) make the payment by the later of the following:
 - (A) the last day of the one-month period, that commences on the day immediately after the day on which the Comptroller is so satisfied;
 - (B) the specified day.

(5) This regulation also applies to any claim for payment made before 3 January 2022 if —

- (a) payment for the claim has not been made as at that date; and
- (b) the last day by which the Comptroller would be required to make payment for the claim under this regulation as in force immediately before 3 January 2022, is on or after that date.

(6) In this regulation, “specified day” means —

- (a) where the Comptroller is to make the payment in accordance with regulation 2(1) of the Goods and Services Tax (Mode of Payment for Refunds) Regulations 2021 — the last day of the 3-month period that commences on the day immediately after the day on which the Comptroller is able to make the payment in accordance with that provision; or
- (b) where the Comptroller is to make the payment in accordance with regulation 2(3) of the Goods and

Services Tax (Mode of Payment for Refunds)
Regulations 2021 — the last day of the one-month period that commences on the day immediately after the day on which the Comptroller is satisfied that the Comptroller has sufficient information to make the payment in accordance with that provision.

Interest on late payment

64.—(1) Where the Comptroller fails to make any payment or part of any payment, due under section 19(5) of the Act, within the period specified in regulation 63, the Comptroller must pay interest at the rate specified in paragraph (2) on the amount of payment outstanding calculated from the day after the period for refund referred to in regulation 63 until such time the payment or part of the payment is made.

(2) For the purpose of paragraph (1) —

- (a) where any part of the interest period falls before 1 April 2007 — the rate of interest for that part of the interest period is 2.13% per annum;
- (b) where any part of the interest period falls in the period from 1 April 2007 to 31 December 2007 (both dates inclusive) — the rate of interest for that part of the interest period is the prime lending rate for 2006;
- (c) where any part of the interest period falls in the period from 1 January to 31 March of any year between 2008 and 2023 (both dates and years inclusive) — the rate of interest for that part of the interest period is the prime lending rate for the year immediately preceding the preceding year;
- (d) where any part of the interest period falls in the period from 1 April to 31 December of any year between 2008 and 2022 (both dates and years inclusive) — the rate of interest for that part of the interest period is the prime lending rate for the preceding year;
- (e) where any part of the interest period falls in the 6-month period beginning on 1 April of any calendar year beginning

with 2023 — the rate of interest for that part of the interest period is 1.5% points above the applicable 3-month compounded SORA; and

- (f) where any part of the interest period falls in the 6-month period beginning on 1 October of any calendar year beginning with 2023 — the rate of interest for that part of the interest period is 1.5% points above the applicable 3-month compounded SORA.

(3) In this regulation —

“3-month compounded SORA” means —

- (a) in the case of paragraph (2)(e) — the compounded average of the SORA values for the 3-month period immediately before 1 March of the same calendar year, as determined and published by the Monetary Authority of Singapore on its website at <https://www.mas.gov.sg> or (where the website is unavailable to the public) in one or more other forms that are readily accessible by the public;
- (b) in the case of paragraph (2)(f) — the compounded average of the SORA values for the 3-month period immediately before 1 September of the same calendar year, as determined and published by the Monetary Authority of Singapore on its website at <https://www.mas.gov.sg> or (where the website is unavailable to the public) in one or more other forms that are readily accessible by the public;

“interest period” means the period for which interest is payable under paragraph (1);

“prime lending rate”, in relation to any year, means the average prime lending rate for the months of October, November and December of that year of such financial institution or financial institutions in Singapore as the Minister may determine, rounded to the nearest 0.5%;

“Singapore Overnight Rate Average” or “SORA”, in relation to any particular day, means the volume-weighted average rate

of borrowing transactions in the unsecured overnight interbank Singapore dollar cash market in Singapore between 8 a.m. and 6.15 p.m., as determined and published by the Monetary Authority of Singapore on its website at <https://www.mas.gov.sg> or (where the website is unavailable to the public) in one or more other forms that are readily accessible by the public.

Interest less than \$10 not payable

65. Despite anything in regulation 64, where the amount of interest that, but for this regulation, would be paid under regulation 64 is less than \$10, no interest is to be payable.

Correction of errors

66.—(1) Subject to this regulation, if any person makes any error in accounting for tax or in any return furnished under these Regulations, that person must correct that error in such manner and within such time as the Comptroller may require.

(2) Every taxable person who is first registered under the Act on or after 1 January 2007 must, if the taxable person makes any error referred to in paragraph (1), correct that error by submitting through the electronic service such information within such time as the Comptroller may require.

(3) Every taxable person (not being a taxable person mentioned in paragraph (2)) who, during all of the taxable person's prescribed accounting periods ending in the calendar year 2005 collectively, makes supplies in Singapore which have a total value of more than \$5 million must, if the taxable person makes any error referred to in paragraph (1), with effect from 1 January 2007, correct that error by submitting through the electronic service such information within such time as the Comptroller may require.

(4) Every taxable person (not being a taxable person mentioned in paragraph (2)) who, during all of the taxable person's prescribed accounting periods ending in the calendar year 2005 collectively, makes supplies in Singapore which have a total value of not less than \$2 million but not more than \$5 million must, if the taxable person

makes any error referred to in paragraph (1), with effect from 1 April 2007, correct that error by submitting through the electronic service such information within such time as the Comptroller may require.

(5) Every taxable person (not being a taxable person mentioned in paragraph (2)) who, during all of the taxable person's prescribed accounting periods ending in the calendar year 2006 collectively —

- (a) makes supplies in Singapore which have a total value of more than \$1 million must, if the taxable person makes any error referred to in paragraph (1), with effect from 1 November 2007;
- (b) makes supplies in Singapore which have a total value of more than \$500,000 but not more than \$1 million must, if the taxable person makes any error referred to in paragraph (1), with effect from 1 February 2008;
- (c) makes supplies in Singapore which have a total value of more than \$100,000 but not more than \$500,000 must, if the taxable person makes any error referred to in paragraph (1), with effect from 1 May 2008; or
- (d) makes supplies in Singapore which have a total value of not more than \$100,000 must, if the taxable person makes any error referred to in paragraph (1), with effect from 1 August 2008,

correct that error by submitting through the electronic service such information within such time as the Comptroller may require.

(6) Despite paragraphs (2), (3), (4) and (5), the Comptroller may allow any taxable person referred to in paragraph (2), (3), (4) or (5) to correct any error referred to in paragraph (1) by submitting information otherwise than through the electronic service in such circumstances as the Comptroller thinks fit.

PART 8A

CUSTOMER ACCOUNTING

Relevant supplies of goods or services

66A.—(1) The supply of any of the following is prescribed for the purpose of the definition of “relevant supply of goods or services” in section 38A(10) of the Act:

- (a) any mobile phone that —
 - (i) can transmit and receive spoken messages over a cellular network (whether or not it has any other function); and
 - (ii) has a screen size of 17.5 cm or less, measured diagonally from the top corner to a bottom corner, excluding the bezel,

but not if, at the time the customer enters into the contract to purchase the mobile phone, the customer subscribes to a mobile subscription plan (including a renewal or extension of an existing plan) with a licensed mobile telecommunications service provider for the supply of the service mentioned in sub-paragraph (a)(i) for the mobile phone that —
 - (iii) does not involve the collection of advance payments for the use of the service; and
 - (iv) is provided by the supplier of the mobile phone, or a person that is related to the supplier within the meaning of section 6 of the Companies Act 1967;
- (b) any memory card that is an electronic flash memory data storage device used for storing digital information, but not any flash drive with an integrated USB interface;
- (c) any off-the-shelf software that is not customised for a particular customer and —
 - (i) is stored in a compact disc or similar storage medium which is provided as part of the supply; or

- (ii) is accessible using a product or licence key, or an activation code, or a similar key or code which is provided in or on any physical packaging as part of the supply,

but not if the software —

- (iii) is pre-loaded into any machinery or equipment (including any computer, whether a minicomputer, microcomputer, laptop or desktop), and supplied as part of the machinery or equipment; or
- (iv) is provided to the customer as a back-up copy of the software provided to the customer.

(2) In this regulation, “licensed mobile telecommunications service provider” means a person licensed under section 5 of the Telecommunications Act 1999.

Excepted supplies of goods

66B. The following are prescribed as excepted supplies for the purpose of the definition of “excepted supply” in section 38A(10) of the Act:

- (a) any supply of goods for which regulations are made under section 23 of the Act for the reduction of tax chargeable on it;
- (b) any supply that may be made without payment of the tax chargeable on it, pursuant to regulations made under section 27 of the Act;
- (c) any transfer or disposal of goods for no consideration that is treated as a supply of goods by virtue of paragraph 5(1) of the Second Schedule to the Act.

Prescribed threshold

66C.—(1) \$10,000 is the threshold for the purpose of the definition of “relevant supply of goods or services” in section 38A(10) of the Act.

(2) The threshold in paragraph (1) does not apply to supplies of prescribed goods made by a supplier to a customer in a calendar year (called in this paragraph the applicable calendar year) if —

- (a) the supplier has made at least one supply (other than a zero-rated supply or an excepted supply) exceeding \$10,000 in value of prescribed goods to the customer in the calendar year immediately preceding the applicable calendar year;
- (b) unless the Comptroller otherwise allows in any particular case, the number of purchases of prescribed goods made by the customer from the supplier is —
 - (i) at least 6 in the calendar year immediately preceding the applicable calendar year; or
 - (ii) at least 6 per calendar year on average over the 3 calendar years immediately preceding the applicable calendar year;
- (c) the supplier has a written agreement with the customer for the customer to account for and pay tax on every supply of prescribed goods made by the supplier to the customer (regardless of the value of the supply) for the applicable calendar year mentioned in sub-paragraphs (a) and (b); and
- (d) the supplier and customer have jointly notified the Comptroller before the applicable calendar year of the written agreement mentioned in sub-paragraph (c).

(3) In this regulation, “prescribed goods” means any goods mentioned in sub-paragraph (a), (b) or (c) of regulation 66A(1).

Changes in value of relevant supply of goods or services

66D.—(1) Where, in the opinion of the Comptroller —

- (a) there is an increase in the value of a relevant supply of goods or services on or after the date the relevant supply is made;

(b) the original value (*O*) and the amount of the increase in the value (*I*) of the relevant supply are each equal to or less than the threshold in regulation 66C(1) (*T*); and

(c) the total of *O* and *I* of the relevant supply exceeds *T*,

then, despite section 38A(2) of the Act applying to the relevant supply at its value that is the total of *O* and *I*, the supplier may instead choose to treat *I* as the value of a separate relevant supply of goods or services made by the supplier to which section 38A(2) of the Act does not apply (and without affecting the treatment already applied for the accounting for and payment of the tax in relation to *O*).

(2) Where, in the opinion of the Comptroller —

(a) there is an increase in value of a relevant supply of goods or services on or after the date the relevant supply is made; and

(b) the amount of the increase in the value (*I*) of the relevant supply is more than the threshold in regulation 66C(1),

then, despite section 38A(2) of the Act applying to the relevant supply at its value that is the total of *O* and *I*, the supplier may instead choose to treat *I* as the value of a separate relevant supply of goods or services made by the supplier to which section 38A(2) of the Act applies (and without affecting the treatment already applied for the accounting for and payment of the tax in relation to *O*).

(3) Without affecting paragraphs (1) and (2), where there is a change (whether by way of an increase or a reduction) in the value of a relevant supply of goods or services after the relevant supply is made, the Comptroller may require the supplier or the customer, or both of them, to make such adjustments to the tax accounted for or paid, or to be accounted for or paid, by either of them, in such form and manner as the Comptroller may require; and the supplier and the customer must comply with the Comptroller's requirement.

PART 9

CASH ACCOUNTING

Definitions of this Part

67. In this Part —

“approved person” means a person who has been approved by the Comptroller in accordance with regulation 68 to account for tax in accordance with a cash accounting scheme under this Part;

“scheme” means the cash accounting scheme referred to in regulation 68.

Cash accounting scheme

68.—(1) Where —

(a) the Comptroller is satisfied that, due to the nature, volume, and value of the taxable supplies (other than reverse charge supplies) made by a taxable person and the nature of the accounting system employed by that person, it would be appropriate for that person to account for tax under a cash accounting scheme; and

(b) the taxable person is eligible to apply for approval under regulation 69,

the Comptroller may, subject to this Part and to such conditions as the Comptroller may impose, grant an approval for the taxable person to account for tax in accordance with the scheme.

(2) Under the cash accounting scheme, the operative dates for tax accounting purposes are as follows:

(a) for output tax, the day on which payment or other consideration for the supply is received or the date of any cheque for the payment or consideration, if later;

(b) for input tax, the date on which payment is made or other consideration for the supply is given, or the date of any cheque for the payment or consideration, if later.

(3) Despite paragraph (2), where a taxable person that is approved under regulation 69 is, under section 38A of the Act, a customer that is required to account for and pay tax chargeable on a relevant supply of goods or services as if the customer were the supplier, then, under the cash accounting scheme, the operative date for tax accounting purposes for both output tax and input tax for such supply is the day on which the supplier receives payment from the customer of the amount of the value of the supply, or the date of any cheque for the value, if later.

Admission to scheme

69.—(1) A taxable person is eligible to apply for approval under regulation 68 if —

- (a) the taxable person is registered under paragraph 8 of the First Schedule to the Act;
- (b) the taxable person has made all returns which the taxable person is required to make under the Act, and has paid to the Comptroller all such sums shown as due on those returns and on any assessment made under section 45 of the Act; and
- (c) the taxable person has not in the 3 years preceding the date of the taxable person's application for approval —
 - (i) been convicted of any offence under the Act or the Customs Act 1960 as applied by section 26 of the Act;
 - (ii) accepted any offer of composition under section 75 of the Act or under the Customs Act 1960 as applied by section 26 of the Act;
 - (iii) been assessed to a penalty under section 48 of the Act; or
 - (iv) had the taxable person's approval revoked under regulation 74.

(2) The Comptroller may refuse to approve an application made under regulation 68 where the Comptroller considers it necessary for the protection of the revenue.

(3) The scheme does not apply to any supply of goods or services made under any hire-purchase agreement, conditional sale agreement or credit sale agreement.

Commencement and expiry of scheme

70.—(1) An approved person may start to use the scheme at the beginning of the approved person's next prescribed accounting period indicated in the notification of that approval.

(2) An approval granted under regulation 68 has effect for a period of 2 years beginning on the date on which the approval is to take effect and the Comptroller may, in the Comptroller's discretion, extend the period to which the approval relates.

Supplies before expiry

71. An approved person who ceases to use the scheme for the reason that the approval to use the scheme has expired under regulation 70(2) may continue to use the scheme only for supplies made and received while the approved person operated the scheme, but must otherwise account for and pay tax as provided for by or under the Act.

Insolvency of approved person

72. Where an approved person goes into liquidation or receivership, or becomes bankrupt, and ceases to trade, other than for the purpose of disposing of stocks and assets, the approved person must within 2 months account for tax on supplies made and received in the previous 12 months which have not otherwise been accounted for, subject to any adjustment for credit for input tax, and indicate the amount of such tax which is non-preferential.

Death, bankruptcy, incapacity and cessation of business

73.—(1) Where an approved person ceases business or ceases to be registered, or where such a person dies or becomes bankrupt or incapacitated, the approved person or the approved person's representative must, within 2 months or such longer period as the Comptroller may allow, make a return accounting for and pay tax on supplies made and received during the previous 12 months which

have not otherwise been accounted for, subject to any adjustment for credit for input tax, and tax in respect of any payment or other consideration received for earlier supplies must be accounted for and paid when received.

(2) Where a business or part of a business carried on by an approved person is transferred as a going concern and paragraph 1(2) of the First Schedule to the Act does not apply, the transferor must, within 2 months, make a return accounting for and pay tax on supplies made and received during the previous 12 months which have not otherwise been accounted for, subject to any adjustment for credit for input tax, and tax in respect of any payment or other consideration received for earlier supplies must be accounted for and paid when received.

(3) Where a business carried on by an approved person is transferred in circumstances where paragraph 1(2) of the First Schedule to the Act applies, the transferee must continue to account for and pay tax as if the transferee was an approved person on supplies made and received by the transferor prior to the date of transfer.

Revocation of approval

74.—(1) The Comptroller may by written notice revoke an approval in any case where —

- (a) an approved person has provided any false, misleading or inaccurate declaration or information in the approved person's application for approval under regulation 68;
- (b) an approved person has, while admitted to the scheme, been convicted of an offence in connection with goods and services tax or has accepted any offer of composition under section 75 of the Act or the Customs Act 1960 as applied by section 26 of the Act;
- (c) an approved person has, while admitted to the scheme, been assessed to a penalty under section 48 of the Act;
- (d) an approved person has claimed input tax as though the approved person had not been admitted to the scheme;

(e) an approved person has failed to comply with any condition or requirement imposed by the Comptroller under regulation 68; or

(f) it is necessary to do so for the protection of the revenue.

(2) A person whose approval is revoked under paragraph (1) must account for and pay on a return made in respect of the person's current prescribed accounting period all tax which has not been accounted for and paid in accordance with the scheme subject to any adjustment for credit for input tax.

Accounting while in scheme

75.—(1) Except in the circumstances set out in regulations 71, 72 and 73, tax must be accounted for and paid to the Comptroller by the due date prescribed for the accounting period in which payment or other consideration for the supply is received.

(2) Input tax may be credited either in the prescribed accounting period in which payment or consideration for a supply is given, or in such later period as may be agreed with the Comptroller.

(3) An approved person must obtain and keep for the relevant period a receipted and dated tax invoice from any taxable person to whom the approved person has made a payment in money in respect of a taxable supply (other than a reverse charge supply), and in such circumstances a taxable person must on request provide such a receipted and dated tax invoice.

(4) In this regulation, “relevant period” means —

(a) where the prescribed accounting period during which the payment in money referred to in paragraph (3) was made ends before 1 January 2007 — a period of 7 years after the end of that prescribed accounting period or such shorter period as the Comptroller may allow; or

(b) where the prescribed accounting period during which the payment in money referred to in paragraph (3) was made ends on or after 1 January 2007 — a period of 5 years after the end of that prescribed accounting period or such shorter period as the Comptroller may allow.

Saving for Government

76. This Part, subject to such exceptions, modifications and adaptations as may be necessary, applies to a ministry or department of the Government or an organ of State.

PART 10

DISPLAY OF PRICES

Price to include tax

77.—(1) Where any taxable person displays, advertises, publishes or quotes in any manner the price of any supply of goods or services the taxable person makes or intends to make, such price must include the tax that is chargeable on the supply under the Act unless the Comptroller approves otherwise under regulation 78.

(2) Where a taxable person displays, advertises, publishes or quotes, in relation to any supply of goods or services the taxable person makes or intends to make, both of the following prices:

- (a) the price of the supply which includes the tax that is chargeable on the supply under the Act;
- (b) the price of the supply which excludes the tax that is chargeable on the supply under the Act,

then the taxable person must, in the display, advertisement, publication or quote, give the price mentioned in sub-paragraph (a) the same prominence as, or greater prominence than, the price mentioned in sub-paragraph (b).

(3) Paragraphs (1) and (2) do not apply to any display, advertisement, publication or quotation which is intended solely for the purpose of making the supply to a taxable person and which is in a form not ordinarily available for distribution to the public.

Exemption

78.—(1) Any taxable person who desires to be exempted from the requirement under regulation 77(1), must apply to the Comptroller in such form and manner as the Comptroller may determine.

(2) The Comptroller may, if the Comptroller thinks fit, approve in writing the application, subject to such conditions as the Comptroller may impose.

(3) The Comptroller may, for reasonable cause, at any time revoke any approval granted under paragraph (2).

Tax shown on receipt

79. Any taxable person who issues a receipt required under section 44 of the Act for any supply of goods or services which he, she or it makes must indicate on the receipt —

- (a) the name and registration number of the supplier;
- (b) the date of issue of the receipt; and
- (c) the total amount payable including the total tax chargeable on the supply.

PART 11

MARGIN SCHEME

Relief for certain goods

80.—(1) Where a taxable person has acquired any used goods (other than an interest in or right over land) under any of the following circumstances, the tax chargeable on a supply by the taxable person of any of these used goods must be charged in accordance with section 23(2) of the Act:

- (a) a supply to the taxable person on which no tax under the Act was chargeable;
- (b) a supply to the taxable person on which tax was chargeable in accordance with section 23(2) of the Act.

(2) Where a taxable person supplies any goods under a hire-purchase agreement which was acquired under any of the following circumstances, the tax on that supply must be charged in accordance with section 23(2) of the Act:

- (a) a supply to the taxable person on which no tax under the Act was chargeable;

- (b) a supply to the taxable person on which tax was chargeable in accordance with section 23(2) of the Act.

81. [*Deleted by S 444/2025*]

PART 12

BAD DEBT RELIEF

Definitions of this Part

82.—(1) In this Part —

“claim” means a claim in accordance with regulations 84 and 85 for a refund or reduction of tax to which a person is entitled by virtue of regulation 83;

“claimant” means the person who makes a claim;

“debtor” means a person to whom the claimant made a relevant supply and who is liable to pay any outstanding amount of the consideration;

“outstanding amount” means —

(a) if at the time of the claim the person has received no payment by way of the consideration written off in the person’s accounts as a bad debt, an amount equal to the amount of the consideration so written off; and

(b) if at that time the person has received a payment or payments by way of the consideration so written off, an amount by which the payment (or the aggregate of the payments) is exceeded by the amount of the consideration so written off;

“payment” means any payment or part-payment which is made by any person to the claimant by way of consideration for a supply regardless of whether such payment extinguishes the debtor’s debt to the claimant or not;

“refunds for bad debts account” has the meaning given by regulation 86(3);

“relevant supply” means any taxable supply (other than a reverse charge supply) upon which a claim is based;

“return” means the return which the claimant is required to make in accordance with regulation 52;

“security” means any mortgage, charge, lien or other security.

(2) Sections 11, 11A, 11B and 12 of the Act apply for determining the time when a supply is to be treated as taking place for the purposes of this Part.

Bad debt relief

83.—(1) Subject to these Regulations, a claimant is entitled, on making a claim to the Comptroller, to a refund of the amount of tax chargeable by reference to the outstanding amount where —

- (a) the claimant has supplied goods or services for a consideration in money and has accounted for and paid tax on the supply;
- (b) the whole or any part of the consideration for the supply has been written off in the claimant’s accounts as a bad debt;
- (c) a period of 12 months beginning with the date of supply has elapsed or the debtor has become insolvent before the period of 12 months has elapsed; and
- (d) the Comptroller is satisfied that all reasonable efforts have been taken by the claimant to recover the debt.

(2) Where the claimant is a registered (Seventh Schedule — pay only) person, the person —

- (a) is not entitled to a refund of the amount of tax chargeable by reference to the outstanding amount (except as allowed under paragraph (3)); but
- (b) is entitled to a reduction of the output tax due from the person for the prescribed accounting period for which the claim is made, of that amount of tax chargeable.

(3) Where the amount of tax chargeable mentioned in paragraph (2) exceeds the output tax for the prescribed accounting period for which the claim for reduction is made, any amount of the difference —

- (a) may be used to reduce the output tax due from the person in any subsequent prescribed accounting period; or
- (b) if the Comptroller allows, may be refunded by the Comptroller to the person (after deducting from the refund any expenses that the Comptroller may incur in making the refund).

(4) A person is not entitled to a refund or reduction under paragraph (1) or (2) unless —

- (a) the value of the supply is equal to or less than its open market value;
- (b) in the case of a supply of goods, the property in the goods has passed to the person to whom they were supplied or to a person deriving title from, through or under that person; and
- (c) the claim was made within the relevant period.

(5) For the purposes of paragraph (1), the debtor is treated as insolvent if the claimant is able to show to the satisfaction of the Comptroller that —

- (a) in the case where the debtor is an individual, he or she is adjudged bankrupt, a deed of arrangement is made for the benefit of his or her creditors or a composition or scheme of arrangement proposed by him or her is accepted under section 357 of the Insolvency, Restructuring and Dissolution Act 2018;
- (b) in the case where the debtor is a company, it is ordered by the court —
 - (i) to be wound up because it is unable to pay its debts within the meaning of the Companies Act 1967; or
 - (ii) to be placed under the judicial management of a judicial manager; or

(c) in the case where the debtor is a company, a receiver is appointed and the statement of affairs lodged with the Registrar of Companies shows that its assets would be insufficient to cover the payment of any dividend in respect of debts which are neither secured nor preferential.

(6) In this regulation, “relevant period” means —

(a) where the prescribed accounting period during which the supply referred to in paragraph (1) was made ends before 1 January 2007, a period of 7 years commencing on the day the supply was made or such longer period as the Comptroller may have allowed; or

(b) where the prescribed accounting period during which the supply referred to in paragraph (1) was made ends on or after 1 January 2007, a period of 5 years commencing on —

(i) the day the supply was made; and

(ii) where section 92 or 92A of the Act applies to the supply, the transitional date for the supply,

or such longer period as the Comptroller may have allowed.

Making claim to Comptroller

84.—(1) Except as the Comptroller may otherwise allow, the claimant must make a claim to the Comptroller by including the correct amount of the refund or reduction (as the case may be) in the appropriate box on the claimant’s return.

(2) If at the time the claimant becomes entitled to a refund or reduction (as the case may be) the claimant is no longer required to make returns to the Comptroller, the claimant must make a claim to the Comptroller in such form and manner as the Comptroller may determine.

Evidence required to support claim

85. Except as the Comptroller may otherwise allow, the claimant, before the claimant makes a claim, must hold in respect of each relevant supply —

- (a) a copy of any tax invoice which was provided in accordance with Part 3 or where there was no obligation to provide a tax invoice, a document which shows the time, nature and purchaser thereof, and the consideration therefor;
- (b) records or any other documents showing that the claimant has accounted for and paid the tax thereon;
- (c) records or any other documents showing that the consideration has been written off in the claimant's accounts as a bad debt; and
- (d) records or any other documents showing that all reasonable efforts have been taken by the claimant to recover the debt.

Records to be kept

86.—(1) Any person who makes a claim to the Comptroller must keep a record of that claim.

(2) Except as the Comptroller may otherwise allow, the record mentioned in paragraph (1) must consist of the following information in respect of each claim made:

- (a) in respect of each relevant supply for that claim —
 - (i) the amount of tax chargeable;
 - (ii) the prescribed accounting period in which the tax chargeable was accounted for and paid to the Comptroller;
 - (iii) the date and number of any invoice issued in relation thereto or, where there is no such invoice, such information as is necessary to identify the time, nature and debtor thereof; and
 - (iv) any payment received therefor;

- (b) the outstanding amount to which the claim relates;
 - (c) the amount of the claim;
 - (d) the prescribed accounting period in which the claim was made.
- (3) Any records created pursuant to this regulation must be kept —
- (a) in a single account to be known as the “refunds for bad debts account”; or
 - (b) where regulation 83(2) applies, in a single account to be known as the “reductions pursuant to bad debts account”.

Preservation of documents and records and duty to produce

87.—(1) Except as the Comptroller may otherwise allow, the claimant must preserve the documents, invoices and records which the claimant holds or keeps in accordance with regulations 85 and 86 for a period of not less than 3 years after the date of the making of the claim.

(2) Upon demand made by an authorised person the claimant must produce or cause to be produced any such documents, invoices and records for inspection by the authorised person and permit the authorised person to remove them at a reasonable time and for a reasonable period.

(3) Nothing in this regulation is to be construed as derogating from any requirement under the Act to preserve any document, invoice or record for a period exceeding 3 years.

Attribution of payments

88.—(1) Where —

- (a) the claimant has made more than one supply (whether taxable or otherwise) to the debtor; and
 - (b) a payment is received in relation to those supplies,
- the payment must be attributed to each such supply in accordance with paragraphs (2) and (3).

(2) The payment must be attributed to the supply which is the earliest in time and, if not wholly attributed to that supply, thereafter to supplies in the order of the dates on which they were made, except that attribution under this paragraph must not be made to any supply if the payment was allocated to that supply by the debtor at the time of payment and the consideration for that supply was paid in full.

(3) Where —

- (a) the earliest supply and other supplies to which the whole of the payment could be attributed under this regulation occur on one day; or
- (b) the supplies to which the balance of the payment could be attributed under this regulation occur on one day,

the payment must be attributed to those supplies by applying for each supply the formula

$$A \times \frac{B}{C}$$

where A is the payment received;

B is the outstanding consideration for that supply; and

C is the total outstanding consideration for those supplies.

Repayment of refund

89.—(1) Where a claimant —

- (a) has received a refund upon a claim, or made a claim for a reduction under regulation 83(2); and
- (b)
 - (i) a payment for the relevant supply is subsequently received; or
 - (ii) a payment is, by virtue of regulation 88, treated as attributed to the relevant supply,

the claimant must repay to the Comptroller such an amount calculated in accordance with the formula

$$A \times \frac{B}{C}$$

where A is the amount of the refund or reduction, or the balance thereof;

B is the amount of payment so received or attributed; and

C is the amount of the outstanding consideration.

(2) The claimant must repay to the Comptroller the amount referred to in paragraph (1) together with the claimant's tax by including that amount in the appropriate box specified for this purpose on the claimant's return for the prescribed accounting period in which the payment is received.

(3) Except as the Comptroller may otherwise allow, where the claimant fails to comply with the requirements of regulation 85, 86, 87 or 88, the claimant must repay to the Comptroller the amount of the refund or reduction obtained by the claim to which the failure to comply relates; and the claimant must repay the amount together with the claimant's tax by including that amount in the appropriate box on the claimant's return for the prescribed accounting period which the Comptroller designates for that purpose.

(4) If, at the time the claimant is required to repay any amount, the claimant is no longer required to make returns to the Comptroller, the claimant must repay the amount to the Comptroller within one month after the claimant receives the payment mentioned in paragraph (1) and in such form and manner as the Comptroller may determine.

Writing off debts

90.—(1) This regulation applies for the purpose of ascertaining whether, and to what extent, the consideration is to be taken to have been written off as a bad debt.

(2) The whole or any part of the consideration for a supply is to be taken to have been written off as a bad debt when an entry is made in relation to that supply in the refunds for bad debts account or reductions pursuant to bad debts account in accordance with

regulation 86; and this has effect regardless of whether a claim can be made in relation to that supply at that time.

(3) Where the claimant owes an amount of money to the debtor which can be set-off, the consideration written off in the accounts is to be reduced by the amount so owed.

(4) Where the claimant holds in relation to the purchaser an enforceable security, the consideration written off in the accounts of the claimant is to be reduced by the value of that security.

PART 12A

REVERSE CHARGE ADJUSTMENTS

Definitions of this Part

90A.—(1) In this Part —

“claim” means a claim made to the Comptroller under regulation 90B, in accordance with regulation 90C, for a refund in respect of a reverse charge supply;

“claimant” means a recipient under section 14(2) of the Act, that makes a claim;

“outstanding consideration” means —

- (a) if at the time of the claim the claimant has made no payment to the supplier by way of the consideration for the distantly taxable goods or services in fact supplied by the supplier to the claimant, an amount equal to the amount of the consideration owing to the supplier; or
- (b) if at that time the claimant has made a payment or payments to the supplier by way of the consideration for the distantly taxable goods or services in fact supplied by the supplier to the claimant, an amount by which the payment (or the aggregate of the payments) is exceeded by the amount of the consideration for such supply;

“payment” means any payment or part-payment which is made by the claimant to the supplier by way of consideration for the supply by the supplier to the claimant, regardless of whether such payment is in full settlement of the amount owing by the claimant to the supplier or not;

“reverse charge adjustment account” has the meaning given by regulation 90E(3);

“supplier” means the person or branch of a person, or the member of a group mentioned in section 30 of the Act, that makes a supply to a recipient which gives rise to a reverse charge supply under section 14 of the Act.

(2) Section 11C of the Act applies for determining the time when a reverse charge supply is to be treated as taking place for the purposes of this Part.

Adjustment for reverse charge supply

90B. Subject to these Regulations, a claimant is entitled, on making a claim to the Comptroller, to a refund of the difference between the amount of output tax chargeable, and the amount of input tax claimable by the claimant, on a reverse charge supply by reference to the outstanding consideration, where —

- (a) the claimant has accounted for and paid tax on the reverse charge supply;
- (b) the whole or any part of the consideration has not been paid by the claimant to the supplier for the supply made by the supplier to the claimant, for a period of more than 12 months since the date the reverse charge supply was treated as taking place;
- (c) the value of the reverse charge supply is equal to or less than its open market value;
- (d) the claim is made within a period of 5 years commencing on —
 - (i) the day on the reverse charge supply was treated as taking place; or

- (ii) where section 93 or 94 of the Act applies to the reverse charge supply, the transitional (reverse charge) date for the supply,
or such longer period as the Comptroller may allow; and
- (e) the Comptroller is satisfied that there is a genuine commercial reason for the failure of the claimant to make payment of the whole or part of the consideration to the supplier for the reverse charge supply.

Making claim to Comptroller

90C.—(1) Except as the Comptroller may otherwise allow, the claimant must make the claim by including the relevant amounts of refund in the appropriate box or boxes (as the case may be) on the claimant's return for the prescribed accounting period in which the claim is made.

(2) If, at the time the claimant becomes entitled to make the claim, the claimant is no longer required to make returns to the Comptroller, the claimant must make a claim to the Comptroller in such form and manner as the Comptroller may determine.

Evidence required to support claim

90D. Except as the Comptroller may otherwise allow, the claimant must, at the time the claimant makes the claim, hold in respect of the reverse charge supply that is the subject of the claim —

- (a) a copy of any invoice or other document provided by the supplier that made the supply to the claimant, showing the time, nature and supplier of, and the consideration for, the supply made by the supplier;
- (b) records or other document showing that the claimant has accounted for and paid the output tax on the reverse charge supply;
- (c) records or other document showing any amount of input tax claimed by the claimant;
- (d) records or other document showing that the consideration has not been paid in full by the claimant to the supplier; and

- (e) records or other document showing that all reasonable efforts have been taken by the claimant to resolve any dispute over the consideration for the supply in fact made.

Records to be kept for claim

90E.—(1) A claimant must keep a record of the claim made.

(2) Except as the Comptroller may otherwise allow, the record must consist of the following information:

- (a) in respect of the reverse charge supply that is the subject of the claim —
 - (i) the amount of output tax chargeable and any corresponding amount of input tax claimable;
 - (ii) the prescribed accounting period in which the output tax chargeable was accounted for and paid to the Comptroller, and the input tax was claimed;
 - (iii) the date and number of any invoice issued in relation to, or (where there is no such invoice) such information and documents necessary to identify the time, nature and supplier of, the supply made by the supplier that gave rise to the reverse charge supply; and
 - (iv) the amount of any payment made for the supply made by the supplier;
- (b) the amount of the outstanding consideration to which the claim relates;
- (c) the amount of the claim;
- (d) the prescribed accounting period in which the claim was made.

(3) The records must be kept in the form of an account to be known as the “reverse charge adjustment account”.

Preservation of documents and records and duty to produce

90F.—(1) Except as the Comptroller may otherwise allow, the claimant must preserve the documents, invoices and records which

the claimant holds or keeps in accordance with regulations 90D and 90E for a period of not less than 3 years starting on the date of the claim.

(2) Upon demand made by an authorised person, the claimant must produce or cause to be produced any such documents, invoices and records for inspection by the authorised person and permit the authorised person to remove them at a reasonable time and for a reasonable period.

(3) Nothing in this regulation is to be construed as derogating from any requirement under the Act to preserve any document, invoice or record for a period exceeding 3 years.

Reversal of adjustment made under claim

90G.—(1) Where a claimant —

(a) has been given a refund pursuant to a claim; and

(b) subsequently either —

(i) makes a payment to the supplier for the supply made by the supplier to the claimant within the period of 5 years commencing on the day the reverse charge supply was treated as taking place; or

(ii) makes a payment to the supplier which, by virtue of regulation 90H, is treated as attributed to the supply,

the claimant must repay to the Comptroller an amount calculated in accordance with the formula

$$A \times \frac{B}{C}$$

where A is the amount of the refund, or (if any reversal under this regulation was previously made) the balance of the refund;

B is the amount of payment so made or attributed; and

C is the amount of the consideration for the supply owing by the claimant to the supplier immediately before the payment.

(2) The claimant must repay to the Comptroller the amount mentioned in paragraph (1) by including the relevant amounts of refund in the appropriate box or boxes on the claimant's return for the prescribed accounting period in which the payment mentioned in paragraph (1)(b) is made.

(3) Except as the Comptroller may otherwise allow, where the claimant fails to comply with the requirements of regulation 90D, 90E or 90F, the claimant must repay to the Comptroller the amount of the refund obtained to which the failure to comply relates; and the claimant must repay the amount by including the relevant amounts of output tax and input tax in the appropriate box or boxes on the claimant's return for the prescribed accounting period which the Comptroller designates for that purpose.

(4) If, at the time the claimant is required to repay any amount, the claimant is no longer required to make returns to the Comptroller, the claimant must repay the amount to the Comptroller within one month after the claimant makes the payment mentioned in paragraph (1)(b), and in such form and manner as the Comptroller may determine.

Attribution of payments

90H.—(1) Where —

- (a) more than one supply of distantly taxable goods or services was made by the same supplier to a person, with one or more supply giving rise to a reverse charge supply;
- (b) a payment is made by the person to the supplier for those supplies; and
- (c) at the time of the payment, the person is a claimant in relation to one or more of those supplies,

then the payment is to be attributed to each of those supplies in accordance with paragraphs (2), (3) and (4).

(2) The payment must be attributed to the supply which is the earliest in time and then, if not wholly attributed to that supply, to the other supplies in the order of the dates on which they were made.

(3) Attribution under paragraph (2) must not be made to any supply made by the supplier if the payment was allocated to that supply by

the claimant at the time of payment and the consideration for that supply was paid in full.

(4) Where —

- (a) the earliest supply and other supplies made by the supplier to which the whole of the payment could be attributed under this regulation occur on one day; or
- (b) the supplies made by the supplier to which the balance of the payment could be attributed under this regulation occur on one day,

the payment must be attributed to those supplies by applying for each supply the formula

$$A \times \frac{B}{C}$$

where A is the payment made by the claimant to the supplier;

B is the amount of the consideration not paid to the supplier for the supply in question immediately before the payment in paragraph (1); and

C is the total consideration not paid to the supplier for the supplies mentioned in sub-paragraph (a) or (b) (as the case may be) immediately before the payment in paragraph (1).

Consideration not paid

90I.—(1) This regulation applies for the purpose of ascertaining whether, and to what extent, the consideration is treated as not paid by the claimant to the supplier for a supply made by the supplier to the claimant.

(2) The whole or any part of the consideration for the supply is treated as not paid by the claimant to the supplier when details relating to that fact are entered into the reverse charge adjustment account of the claimant, regardless of whether the claim can be made in relation to that supply at that time.

(3) Where the supplier owes an amount of money to the claimant which can be set-off against the outstanding consideration, the consideration treated as not paid is to be reduced by the amount so owed.

(4) Where the supplier holds in relation to the claimant an enforceable security, the consideration treated as not paid is to be reduced by the value of that security.

PART 13

BETTING AND GAMING

Division 1 — General

Consideration of betting and gaming transactions

91. Subject to regulation 91A, where any person pays an amount in money to participate in any transaction involving betting, sweepstakes, lotteries, fruit machines or games of chance, the amount of money so paid is, for the purposes of the tax, treated as the consideration for a supply of services to the person.

Value of betting and gaming transactions

91A.—(1) Despite section 17 of the Act, the value to be taken as the value of supplies made in the circumstances mentioned in regulation 91 in any period is to be determined as if the consideration for the supplies were reduced by an amount equal to the amount of money (if any) received in that period by persons (other than the person (*A*) making the supply and persons acting on *A*'s behalf) participating successfully in the betting, sweepstakes, lotteries, fruit machines or games of chance, as the case may be.

(2) The insertion of a token into a machine is treated for the purposes of regulation 91 as the payment of an amount equal to that for which the token can be obtained; and the receipt of a token by a person playing successfully is treated for the purposes of paragraph (1) —

- (a) if the token is of a kind used to play the machine, as the receipt of an amount equal to that for which such a token can be obtained; or
- (b) if the token is not of such a kind but can be exchanged for money, as the receipt of an amount equal to that for which it can be exchanged.

Tax chargeable on betting and gaming transactions

91B. The tax chargeable and payable under the Act on the transactions referred to in regulation 91 is to be the tax fraction of the value of the supplies referred to in regulation 91A.

Division 2 — Casinos

Sub-division 1 — Definitions

Definitions of this Division

92. In this Division —

- “casino”, “casino operator”, “chips”, “game” and “match play coupon” have the meanings given by section 2(1) of the Casino Control Act 2006;
- “coupon” has the meaning given by regulation 2 of the Casino Control (Casino Tax) Regulations 2010;
- “gaming supply” means a supply referred to in regulation 92C;
- “gross gaming revenue” and “net win” have the meanings given by section 146(6) of the Casino Control Act 2006;
- “prescribed accounting period” means any reporting period in respect of which a casino operator is required under regulation 4 of the Casino Control (Casino Tax) Regulations 2010 to furnish to the Comptroller of Income Tax a return of the gross gaming revenue of the casino operator for that period;
- “rake” has the meaning given by regulation 2 of the Casino Control (Casino Tax) Regulations 2010.

Sub-division 2 — Registration

Divisional registration

92A. Despite anything in regulation 7(2), where a casino operator carries on any other business in addition to the business of operating a casino, the operation of the casino must be registered as a division separate from the other business.

Sub-division 3 — Tax on gaming supplies

Application

92B. This sub-division applies, despite Division 1, to gaming supplies made by a casino operator.

Gaming supplies

92C. A casino operator is treated as having made a supply of services for the purpose of section 8 of the Act when a person pays, or agrees to make payment of, an amount in money to a casino operator —

- (a) as a bet received and accepted by the casino operator as a wager on any game where the casino operator is a party to a wager; or
- (b) to participate in any game where the casino operator is not a party to a wager but the game is conducted by the casino operator, or allowed by the casino operator to be conducted, within the casino premises.

Time of gaming supplies

92D. Despite sections 11, 11A, 11B and 12 of the Act, a gaming supply is treated as having been made at the end of the prescribed accounting period in respect of which the net win from that gaming supply is included in determining the gross gaming revenue of the casino operator for that period.

Computation of tax chargeable on gaming supplies

92E.—(1) The tax chargeable on the gaming supplies of a casino operator made at the end of a prescribed accounting period is to be the tax fraction of the value of those gaming supplies.

(2) For the purpose of paragraph (1), the value of the gaming supplies made at the end of a prescribed accounting period is the aggregate of the following:

- (a) the sum total of the net wins of all gaming supplies made at the end of that period less the amounts specified in paragraph (3);
- (b) the amount of any bad debt treated as having been recovered under paragraph (5) in that period;
- (c) any negative supply value that may be deducted in accordance with regulation 92F.

(3) For the purpose of paragraph (2)(a), the specified amounts are as follows:

- (a) the amount of —
 - (i) any bet placed in the prescribed accounting period using complimentary chips or complimentary coupons given by the casino operator;
 - (ii) the full value of any bet placed in the prescribed accounting period with a match play coupon given by the casino operator; and
 - (iii) any discount or rebate given by the casino operator in the prescribed accounting period;
- (b) the amount of any bad debt treated as having arisen in the prescribed accounting period in accordance with paragraph (4);
- (c) in respect of any table game played in the prescribed accounting period, the amount of any rake which is included in the computation of the net win for the game for the prescribed accounting period but which was not collected by the casino operator.

(4) For the purpose of paragraph (3)(b), a bad debt is treated as having arisen in a prescribed accounting period where —

- (a) the casino operator has made a gaming supply for a consideration in money and has accounted for and paid tax on the supply;
- (b) the whole or any part of the consideration for the supply has been written off in the accounts of the casino operator as a bad debt;
- (c) the debtor has become insolvent before the end of the prescribed accounting period or a period of 12 months, beginning with the date of the gaming supply, has elapsed before the end of the prescribed accounting period; and
- (d) the Comptroller is satisfied that all reasonable efforts have been taken by the casino operator to recover the debt up to the time the 12 months period referred to in sub-paragraph (c) elapsed or the debtor became insolvent, as the case may be.

(5) For the purpose of paragraph (2)(b), where a deduction has been made under paragraph (2) in respect of any bad debt referred to in paragraph (3)(b) and —

- (a) a payment for the gaming supply that has been written off in the accounts of the casino operator as a bad debt is subsequently received as recovery of the bad debt; or
- (b) a payment is attributed to the gaming supply mentioned in sub-paragraph (a) as recovery of the bad debt,

the amount of the bad debt is treated as having been recovered in the prescribed accounting period in which the payment is received for or attributed to the gaming supply.

(6) For the purpose of this regulation, the value of any complimentary chip, complimentary coupon, match play coupon, discount, rebate or rake is to be reckoned in the same manner as for the computation of casino tax under the Casino Control (Casino Tax) Regulations 2010.

Carry forward of negative gaming supply

92F. Where the value for any gaming supply determined under regulation 92E is negative for any prescribed accounting period —

- (a) the negative supply value is to be disregarded and is to be treated as nil for the prescribed accounting period;
- (b) no refund of tax in respect of the gaming supply is to be made for the prescribed accounting period;
- (c) the negative supply value may be deducted against the value of the gaming supplies of the prescribed accounting period immediately following the prescribed accounting period in respect of which the negative supply value has arisen and, so far as it cannot be so made, then from the value of the gaming supplies of the next prescribed accounting period, and so on; and
- (d) the negative supply value is not to be allowed as a deduction against the value of any supply other than a gaming supply of the casino operator in accordance with paragraph (c).

Disallowance of input tax in respect of non-monetary prize

92G. There must be excluded from any credit under sections 19 and 20 of the Act the amount of any input tax on any supply to a casino operator of goods and services which are used by the casino operator as a non-monetary prize for any gaming supply.

93. [*Deleted by S 64/2010*]

PART 13A

VOUCHERS

Application of this Part

93A. This Part applies to any voucher referred to in section 35A of the Act that —

- (a) is supplied on or after 1 January 2010; or

- (b) was supplied before 1 January 2010 and can no longer be redeemed on or after 1 January 2010, but only —
 - (i) in relation to any unredeemed balance of the voucher; and
 - (ii) if tax was not previously accounted for on that balance.

Supply of vouchers by issuer

93B.—(1) Subject to regulations 93E and 93F, where any voucher is supplied by an issuer for a consideration that is equal to or less than the value of the voucher, the consideration is to be disregarded for the purposes of the Act except to the extent that regulation 93D applies.

(2) Subject to regulations 93E and 93F, where any voucher is supplied by an issuer for a consideration that is more than its value, where the issuer is a taxable person at the time of the supply of the voucher, tax is chargeable on the supply of the voucher by the issuer of the voucher as follows:

- (a) in the first instance, at the time the voucher is supplied, on the amount by which the consideration for the supply exceeds the value;
- (b) thereafter, in accordance with regulation 93D (where it applies).

Redemption of voucher

93C.—(1) Subject to regulation 93E, where a taxable person supplies goods or services upon the redemption of a voucher that is wholly redeemed on a single occasion, the value of the supply is —

- (a) where the consideration received by the issuer for the voucher was less than the value of the voucher, either of the following at the option of the taxable person:
 - (i) the value of the voucher;
 - (ii) the amount of the consideration; or

- (b) where the consideration received by the issuer for the voucher was equal to or more than the value of the voucher, the value of the voucher,

plus any additional consideration the taxable person may have received (in addition to the voucher) for the supply.

(2) Subject to regulation 93E, where a taxable person supplies goods or services upon the redemption of a voucher that is partially redeemed on more than one occasion, the value of the supply on each such occasion is —

- (a) where the consideration received by the issuer for the voucher was less than the value of the voucher, either of the following at the option of the taxable person:

- (i) the portion of the value of the voucher being redeemed on that occasion;

- (ii) the amount of that consideration that is proportional to the value of the voucher being redeemed on that occasion; or

- (b) where the consideration received by the issuer for the voucher was equal to or more than the value of the voucher, the portion of the value of the voucher being redeemed on that occasion,

plus any additional consideration the taxable person may have received (in addition to the voucher) for the supply on that occasion.

(3) This regulation does not apply where a voucher is redeemed for another voucher.

Unredeemed balance of vouchers

93D. Unless the Comptroller otherwise allows, for the purpose of regulation 93B(1) and (2)(b), where the whole or any part of the value of any voucher can no longer be redeemed, and where the issuer was a taxable person at the time of the supply of the voucher, tax is chargeable on the supply by the issuer of the voucher as follows:

- (a) the time of the supply is to be when —

- (i) the voucher can no longer be redeemed; and

- (ii) the issuer accounts for the unredeemed value of the voucher in the issuer's statement of income;
- (b) the value of the supply is to be the unredeemed value of the voucher so accounted for in the issuer's statement of income.

Election for different treatment

93E.—(1) Despite regulations 93B, 93C and 93D, where an issuer of a voucher is also the taxable person who supplies the goods or services upon the redemption of the voucher, the issuer may, with the approval of the Comptroller, elect not to be subject to those regulations.

(2) For the purpose of paragraph (1), the Comptroller may give his or her approval —

- (a) generally in respect of any description of voucher; or
- (b) specifically (upon an application being made to the Comptroller) in respect of any description of voucher for which the Comptroller has not given his or her approval generally.

(3) The approval of the Comptroller, whether given generally or specifically, may be subject to such conditions as the Comptroller thinks fit to impose.

(4) Where an issuer has, with the approval of the Comptroller, elected not to be subject to regulations 93B, 93C and 93D —

- (a) where the voucher is supplied for a consideration equal to or less than the value of the voucher, the consideration is to be disregarded for the purposes of the Act;
- (b) where the voucher is supplied for a consideration more than its value, tax is chargeable on the supply of the voucher on the amount by which the consideration exceeds the value of the voucher; and
- (c) tax is chargeable on the supply of the goods or services made upon the redemption of the voucher as follows:

- (i) the time of the supply is to be the time of supply of the voucher;
- (ii) the value of the supply is to be —
 - (A) where the consideration for the voucher was equal to or less than the value of the voucher, the consideration for the voucher; and
 - (B) where the consideration for the voucher is more than the value of the voucher, the value of the voucher.

Supply of vouchers by intermediary

93F.—(1) This regulation applies to a person (called in this regulation an intermediary) who —

- (a) buys a voucher issued by a supplier of goods and services from any person (including the supplier) and thereafter supplies the voucher —
 - (i) against consideration given to the intermediary other than in the form of another voucher issued by the intermediary; or
 - (ii) upon the redemption of another voucher issued by the intermediary; or
- (b) supplies a voucher issued by the intermediary (called in this regulation the firstmentioned voucher) upon the redemption of another voucher also issued by the intermediary (called in this regulation the second-mentioned voucher), where —
 - (i) the firstmentioned voucher entitles the holder thereof to the same rights and benefits from a supplier of goods and services as those which the holder would be entitled to if the firstmentioned voucher were issued by that supplier; and
 - (ii) the intermediary has an arrangement with the supplier to pay the supplier an agreed amount for the goods or services (including a voucher issued by

the supplier mentioned in sub-paragraph (i)) supplied upon the redemption of the firstmentioned voucher.

(2) Where vouchers are supplied by an intermediary in any prescribed accounting period in the circumstances referred to in paragraph (1)(a) or (b), tax is chargeable on the supply of the vouchers as follows:

(a) in respect of paragraph (1)(a), tax is chargeable at the rate specified in section 16 of the Act on the supplies made by the intermediary of the vouchers issued by the supplier as follows:

- (i) the time of the supply is to be the end of the accounting period in which the supplies are made;
- (ii) the value of the supplies is to be an amount equal to the excess of $A - B$,

where A is the consideration from the supplies of the vouchers made by the intermediary in that accounting period; and

B is the cost to the intermediary of all such vouchers;

(b) in respect of paragraph (1)(b), tax is chargeable at the rate specified in section 16 of the Act on the supplies made by the intermediary of the firstmentioned vouchers as follows:

- (i) the time of the supply is to be the end of the accounting period in which the firstmentioned vouchers are redeemed;
- (ii) the value of the supplies is to be an amount equal to the excess of $A - B$,

where A is the consideration from the supplies of the firstmentioned vouchers made by the intermediary in that accounting period; and

B is the agreed amounts payable by the intermediary to the supplier for the goods and services (including a voucher issued by the supplier mentioned in sub-paragraph (i)) supplied by the supplier upon the redemption of such firstmentioned vouchers.

(3) For the purposes of paragraph (2), where there is no excess under paragraph (2)(a)(ii) or (b)(ii) in respect of an accounting period or in respect of a supply of a voucher, the tax is not to be charged in respect of that accounting period or supply, as the case may be.

(4) In the circumstances referred to in paragraph (2)(b), where the whole of a firstmentioned voucher supplied by the intermediary can no longer be redeemed, tax is chargeable on the supply made by the intermediary of the firstmentioned voucher as follows:

(a) the time of the supply is to be when —

- (i) the firstmentioned voucher can no longer be redeemed; and
- (ii) the intermediary accounts for the unredeemed value of the firstmentioned voucher in the intermediary's statement of income;

(b) the value of the supply is to be the value of the firstmentioned voucher so accounted for in the intermediary's statement of income.

(5) An intermediary is not entitled to claim as input tax —

- (a) in the circumstances referred to in paragraph (1)(a), the tax chargeable on any previous supply of any voucher to the intermediary which the intermediary subsequently supplies to another person for any consideration; and
- (b) in the circumstances referred to in paragraph (1)(b), the tax chargeable on the supply of goods and services to which the payment referred to in sub-paragraph (ii) of that paragraph relates.

PART 14

WAREHOUSING REGIME

Application for licence

94.—(1) The Comptroller may, on an application made to the Comptroller under paragraph (3), issue a licence for any warehouse or other premises to be a warehouse (called in this Part a bonded

warehouse) for the storage of goods under customs control as referred to in section 37 of the Act and may, in addition to such powers and conditions as are specified in this Part, impose such further conditions (including, but not limited to, the payment of any fees) therein as the Comptroller thinks fit.

(2) A licence mentioned in paragraph (1) may be issued in respect of one or more bonded warehouses.

(3) Every application for a licence under paragraph (1) must be made on such form as the Comptroller may determine and must give a full and true account of the particulars or information for which the provision is made in the form.

Furnishing of security

95. The Comptroller may require an applicant to give references and to furnish security for the due payment of all tax and fees for which the applicant may become liable.

Period of licence

96.—(1) A licence issued under regulation 94 expires on 31 December of the year or such other date as the Comptroller may determine and the Comptroller may, in the Comptroller's discretion, renew the licence.

(2) The licensee may apply in writing to the Comptroller to surrender a licence issued under regulation 94 and the Comptroller may, unless the Comptroller thinks it necessary for the protection of the revenue, withdraw the licence from such date as the Comptroller may determine.

Maintenance of warehouse

97.—(1) The licensee must ensure that a bonded warehouse is secured to the satisfaction of the Comptroller.

(2) The Comptroller may, at any time, in writing, direct the licensee to provide any additional means for storing the goods and securing the safety of those goods which may, in the opinion of the Comptroller, be necessary.

Types of goods stored

98.—(1) A bonded warehouse must not be used for the storage of goods for which any duties (whether customs duty or excise duty or both) is chargeable or payable or of goods other than those specifically allowed under the licence.

(2) A bonded warehouse must not be used for the storage of goods for which tax has been paid (whether upon removal or any other circumstances) without the written permission of the authorised officer.

Permitted activities in bonded warehouse

98A.—(1) Operations which are necessary to preserve goods stored in a bonded warehouse, improve their packaging or marketable quality or prepare them for shipment may, with the approval of an officer authorised by the Comptroller and subject to such conditions as the officer may impose, be carried out while the goods are stored in the bonded warehouse.

(2) Without limiting paragraph (1), the operations referred to in that paragraph may include —

(a) the breaking of bulk, grouping of packages, and sorting, grading and repacking of goods; and

(b) the servicing and repair of motor vehicles.

(3) Operations other than those specified in paragraph (1) may, with the approval of the Comptroller and subject to such conditions as the Comptroller may impose, be carried out on the goods while the goods are stored in the bonded warehouse.

(4) Goods in a bonded warehouse must not be used in any manner except with the approval of the Comptroller and subject to such conditions as the Comptroller may impose.

Manner of storage

99.—(1) Any authorised officer may require that all packages entering a bonded warehouse be marked with such identification marks and in such manner as he or she may direct.

(2) The authorised officer may direct that the packages be stacked and accounted for in such manner as he or she may direct and stored in such manner that every package may be accounted for and inspected.

(3) Any authorised officer may examine at any time the stock of goods stored in a bonded warehouse, and may require that he or she be shown every package containing goods and the contents thereof.

(4) The applicant must make such provision against the risk of fire and for the safeguard of health as the relevant authority may require.

Records, returns and permits

100.—(1) Every licensee must maintain in the licensee's bonded warehouse a record of the licensee's stock or inventory, in a form approved by the Comptroller, and must on each day enter in it details of all goods received into or removed from the licensee's bonded warehouse.

(2) Every licensee must, not later than the 5th day of each month or such later day as the Comptroller may allow, furnish to the Comptroller a return, in such form and containing such information as the Comptroller may require, relating to all goods received into or removed from the licensee's bonded warehouse for the whole of the preceding month.

(3) Except where the Comptroller otherwise allows or directs in writing, every entry or removal of goods stored or to be stored in a bonded warehouse must only be made pursuant to such customs permit as the Comptroller may determine.

(4) If it appears to the Comptroller that there is any deficiency in quantity that is indicated or ought to be indicated in the record of stock or inventory, the licensee is, unless the licensee shows proof to the contrary, presumed to have removed the goods in the bonded warehouse in contravention of paragraph (3) and without payment of the tax chargeable on the goods and is accordingly liable for the tax chargeable on the goods.

Destruction of goods

101.—(1) The licensee may at any time request permission to destroy goods stored in a bonded warehouse and the Comptroller must, upon receipt of the request, permit the goods to be destroyed subject to such conditions as the Comptroller may, in the Comptroller's discretion, impose and the licensee must thereupon cause the goods to be destroyed in the presence of an authorised officer and an entry must be made in the record of stock or inventory of such destruction.

(2) Despite paragraph (1), the Comptroller may, in the Comptroller's discretion, waive the requirement for the presence of an authorised officer in any particular case or class of cases.

(3) The fee specified in the First Schedule for the attendance of one or more authorised officers in connection with the destruction of the goods must be paid by the licensee except where the Comptroller in the Comptroller's discretion waives the payment of such fee in any particular case.

Revocation or suspension of licence

102. The Comptroller may, at any time, by written notice revoke or suspend any licence issued under regulation 94 in respect of any one or more of the bonded warehouses referred to in the licence if the Comptroller is satisfied that —

- (a) the licensee has failed to comply with any condition or requirement imposed under this Part or by the Comptroller;
or
- (b) the licensee has provided any false, misleading or inaccurate declaration or information in the licensee's application for a licence under regulation 94.

Licence fees

103.—(1) There must be paid to the Comptroller the fees specified in the First Schedule for any licence issued or renewed under regulation 94.

(2) For any licence issued during any year, the fee is to be calculated at the rate of one-twelfth of the appropriate annual fee specified in the First Schedule for each month or part of a month for which the licence is valid.

(3) The Comptroller may, in the Comptroller's discretion, allow a refund of one-twelfth of the fee specified in the First Schedule for each complete month in respect of which the licence would have remained valid had it not been revoked or withdrawn.

PART 14A

WAREHOUSING (CONTAINER FREIGHT) REGIME

Definition of this Part

103A. In this Part, “container” means a box, tank or container of standard dimensions which —

- (a) is specially constructed for the safe carriage of goods;
- (b) is of permanent character and can be used more than once;
- (c) is specially designed to facilitate carriage of goods by one or more modes of transport;
- (d) is fitted with devices which enable it to be locked and sealed;
- (e) has an internal volume of at least one cubic metre; and
- (f) has conspicuous and permanent identification marks.

Application for container freight warehouse licence

103B.—(1) The Comptroller may, on an application made to the Comptroller under paragraph (2), issue a licence for any warehouse or other premises to be a container freight warehouse for the storage of goods under customs control as referred to in section 37 of the Act and may, in addition to such powers and conditions as are specified in this Part, impose such further conditions (including the payment of any fees) therein as the Comptroller thinks fit.

(2) Every application for a licence under paragraph (1) must be made on such form as the Comptroller may determine and must give a

full and true account of the particulars or information for which the provision is made in the form.

Furnishing of security

103C. The Comptroller may require an applicant to give references and to furnish security for the due payment of all taxes, duties and fees for which the applicant may become liable.

Period of licence

103D.—(1) A licence issued under regulation 103B expires on 31 December of the year or such other date as the Comptroller may determine and the Comptroller may, in the Comptroller's discretion, renew the licence.

(2) The licensee may apply in writing to the Comptroller to surrender a licence issued under regulation 103B and the Comptroller may, unless the Comptroller thinks it necessary for the protection of the revenue, withdraw the licence from such date as the Comptroller may determine.

Security of warehouse

103E.—(1) The licensee must ensure that a container freight warehouse is secured to the satisfaction of the Comptroller.

(2) The Comptroller may, at any time, in writing, direct the licensee to provide any additional means for storing the goods and securing the safety of those goods which may, in the opinion of the Comptroller, be necessary.

Use of container freight warehouse

103F.—(1) Subject to paragraph (3), a container freight warehouse may be used for the storage of goods that are —

- (a) unstuffed from a container;
- (b) to be stuffed into a container; and
- (c) in a container before unstuffing or after stuffing at the container freight warehouse, as the case may be.

(2) A container freight warehouse may, for the purpose of paragraph (1), be used for the unstuffing of a container with less than full container load.

(3) A container freight warehouse must not be used for the storage of any goods except for such types of goods, and for such period, as may be allowed under the licence.

Manner of storage

103G.—(1) Any authorised officer may require that all goods entering or being stored at a container freight warehouse be marked with such identification marks and in such manner as he or she may direct.

(2) The authorised officer may direct that the goods be stacked and accounted for in such manner as he or she may direct and stored in such manner that all goods may be accounted for and inspected.

(3) Any authorised officer may examine at any time the stock of goods stored in a container freight warehouse, and may require that he or she be shown every package containing goods and the contents thereof.

Records of movements and contents of container

103H.—(1) Every licensee of a container freight warehouse must keep and maintain proper records of —

- (a) every container brought into or removed from the container freight warehouse in respect of which the licence is issued;
- (b) such details of goods stuffed into or unstuffed from a container referred to in sub-paragraph (a) as the Comptroller may require; and
- (c) such other information as the Comptroller may require.

(2) Every licensee must provide to the Comptroller any information from its records mentioned in paragraph (1) in such form and within such period as the Comptroller may require.

(3) Except where the Comptroller otherwise allows or directs in writing, every entry or removal of goods stored or to be stored in a container freight warehouse must only be made pursuant to such customs permit as the Comptroller may determine.

(4) If it appears to the Comptroller that there is any deficiency in quantity that is indicated or ought to be indicated in the records mentioned in paragraph (1), the licensee is, unless the licensee shows proof to the contrary, presumed to have removed the goods in the container freight warehouse in contravention of paragraph (3) and without payment of the tax or duty chargeable on the goods and is accordingly liable for the tax or duty chargeable on the goods.

Destruction of goods

103I.—(1) The licensee may at any time request permission to destroy goods stored in a container freight warehouse and the Comptroller must, upon receipt of the request, permit the goods to be destroyed subject to such conditions as the Comptroller may, in the Comptroller's discretion, impose.

(2) The licensee must thereupon cause the goods to be destroyed in the presence of an authorised officer and an entry must be made in the records referred to in regulation 103H(1) of such destruction.

(3) Despite paragraph (2), the Comptroller may, in the Comptroller's discretion, waive the requirement for the presence of an authorised officer in any particular case or class of cases.

(4) The fee specified in the First Schedule for the attendance of one or more authorised officers in connection with the destruction of the goods must be paid by the licensee except where the Comptroller in the Comptroller's discretion waives the payment of such fee in any particular case.

Revocation

103J. The Comptroller may, at any time, by written notice revoke any licence issued under regulation 103B if the Comptroller is satisfied that —

- (a) the licensee has failed to comply with any condition or requirement imposed under this Part or by the Comptroller; or
- (b) the licensee has provided any false, misleading or inaccurate declaration or information in the licensee's application for a licence under regulation 103B.

Licence fees

103K.—(1) There must be paid to the Comptroller the fee specified in the First Schedule for any licence issued or renewed under regulation 103B.

(2) For any licence issued during any year, the fee is to be calculated at the rate of one-twelfth of the appropriate annual fee specified in the First Schedule for each month or part of a month for which the licence is valid.

(3) The Comptroller may, in the Comptroller's discretion, allow a refund of one-twelfth of the fee specified in the First Schedule for each complete month in respect of which the licence would have remained valid had it not been revoked or withdrawn.

PART 15

GENERAL

Acquirer of land to account for tax

104. A taxable supply of land made by any person to the State under the Land Acquisition Act 1966 is a prescribed supply for the purposes of section 38(5) of the Act.

Acquisition by real estate investment trust

104A.—(1) A taxable supply of immovable property is a prescribed supply for the purpose of section 38(5) of the Act if it is made by any person —

- (a) to the trustee of a real estate investment trust, where the real estate investment trust —
 - (i) is listed on the Singapore Exchange; or

(ii) is to be listed on the Singapore Exchange —

(A) within one month beginning on the day on which the supply takes place; or

(B) within such longer period, and on such terms and conditions as the Comptroller may specify; or

(b) to a special purpose vehicle of a real estate investment trust that satisfies the conditions specified in sub-paragraph (a), where —

(i) the special purpose vehicle is a taxable person; and

(ii) the trustee of the real estate investment trust has veto rights in relation to such key operational issues of the special purpose vehicle as the Comptroller may specify.

(2) A taxable supply of furniture, furnishings, fittings, appliances or effects, that is made together with a taxable supply of immovable property mentioned in paragraph (1), is a prescribed supply for the purpose of section 38(5) of the Act.

(3) In this regulation —

“real estate investment trust” means a trust that is constituted as a collective investment scheme authorised under section 286 of the Securities and Futures Act 2001 and that invests or proposes to invest, directly or indirectly, in any immovable property or immovable property-related assets;

“special purpose vehicle” means —

(a) a company or limited liability partnership that is established solely to hold, directly or indirectly, any immovable property or immovable property-related asset in which the real estate investment trust invests or proposes to invest; or

(b) a trust that is established in order for its trustee to hold, directly or indirectly, any immovable property or immovable property-related asset in which the real estate investment trust invests or proposes to invest.

Zero-rating of goods to be exported

105.—(1) Where the Comptroller is satisfied that goods supplied by a taxable person are to be exported, the supply is zero-rated if the taxable person —

- (a) has obtained the prior approval of the Comptroller in relation to that supply;
- (b) produces such evidence of export as the Comptroller may require generally or in any particular case; and
- (c) complies with such other condition or restriction as the Comptroller may impose for the protection of the revenue.

(2) This regulation does not apply to a supply of goods to which regulation 105A applies.

Zero-rating of supply of goods to be hand-carried for export

105A.—(1) This regulation applies to a supply of goods by a taxable person which are to be exported by being hand-carried by an individual (called in this regulation the carrier) on an aircraft departing from the Changi International Airport.

(2) The supply of goods is zero-rated if —

- (a) the Comptroller is satisfied that all the conditions under paragraph (3) have been met; or
- (b) the Comptroller —
 - (i) has, on an application under paragraph (4), waived compliance with any condition under paragraph (3), and the taxable person has satisfied all requirements imposed under paragraph (4) in respect of such waiver; and
 - (ii) is satisfied that all other conditions under paragraph (3) have been satisfied.

(3) The conditions referred to in paragraph (2)(a) are —

- (a) the goods are to be supplied to a person who has a business establishment outside Singapore or the person's usual place of residence is outside Singapore;

- (b) the carrier is an individual of 16 years of age or older;
 - (c) before the goods are hand-carried on an aircraft, the carrier has submitted the export permit for the export of the goods to a proper officer of customs at the Changi International Airport for his or her endorsement, together with the goods and supporting invoices or receipts to the proper officer of customs for his or her inspection;
 - (d) the carrier has furnished such information and documents as the proper officer of customs may require for the purpose of ascertaining whether the carrier will depart from Singapore in accordance with sub-paragraph (e);
 - (e) the carrier has departed from Singapore, with the goods on board the aircraft, within 12 hours from the time of endorsement of the export permit by the proper officer of customs;
 - (f) the goods have not been brought out of the premises of the Changi International Airport Departure Check-in Hall after the export permit has been endorsed by the proper officer of customs except in the circumstances referred to in paragraph (6); and
 - (g) the taxable person has produced to the Comptroller, at the Comptroller's request, the export permit and such evidence of export as the Comptroller may reasonably require.
- (4) The taxable person may make an application to the Comptroller for waiver of compliance with any condition under paragraph (3), and the Comptroller may waive such compliance subject to such requirements for the protection of revenue as the Comptroller may consider necessary to impose.
- (5) A person must not —
- (a) being a carrier, transfer any goods to any other person in Singapore after the export permit in respect of such goods has been endorsed by the proper officer of customs at the Changi International Airport;

- (b) receive any goods from the carrier in Singapore after the export permit in respect of such goods has been endorsed by the proper officer of customs at the Changi International Airport; or
 - (c) bring any goods out of the premises of the Changi International Airport Departure Check-in Hall after the export permit in respect of such goods has been endorsed by the proper officer of customs.
- (6) Paragraph (5) does not apply —
 - (a) to the transfer of the goods to, or the receipt of the goods or the bringing of the goods out of the Changi International Airport Departure Check-in Hall by, a ticketing or luggage officer or other employee, who is authorised by the Civil Aviation Authority of Singapore or the airline or air terminal operator concerned to receive the goods for checking in or to handle the goods for loading into the aircraft; or
 - (b) to the carrier bringing the goods out of the premises referred to in sub-paragraph (a) for the purpose of boarding the departing aircraft.
- (7) In this regulation —
 - “export permit” means an export permit granted under the Regulation of Imports and Exports Regulations (Rg 1);
 - “hand-carry”, in relation to any goods, means to carry the goods on board an aircraft either personally or by checking them in for the purpose of loading them on the aircraft;
 - “proper officer of customs” has the meaning given by regulation 47.

Zero-rating of supply of certain tools, machinery and prototypes

106.—(1) For the purpose of section 21A(1)(a) of the Act, the prescribed tool or prescribed machinery used in the manufacture of goods for a person who belongs in a country outside Singapore is any tool or machinery which —

- (a) is integral to the manufacture of the goods; and
- (b) is highly customised or specialised in nature for the sole purpose of the manufacture of the goods.

(2) The conditions prescribed for the purpose of section 21A(1) of the Act are as follows:

- (a) the prescribed tool or prescribed machinery must be used by —
 - (i) the taxable person; or
 - (ii) such other person as may be approved by the Comptroller,
for the manufacture of the goods for the person who belongs in a country outside Singapore;
- (b) the prescribed tool or prescribed machinery must not be used, consumed or made available in Singapore to any person other than —
 - (i) the taxable person;
 - (ii) the person who belongs in a country outside Singapore; or
 - (iii) such other person as may be approved by the Comptroller;
- (c) the manufactured goods must be substantially exported and the taxable person must maintain records in relation to such export;
- (d) the supply of the prescribed tool, prescribed machinery or prototype of such tool or machinery and the supply of the manufactured goods must be separate supplies made by the taxable person to the person who belongs in a country outside Singapore;
- (e) the prescribed tool or prescribed machinery must be —
 - (i) exported to any country outside Singapore; or
 - (ii) destroyed,

when it is no longer needed for the manufacture of the goods;

(f) where the prescribed tool, prescribed machinery or prototype of such tool or machinery is subsequently disposed of in Singapore —

(i) according to the instructions of the person who belongs in a country outside Singapore; or

(ii) due to spoilage,

the taxable person must maintain records in relation to the disposal.

(3) For the purpose of paragraph (2)(c), the manufactured goods are substantially exported if more than 50% of the manufactured goods produced by using the prescribed tool or prescribed machinery are exported.

(4) Where the taxable person making the supply under section 21A of the Act fails to comply with any condition prescribed under paragraph (2), the taxable person must —

(a) repay to the Comptroller without demand the amount of tax on the value of the supply to which the failure to comply relates; and

(b) include the amount of tax mentioned in sub-paragraph (a) as output tax in the taxable person's return.

(5) In this regulation, “tool” includes any mould, jig, pattern, template, die, punch or similar tool.

Zero-rating of supplies to approved marine customers

106A.—(1) Subject to this regulation, a sale or letting on hire of goods by any taxable person to be used for a prescribed purpose to another taxable person who is an approved marine customer is zero-rated.

(2) Any taxable person who wishes to be an approved marine customer for the purpose of paragraph (1) may make an application to the Comptroller for such approval if the taxable person is eligible to do so under paragraph (4).

(3) Every application under paragraph (2) must —

- (a) be made in such form and manner as the Comptroller may determine; and
- (b) give a full and true account of the particulars or information furnished.

(4) A taxable person is eligible to make an application under paragraph (2) if the taxable person satisfies the Comptroller that —

- (a) the taxable person is principally engaged in business activities approved by the Comptroller in the shipping or marine industry;
- (b) the taxable person makes substantial supplies in the course or furtherance of the taxable person's business and satisfies such requirements as the Comptroller may determine;
- (c) the taxable person's accounting and internal control systems are able to meet such accounting standards as the Comptroller may require;
- (d) the taxable person has faithfully observed and complied with all duties and obligations relating to the taxable person's liability to pay customs and excise duties, income tax, property tax and goods and services tax; and
- (e) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of revenue.

(5) The Comptroller may, on an application made under paragraph (2), approve the application on such conditions or requirements as the Comptroller may, in the Comptroller's discretion, impose.

(6) The Comptroller may, in granting approval under paragraph (5), require the applicant to furnish security in such form and amount and to make arrangements for the payment of taxes as the Comptroller may determine.

(7) An approval granted under paragraph (5) has effect for such period as the Comptroller may determine.

(8) An approved marine customer must immediately notify the Comptroller of any change in particulars furnished, the security given, or the arrangements for the payment of taxes.

(9) The Comptroller may, at any time, by written notice, vary or revoke any approval granted under this regulation if the Comptroller is satisfied that the approved marine customer —

- (a) has provided any false, misleading or inaccurate declaration or information in the approved marine customer's application under paragraph (3);
- (b) has at any time ceased to satisfy any of the requirements for eligibility under paragraph (4); or
- (c) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (5).

(10) A taxable person to whom approval has been granted under paragraph (5) must not use the approval, and must take all steps to ensure that no other person uses the approval, except for the purposes for which the approval was granted.

(11) Where in any accounting period, the approved marine customer uses or forms an intention to use the goods referred to in paragraph (1) for a purpose other than the prescribed purpose, the approved marine customer must, in the return for that accounting period, account for the tax which would, but for this regulation, have been chargeable on the supply to the approved marine customer, as output tax in the approved marine customer's return.

(12) Where in any accounting period, the approved marine customer ceases to be approved for the purposes of section 21B of the Act, the approved marine customer must, immediately before the approved marine customer's approval ceases, account for the tax which would, but for this regulation, have been chargeable on the supply to the approved marine customer of the goods which have not been used for any prescribed purpose, as output tax in the approved marine customer's return.

(13) Unless the Comptroller otherwise allows, if any condition or restriction imposed under this regulation or by the Comptroller is not complied with, the approved marine customer must —

- (a) pay to the Comptroller without demand an amount equal to the tax which would, but for this regulation, have been chargeable on the supply to the approved marine customer; and
- (b) include the amount of tax as output tax in the approved marine customer's return.

(14) In this regulation, goods are used for a prescribed purpose if they are or are to be used by the approved marine customer in the course of the approved marine customer's business —

- (a) as stores or fuel on a ship;
- (b) for installation on a ship; or
- (c) in the maintenance or operation of a ship.

(15) In this regulation —

“approved marine customer” means a taxable person whose application to be an approved marine customer has been granted by the Comptroller under paragraph (5);

“ship” means any ship (including an oil rig) but does not include any ship —

- (a) that is licensed under the Maritime and Port Authority of Singapore Act 1996 as a harbour craft or pleasure craft;
- (b) in respect of which a vessel permit has been granted by the Public Utilities Board under regulations made under the Public Utilities Act 2001; or
- (c) that is designed or adapted for use for recreation or pleasure.

Specialised Warehouses Scheme

106B.—(1) Subject to this regulation, a taxable person may make an application to the Comptroller for approval for one or more of the taxable person's warehouses or other premises to be an approved warehouse for the purposes of sections 21(3)(y) and 21C of the Act if the conditions set out under paragraph (3) are satisfied.

(2) Every application under paragraph (1) must —

- (a) be made in such form and manner as the Comptroller may determine; and
- (b) give a full and true account of the particulars or information furnished.

(3) A taxable person is eligible to make an application under paragraph (2) if the taxable person satisfies the Comptroller that —

- (a) the warehouse or other premises are licensed as a bonded warehouse under Part 14 of these Regulations;
- (b) the taxable person is the licensee of the bonded warehouse mentioned in sub-paragraph (a);
- (c) the warehouse or other premises are used for the taxable person's business of storing goods;
- (d) at all times in the period referred to in paragraph (4), such proportion as the Comptroller may determine of the goods stored, or anticipated to be stored, at the warehouse or premises were or are goods prescribed under the Ninth Schedule to the Goods and Services Tax (International Services) Order 1993;
- (e) the proportion of customers of the taxable person who belong in a country outside Singapore satisfies such requirement as the Comptroller may determine;
- (f) the proportion of goods prescribed under the Ninth Schedule of the Goods and Services Tax (International Services) Order 1993 removed or to be removed from the warehouse for export satisfies such requirement as the Comptroller may determine;

- (g) the taxable person has faithfully observed and complied with all duties and obligations relating to the taxable person's liability to pay customs and excise duties, income tax, property tax and goods and services tax; and
 - (h) the taxable person is able to comply with such other conditions as the Comptroller may impose for the protection of revenue.
- (4) For the purpose of paragraph (3)(d) —
- (a) the period is such continuous period of 12 months (commencing not earlier than 24 months before, and ending not later than 24 months after, the date of the application) as the Comptroller may determine; and
 - (b) the proportion of goods is to be ascertained without regard to any goods of the taxable person stored or anticipated to be stored in the warehouse or premises.
- (5) The Comptroller may, on an application made under paragraph (2), approve the application on such conditions or requirements as the Comptroller may, in the Comptroller's discretion, impose.
- (6) An approval granted under paragraph (5) has effect for such period as the Comptroller may determine.
- (7) A taxable person must immediately notify the Comptroller of any change in the particulars or information furnished under paragraph (2).
- (8) The Comptroller may, at any time, by written notice, vary or revoke any approval granted under this regulation if the Comptroller is satisfied that the approved warehouse or the taxable person, as the case may be —
- (a) has provided any false, misleading or inaccurate declaration or information in the taxable person's application under paragraph (2);
 - (b) has at any time ceased to satisfy any of the requirements for eligibility under paragraph (3); or

(c) has failed to comply with any condition or requirement imposed by the Comptroller under paragraph (5).

(9) Unless the Comptroller otherwise allows, where the taxable person mentioned in paragraph (1) who made an application in respect of a warehouse or other premises fails to comply with any condition or requirement imposed by the Comptroller under paragraph (5) in respect of the approval of that warehouse or other premises, the taxable person must —

(a) pay to the Comptroller without demand the amount of tax that would, but for section 21(3)(y) or 21C of the Act, be chargeable on any supply referred to therein (whether made by the taxable person or any other person) and taking place on or after the date of failure to comply with the condition or requirement up to and including the eve of the earliest of the following days:

(i) the day the approval of the warehouse or other premises is revoked under paragraph (8);

(ii) the day the warehouse or other premises otherwise cease to be an approved warehouse;

(iii) the day the failure is rectified; and

(b) include the amount of tax in respect of such supply under sub-paragraph (a) as output tax in the taxable person's return.

Distress

107.—(1) If upon written demand a person neglects or refuses to pay tax, or any amount recoverable as if it were tax (called in this regulation the debtor), which the debtor is required to pay under the Act, the Comptroller may distrain on the goods and chattels of the debtor and by warrant signed by the Comptroller direct any authorised person to levy such distress.

(2) A distress levied by the authorised person must be kept for 5 days, at the costs and charges of the debtor.

(3) If the debtor fails to pay the sum due, together with the costs and charges within the period of 5 days mentioned in paragraph (2), the distress is to be sold by public auction by the authorised person for payment of the sum due and all costs and charges.

(4) Costs and charges taking, keeping and selling the distress are to be retained by the authorised person, and any surplus remaining after the deduction of the costs and charges and of the sum due are to be restored to the owner of the goods distrained.

Offences

108. Any person who contravenes regulation 10, 11, 12, 13, 13A, 13B, 43(2), 44, 45(5), (7), (9), (10) or (12), 45A(5), (7), (10), (11), (12) or (13), 45B, 45C(6)(b) or (11), 45D(5)(b), (7), (12) or (13), 46(9)(b), (13), (15), (16) or (18), 46A(3)(b), (7), (13), (14), (20), (21) or (23), 48, 50(4), (5), (6), (7) or (8), 50A(1)(a) or (b) or (2), 50D, 50E(8), 50F(2) or (3), 53(1), (2), (3) or (4), 55(2), 58, 58A, 59, 61, 72, 73, 75, 77, 79, 85, 86, 87, 89, 97, 98, 99, 100, 101, 103E, 103F, 103G, 103H, 103I, 105A(5), 106(2) or (4), 106A(3)(b), (8) or (10) or 106B(2)(b) or (7) shall be guilty of an offence and shall be liable on conviction to a fine not exceeding \$5,000 and in default of payment to imprisonment for a term not exceeding 6 months.

FIRST SCHEDULE

Regulations 101(3), 103, 103I(4)
and 103K

FEES

Fees Payable

1. Bonded warehouse licence to warehouse —
 - (a) crude oil; or \$30,000 per annum
 - (b) any petroleum product distilled or otherwise derived from crude oil, for which no duty (whether customs duty or excise duty or both) is chargeable or payable \$30,000 per annum

2. Bonded warehouse licence granted to a licensee, where the average value of all the goods stored in all the warehouses to which the licence relates in the period of 12 months immediately preceding the date of application for or renewal of the licence (as the case may be) is more than \$1 million but less than \$5 million and the licence is —
 - (a) for a period starting before 1 January 2024 \$2,500 per annum
 - (b) for a period starting on or after 1 January 2024 but before 1 January 2025 \$2,990 per annum
 - (c) for a period starting on or after 1 January 2025 \$3,480 per annum

3. Bonded warehouse licence granted to a licensee, where the average value of all the goods stored in all the warehouses to which the licence relates in the period of 12 months immediately preceding the date of application for or renewal of the licence (as the case may be) is \$5 million or more and the licence is —
 - (a) for a period starting before 1 January 2024 \$4,000 per annum

FIRST SCHEDULE — *continued*

Fees Payable

- | | |
|--|-------------------|
| (b) for a period starting on or after 1 January 2024 but before 1 January 2025 | \$4,785 per annum |
| (c) for a period starting on or after 1 January 2025 | \$5,570 per annum |
4. Bonded warehouse licences where paragraphs 1, 2 and 3 do not apply and the licence is —
- | | |
|--|-------------------|
| (a) for a period starting before 1 January 2024 | \$1,000 per annum |
| (b) for a period starting on or after 1 January 2024 but before 1 January 2025 | \$1,195 per annum |
| (c) for a period starting on or after 1 January 2025 | \$1,390 per annum |
5. Container freight warehouse licence —
- | | |
|--|-------------------|
| (a) issued before 1 October 2003 | No charge |
| (b) issued or renewed on or after 1 October 2003 | \$4,000 per annum |
6. For the attendance of one or more authorised officers in connection with the destruction of goods (including the surveying of the goods before and after their destruction)
- \$29 per half hour (or part of a half hour) of continuous attendance at the destruction and any survey
7. For the purposes of paragraphs 2 and 3 —
- | | |
|--|--|
| (a) the value of goods is determined, in the case of imported goods, in accordance with section 18 of the Act and, in the case of other goods, in accordance with section 17 of the Act; and | |
| (b) the average value of all goods is equal to | |

$$\frac{(A + B)}{2}$$

FIRST SCHEDULE — *continued*

- where A is the value of all goods in all the bonded warehouses to which the bonded warehouse licence relates at the beginning of the period referred to in paragraphs 2 and 3; and
- B is the value of all goods in all the bonded warehouses to which the bonded warehouse licence relates at the end of the period referred to in paragraphs 2 and 3.

SECOND SCHEDULE

Regulation 13A(2)

PARTICULARS TO BE SPECIFIED IN THE INVOICE

1. The particulars specified in regulation 13A(1)(e), (f) and (g) must be set out in the invoice in the following formats:

(a) for bars, ingots and wafers:

S/No.	Description	Quantity	Unit Price	Amount
1.	<i>[Purity] [Whether gold, silver or platinum]</i> <i>[Whether bar, ingot or wafer]</i> <i>[Weight of each bar, ingot or wafer]</i> <i>[Name of refiner]</i> <i>[Unique serial number(s), where available]</i>	<i>[Number of pieces for this description]</i>	<i>[Unit price for this description]</i>	<i>[Price for this number of units]</i>

(b) for coins:

S/No.	Description	Quantity	Unit Price	Amount
1.	<i>[Name of coin]</i> <i>[Weight of coin] [Type of investment precious metal]</i>	<i>[Number of pieces for this description]</i>	<i>[Unit price for this description]</i>	<i>[Price for this number of units]</i>

2. All the different kinds of bars supplied must be described one after another in the invoice (with each description listed under a separate serial number on the invoice); and the same applies in relation to all the different kinds of ingots, wafers and coins supplied.

LEGISLATIVE HISTORY
GOODS AND SERVICES TAX
(GENERAL)
REGULATIONS 1993

This Legislative History is provided for the convenience of users of the Goods and Services Tax (General) Regulations 1993. It is not part of these Regulations.

1. G. N. No. S 509/1993 — Goods and Services Tax (General) Regulations 1993

(G.N. No. S 18/1994 — Corrigendum)

Date of commencement : 20 December 1993

2. G. N. No. S 108/1994 — Goods and Services Tax (General) (Amendment) Regulations 1994

Date of commencement : 23 March 1994

3. 1994 Revised Edition — Goods and Services Tax (General) Regulations

Date of operation : 30 March 1994

4. G. N. No. S 244/1994 — Goods and Services Tax (General) (Amendment No. 2) Regulations 1994

Date of commencement : 1 April 1994

5. G. N. No. S 174/1995 — Goods and Services Tax (General) (Amendment) Regulations 1995

Date of commencement : 7 April 1995

6. G. N. No. S 491/1995 — Goods and Services Tax (General) (Amendment No. 2) Regulations 1995

Date of commencement : 10 November 1995

7. G. N. No. S 461/1999 — Goods and Services Tax (General) (Amendment No. 3) Regulations 1999

Date of commencement : 1 April 1998

8. G. N. No. S 400/1998 — Goods and Services Tax (General) (Amendment) Regulations 1998

Date of commencement : 24 July 1998

9. G. N. No. S 461/1999 — Goods and Services Tax (General) (Amendment No. 3) Regulations 1999

Date of commencement : 1 July 1999

10. G. N. No. S 361/1999 — Goods and Services Tax (General) (Amendment) Regulations 1999

Date of commencement : 25 August 1999

11. G. N. No. S 371/1999 — Goods and Services Tax (General) (Amendment No. 2) Regulations 1999

Date of commencement : 15 September 1999

12. G. N. No. S 461/1999 — Goods and Services Tax (General) (Amendment No. 3) Regulations 1999

Date of commencement : 21 October 1999

13. G. N. No. S 7/2000 — Goods and Services Tax (General) (Amendment) Regulations 2000

Date of commencement : 7 January 2000

14. G. N. No. S 160/2000 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2000

Date of commencement : 1 April 2000

15. G. N. No. S 576/2000 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2000

Date of commencement : 18 December 2000

16. G. N. No. S 137/2001 — Goods and Services Tax (General) (Amendment) Regulations 2001

Date of commencement : 1 April 2001

17. G. N. No. S 182/2001 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2001

Date of commencement : 1 April 2001

18. 2001 Revised Edition — Goods and Services Tax (General) Regulations

Date of operation : 15 September 2001

19. G. N. No. S 261/2002 — Goods and Services Tax (General) (Amendment) Regulations 2002

Date of commencement : 1 June 2002

20. G. N. No. S 427/2002 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2002

Date of commencement : 28 August 2002

21. G. N. No. S 648/2002 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2002

Date of commencement : 1 January 2003

22. G. N. No. S 182/2003 — Goods and Services Tax (General) (Amendment) Regulations 2003

Date of commencement : 1 April 2003

23. G. N. No. S 316/2003 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2003

Date of commencement : 1 July 2003

24. G. N. No. S 627/2003 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2003

Date of commencement : 1 January 2004

25. G. N. No. S 237/2004 — Goods and Services Tax (General) (Amendment) Regulations 2004

Date of commencement : 1 May 2004

26. G. N. No. S 728/2004 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2004

Date of commencement : 8 December 2004

27. G. N. No. S 729/2004 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2004

Date of commencement : 1 January 2005

28. G. N. No. S 646/2005 — Goods and Services Tax (General) (Amendment) Regulations 2005

Date of commencement : 7 October 2005

29. G. N. No. S 394/2006 — Goods and Services Tax (General) (Amendment) Regulations 2006

Date of commencement : 1 July 2006

30. G. N. No. S 673/2006 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2006

Date of commencement : 1 January 2007

31. G. N. No. S 327/2007 — Goods and Services Tax (General) (Amendment) Regulations 2007

Date of commencement : 1 July 2007

32. G. N. No. S 423/2007 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2007

Date of commencement : 1 October 2007

33. G. N. No. S 540/2007 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2007

Date of commencement : 8 October 2007

34. G. N. No. S 689/2007 — Goods and Services Tax (General) (Amendment No. 4) Regulations 2007

Date of commencement : 1 April 2008

35. G. N. No. S 235/2008 — Goods and Services Tax (General) (Amendment) Regulations 2008

Date of commencement : 1 May 2008

36. 2008 Revised Edition — Goods and Services Tax (General) Regulations

Date of operation : 2 June 2008

37. G. N. No. S 674/2008 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2008

Date of commencement : 1 January 2009

38. G. N. No. S 118/2009 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2009

Date of commencement : 24 March 2009

39. G. N. No. S 32/2009 — Goods and Services Tax (General) (Amendment) Regulations 2009

Date of commencement : 1 April 2009

40. G. N. No. S 626/2009 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2009

Date of commencement : 1 January 2010

41. G. N. No. S 64/2010 — Goods and Services Tax (General) (Amendment) Regulations 2010

Date of commencement : 5 February 2010

42. G. N. No. S 566/2010 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2010

Date of commencement : 1 October 2010

43. G. N. No. S 827/2010 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2010

Date of commencement : 1 January 2011

44. G. N. No. S 181/2011 — Goods and Services Tax (General) (Amendment) Regulations 2011

Date of commencement : 1 April 2011

45. G.N. No. S 691/2011 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2011

Date of commencement : 1 January 2012

46. G.N. No. S 398/2012 — Goods and Services Tax (General) (Amendment) Regulations 2012

Date of commencement : 19 August 2012

47. G.N. No. S 495/2012 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2012

Date of commencement : 1 October 2012

48. G.N. No. S 24/2013 — Goods and Services Tax (General) (Amendment) Regulations 2013

Date of commencement : 21 January 2013

49. G.N. No. S 783/2014 — Goods and Services Tax (General) (Amendment) Regulations 2014

Date of commencement : 31 January 2013

50. G.N. No. S 783/2014 — Goods and Services Tax (General) (Amendment) Regulations 2014

Date of commencement : 31 October 2013

51. G.N. No. S 845/2013 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2013

Date of commencement : 1 January 2014

52. G.N. No. S 783/2014 — Goods and Services Tax (General) (Amendment) Regulations 2014

Date of commencement : 1 January 2015

53. G.N. No. S 105/2015 — Goods and Services Tax (General) (Amendment) Regulations 2015

Date of commencement : 1 April 2015

54. G.N. No. S 161/2015 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2015

Date of commencement : 1 April 2015

55. G.N. No. S 709/2015 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2015

Date of commencement : 18 November 2015

56. G.N. No. S 215/2016 — Goods and Services Tax (General) (Amendment) Regulations 2016

Date of commencement : 1 July 2016

57. G.N. No. S 622/2016 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2016

Date of commencement : 6 December 2016

58. G.N. No. S 351/2017 — Goods and Services Tax (General) (Amendment) Regulations 2017

Date of commencement : 1 July 2017

59. G.N. No. S 461/2017 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2017

Date of commencement : 22 August 2017

60. G.N. No. S 639/2017 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2017

Date of commencement : 1 January 2018

61. G.N. No. S 179/2018 — Goods and Services Tax (General) (Amendment) Regulations 2018

Date of commencement : 1 April 2018

62. G.N. No. S 895/2018 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2018

Date of commencement : 1 January 2019

63. G.N. No. S 137/2019 — Goods and Services Tax (General) (Amendment) Regulations 2019

Date of commencement : 4 April 2019

64. G.N. No. S 328/2019 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2019

Date of commencement : 2 May 2019

65. G.N. No. S 875/2019 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2019

Date of commencement : 1 January 2020

66. G.N. No. S 875/2019 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2019

Date of commencement : 28 January 2020

67. G.N. No. S 620/2022 — Goods and Services Tax (General) (Amendment) Regulations 2022

Date of commencement : 30 July 2020

68. G. N. No. S 739/2021 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2021

Date of commencement : 1 September 2020

69. G.N. No. S 27/2021 — Goods and Services Tax (General) (Amendment) Regulations 2021

Date of commencement : 18 January 2021

70. G.N. No. S 474/2021 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2021

Date of commencement : 1 July 2021

71. G. N. No. S 739/2021 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2021

Date of commencement : 1 October 2021

72. G.N. No. S 620/2022 — Goods and Services Tax (General) (Amendment) Regulations 2022

Date of commencement : 31 December 2021

73. G.N. No. S 1003/2021 — Goods and Services Tax (General) (Amendment No. 4) Regulations 2021

Date of commencement : 1 January 2022

74. G.N. No. S 1003/2021 — Goods and Services Tax (General) (Amendment No. 4) Regulations 2021

Date of commencement : 3 January 2022

75. G.N. No. S 620/2022 — Goods and Services Tax (General) (Amendment) Regulations 2022

Date of commencement : 1 August 2022

76. G.N. No. S 672/2022 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2022

Date of commencement : 31 August 2022

77. G.N. No. S 963/2022 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2022

Date of commencement : 1 January 2023

78. G.N. No. S 1034/2022 — Goods and Services Tax (General) (Amendment No. 4) Regulations 2022

Date of commencement : 1 January 2023

79. G.N. No. S 185/2023 — Goods and Services Tax (General) (Amendment) Regulations 2023

Date of commencement : 1 April 2023

80. G.N. No. S 212/2023 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2023

Date of commencement : 28 April 2023

81. G.N. No. S 769/2023 — Goods and Services Tax (General) (Amendment No. 3) Regulations 2023

Date of commencement : 1 January 2024

82. G.N. No. S 444/2025 — Goods and Services Tax (General) (Amendment) Regulations 2025

Date of commencement : 1 July 2025

83. G.N. No. S 141/2026 — Goods and Services Tax (General) (Amendment) Regulations 2026

Date of commencement : 1 April 2026

84. 2026 Revised Edition — Goods and Services Tax (General) Regulations 1993

Date of operation : 3 July 2026

85. G.N. No. S 485/2026 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2026

Date of commencement : 7 July 2026

86. G.N. No. S 485/2026 — Goods and Services Tax (General) (Amendment No. 2) Regulations 2026

Date of commencement : 15 July 2026

COMPARATIVE TABLE
GOODS AND SERVICES TAX
(GENERAL)
REGULATIONS 1993

This subsidiary legislation has undergone renumbering in the 2026 Revised Edition. This Comparative Table is provided to help readers locate the corresponding provisions in the previous version.

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—	(3) [<i>Deleted by S 827/2010</i>]
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—	51A [<i>Deleted by S 1034/2022</i>]
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—	64—(2) [<i>Deleted by S 691/2011</i>]
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